



JUSTICE TRAINING INSTITUTE

Ministry of Justice

MANUAL

QUALIFYING TRAINING FOR JUSTICES OF THE PEACE

The Justice Training Institute Training for improved performance

Compiled by the
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NOTE

Kindly note that the contents of this Training Manual are constantly updated.

The law is dynamic and the relevant laws and regulations may change at any time.

You are therefore advised to keep abreast of the country's legislative agenda and to take note of any legislative amendments, new law or regulations that may be enacted from time to time.

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- The Justices of the Peace Act
- The Justices of the Peace (Official Seals) Regulations
- The Justices of the Peace Jurisdiction Act
- The Bail Act

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HISTORICAL OVERVIEW OF THE OFFICE OF JUSTICE OF THE PEACE

The Office of the Justice of the Peace originated in England with historical roots dating back to the 13th century. It was one of the legal institutions, which was established and developed as the common law jurisdiction consolidated itself in that country. The system of common law jurisdiction in its early stages consisted of the Common Law Courts, which comprised Common Pleas and the King's Bench, the Justice of the Peace and the Jury. The establishment of these legal institutions for dispensing justice marked the establishment of Royal Justice over the older communal, franchise and feudal courts, which characterized medieval England.

By the 15th century, Royal Justice, which flowed from the King's Courts, had assumed full control. As the older courts fell into disuse, persons specially commissioned by the Crown, were given responsibility for certain police duties and for exercising criminal jurisdiction over small or petty offences. Originally called Conservators of the Peace, by 1363, they came to be officially known as Justices of the Peace. Statutes were passed from time to time, which conferred additional jurisdiction on them – police, judicial and administrative functions.

Fully established by the 15th century, Justices of the Peace gained the reputation for being efficient in the discharge of their duties. This is what Sir Edward Coke, who served as one of England's Chief Justices, said about Justices of the Peace:

“This (Justices of the Peace) being such a form of Subordinate Government, for the tranquility and quiet of the Realm, as no part of the Christian World hath the like, as saith my Lord Coke, if the same be duly executed; much of the happiness and tranquility of this Nation depends on our Justices of the Peace, well and faithful discharge their duty, and their due or ill Administration of the Authority given them, must ... add to the Reputation of our Government, or the Defamation thereof, especially since their Authority is so much enlarged by several Statutes.” *(written in Old English)*

In 1389, by enactment, Justices of the Peace were required to be “most sufficient knights, esquires and gentlemen”. In 1414, they were required to be resident in their counties and in 1439 they were required to have property to the value of 20 Pounds

per year and by 1730, 100 Pounds per year. In 1906, the property qualification was removed.

The selection procedure of persons for the office differed from time to time. By Edward II, it was vested in the Crown who acted on the advice of different sets of persons at different times.

During the last quarter of the 19th century, Justices of the Peace lost most of their administrative functions to elected councils and they were no longer exclusively selected from the gentry. Advisory committees assisted the Lord Lieutenant to nominate Justices of the Peace.

Before assuming office, Justices of the Peace were required to take an oath of office (*Dedimus Potestatem*) and pay certain fees. Their Commissions defined the terms of their duties.

HISTORY OF THE OFFICE OF THE JUSTICE OF THE PEACE IN JAMAICA

Jamaica became a British Colony in 1655. As the colonizing power established its legal, administrative and political authority in the colony, institutions which were peculiar to the English legal and administrative systems were transported here, sometimes with little changes. Among these institutions, was that of the Justice of the Peace.

By 1850, Justices of the Peace were well established in Jamaica. In that year, an Act was passed to “facilitate the performance of duties of Justices of the Peace out of sessions, within this Island, with respect to persons charged with indictable offences.” That Act, with little modification, now constitutes Parts 1, 2 and 3 of The Justices of the Peace Jurisdiction Act, the statute from which all Justices of the Peace derive authority.

The situation in the latter part of the 19th century in Jamaica was described by Mr. L. J. Preston, Clerk of Petty Sessions for Trelawny. In an article published in the Handbook of Jamaica in 1882, he commented that Justices of the Peace were “appointed to each parish by Commission from the Governor under the Great Seal of the Island as conservators of the Public Peace.” Their powers were derived “from their Commission and their jurisdiction is conferred by various local laws. Generally, one of the Justices of the Peace is selected by the Governor General and appointed Custos, an office similar to that of Custos Rotulorum in England”.

GENERAL OVERVIEW OF THE FUNCTIONS OF THE JUSTICE OF THE PEACE

The Justice of the Peace (JP) is a judicial public officer, albeit, with limited powers. In addition to the number of duties and functions within the community, the Justice of the Peace actually performs judicial functions serving in the now, Lay Magistrates' Court (formerly Court of Petty Sessions), as set out in the Justices of the Peace Jurisdiction Act, 1850, from which their authority is derived.

Various pieces of legislation, also clearly outline the various roles and functions of the Justice of the Peace. These include, but are not limited to:

- Justices of the Peace Act, 2018
- Justices of the Peace Jurisdiction Act
- Judicature (Parish Courts) Act
- Justices of the Peace (Official Seals) Regulations
- The Bail Act
- ~~The Bail Regulations~~
- Attestation of Instruments (Facilities) Act
- Voluntary Declarations Act
- Oaths Act
- Interpretation Act (Section 3 defines Justices of the Peace).

Any Jamaican citizen who is resident in Jamaica at the time of appointment and who is able to read and write in the English Language, is eligible to be appointed as a Justice of the Peace. Additionally, said individual seeking appointment as a JP should:

- be of unquestionable integrity;
- command the respect and confidence of his/her community;
- have given good service to his/her community or the wider Jamaica and demonstrates the potential for continuing to give such service; and
- have attained the age of 23 years.

Duties of a Justice of the Peace include, but are not limited to:

- **Execution of Documents:** Persons often seek help concerning Wills, Transfers, common law Titles, and other kinds of legal documents including Oaths, Affidavits and Declarations.

- **Give counsel and advice to citizens in the community:** to listen to and, where possible, help persons who experience various kinds of problems and seek the advice of a leader in the community.
- **Summonses and Warrants:** to compel persons to attend court; at other times, may issue a warrant for the search of premises in accordance with the law; may also issue a warrant for the arrest of any person who – on reasonable grounds – is believed to have committed a criminal offence.
- **Licensing Authority under the Spirit Licence Act:** to consider and grant applications for licenses at Spirit Licence sessions.
- **Bail:** to consider applications for bail in respect of persons who have been arrested and are in police custody for certain specific offences that have not yet been taken before the court; and other connected duties.
- **Visits to Police Stations:** to ensure that the proper procedures are followed where arrested persons, who are in police custody, make statements under caution, as well as with respect to those persons who are placed in identification parades.
- **Caution Statements:** Justices of the Peace are sometimes asked by the police to bear witness to written statements given under caution by an accused person in custody. In cases where a person has received felonious injuries and is dying, a JP is required to witness the statement from such person before he or she dies for the purpose of using such statement in a trial.
- **Jury List:** Under the Jury Act 1898, repealed by Act of 1980, a minimum of two Justices of the Peace sit with the Parish Court Judge at a Special Session to provisionally settle the Jury List and later in the year to finally settle the list presented by the police. The purpose is to remove the names of persons who are no longer qualified by reason of age, incapacity etc. and to add to the list persons now qualified as well as to correct other errors on the list.
- **Hire Purchase Act:** Any vendor may apply in the absence of the other party to two Justices of the Peace for an order to repossess goods sold on Hire Purchase Agreement if the right to the vendor is endangered.
- **Riot Act:** The Justice of the Peace reads the Riot Act to a rioting crowd in the time of crises.
- **Witnessing the Destroying of Marijuana:** Upon the dismissal or completion of a matter, marijuana that was confiscated and used as exhibits will be destroyed. A Justice of the Peace must witness the procedure.

- **Arrival of Deportees:** Jamaicans who are deported will be processed by members of both the Immigration Department and the Police Constabulary Force. Justices of the Peace are required to observe the procedures to ensure preservation of human rights, fairness and dignity.
- **Perishable Goods:** Stolen goods such as meat, fruits, vegetables, may perish even before the start of the trial. A Justice of the Peace is required to complete the requisite form that will be presented in court as exhibit.

FOR DISCUSSION:

- Reading and understanding the law
- Jamaican Court Structure
- Acts of Parliament, along with Regulations, Rules and Codes
- Jamaica Gazette

READING THE LAW (GENERAL)

Within Jamaica's legal system, there are **three (3) main sources of law**:

- 1) **The Constitution**
- 2) **Acts of Parliament** (also referred to as Statue, Legislation or Enactment)
- 3) **Common Law** (also referred to as case law, court judgment, judge-made law)

Here, we will be looking at **Acts of Parliament**.

The image below shows a section taken from the **Justices of the Peace Act, 2018** - note the parts which have been labeled. This helps you to identify the sections of an Act.

The diagram illustrates the structure of a section within an Act. It features a central text block from the *Justices of the Peace Act, 2018*, with three labels on the left and one on the right, connected by red arrows.

Section Labels (Left):

- Section 4(1) OR Section 4 subsection 1** (points to the main paragraph of section 4)
- Section 4(1)(a) OR Section 4 subsection 1 subsection a** (points to the first sub-section)
- Section 4(3) OR Section 4 subsection 3** (points to the third paragraph of section 4)

Marginal Notes (Right):

- Functions of Advisory Committee.** (points to the text describing the committee's functions)
- Marginal Notes** (a general label for the right margin)

Act Text (Center):

The Justices of the Peace Act, 2018 [No.] 3

hereby continued and deemed to be an Advisory Committee established under this Act.

4.—(1) An Advisory Committee shall, for the parish in respect of which it is established, make recommendations, to the Minister, for the appointment of Justices and, for that purpose, the Advisory Committee shall keep under constant review the needs of the parish as a whole and the needs of each community in the parish, with a view to ensuring that there are adequate numbers of Justices—

- (a) for the Lay Magistrates' Courts and all other courts in which Justices of the Peace exercise summary jurisdiction;
- (b) to serve on any Licensing Authority constituted under the *Spirit Licence Act*;
- (c) throughout the parish, who are available to attest or authenticate documents for members of the public; and
- (d) to discharge any other functions assigned to Justices under any law.

(2) An Advisory Committee shall ensure that all persons recommended by the Advisory Committee for appointment as Justices are eligible for appointment under section 5.

(3) The Minister may give such directions to any Advisory Committee as the Minister thinks necessary to facilitate the carrying out of the Committee's functions.

(4) Where the operations of a Ministry, department, or agency, of Government may be facilitated by having ready access to the services

Particularly to improve the readability of the law, an Act is divided into **sections** – these are cited, for example, as section 1 or section 2; or abbreviated as, for example, s 1 or s 2. Sections generally deal with one topic.

Some sections within an Act are further divided into **subsections** – these are cited, for example, as section 3(2)(b) or section 3 subsection (2) subsection (b).

So, if you were asked to cite the labeled area at top-left of the image on the previous page, this may be written as: **Section 4(1) of the Justices of the Peace Act, 2018.**

Sections are numbered consecutively using Arabic numbers - 1, 2, 3, 4, etc. In terms of formatting, the text of the section numbers usually has a bold format - for example, **4**.

Subsections are also numbered (or lettered) consecutively. Subsections may be, numbers - (1), (2), (3),, or lower-case letters - (a), (b), (c),, or roman numerals (i), (ii), (iii),, As you will observe in the image shown on the previous page, in terms of formatting, the text of the subsections is enclosed within brackets; does not carry a bold format; and, are indented, in terms of position on the page.

NOTE: Legislative drafting principles and practices change over time; and so, variation(s) of the information presented above may be seen across pieces of legislation.

When using an Act of Parliament (“Act”, *for short*), it may be possible to follow the concepts in the Act in a sequential manner across the sections (consecutively). For example, you may read section 3, then read section 4, and then read section 5, etc., and be able to develop a good understanding of the area(s) covered under the Act; however, this is not always the case.

Other times, you may find that you start with say, section 6, probably because the marginal notes indicated that section 6 deals with the area you were researching/reviewing. So, you start by reading section 6, which then makes reference to a concept in section 8. Then you find that section 8 contains a term which is defined in section 12 of the Act, and so you are referred to section 12. With this, you end up moving through several non-consecutive sections of the Act, so as to gain an understanding. The foregoing scenario also helps to underscore the importance of securing a full copy of an Act when conducting your research/review– as opposed to just a page or two of an Act.

Most Acts will have an **interpretation section** (usually section 2), which provides the meaning of some terms used within the Act, for which a particular definition applies. You would use this interpretation section to understand references to general terms, such as,

“Custos”, “judicial functions” or “Register” – as indicated in section 2 of the **Justices of the Peace Act, 2018**. As well, a definition may be used in the Act to avoid repetition of a long term, for example, using the term “Justice” throughout the Act, to refer to Justice of Peace.

NOTE: Another good source to consult for existing definitions of legal terms is the **Interpretation Act**, which applies to all laws.

Some other elements that may be found in a recent Act of Parliament may be, Short Title, Long Title, Marginal Notes, Parts, Schedules, to name a few.

Marginal Notes serve to assist the reader with understanding the sections and allows one to quickly identify what a section of the Act deals with.

Schedules may be found at the end of most Acts of Parliament and serve to provide additional details relating to a section of the Act or a group of sections. A Schedule may, for example, expand on the meaning of concepts or phrases to allow for better understanding, provide content in the form of a table or list, provide a form (e.g. JP Annual Report) for use or a template wording (e.g. an Oath), give details on how calculations are to be completed, to name a few.

When reading an Act of Parliament:

- Pay close attention to the Act’s format and organization. Assume everything in the Act has meaning, including the punctuation and format.
- Look out for keywords, in the form of:
 - important **“action” words** – for example, “may” or “shall” - that establish whether a provision requires or authorizes some action or condition;
 - **exceptions** to the application of the Act – these may be signaled by keywords such as “only”, “under”, “over”, “more than”, “less than”, “if” and “unless”; or
 - a **series of provisions ending in “and” or “or”** – this indicates whether all the elements of the series are included or whether only one of the elements needs to be included to satisfy the series.
- Do not skip over words that you do not know or fully understand – instead, explore further – use a Law Dictionary, if necessary. Also, do not rely on context for the meaning of a word about which you are unsure. For example, do not assume a word (such as,

“person”), has the same meaning that it has in your usual everyday conversation. Remember, you are reading the law, and it is a generally accepted common law principle that in law, all words have meaning and effect.

NOTE: The principles discussed above in respect of Acts of Parliament, also apply to the Constitution, which is structured in a manner similar to that of an Act of Parliament.

ADDITIONAL TRAINING: Other areas relating to the fundamentals of law, are treated with in Specialized Training sessions for Justices of the Peace, which are delivered by the Justice Training Institute (JTI).

THE CONSTITUTION OF JAMAICA

CHAPTER III

Charter of Fundamental Rights and Freedoms

Provided by:
The Justice Training Institute

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CONSTITUTION OF JAMAICA

CHAPTER III

CHARTER OF FUNDAMENTAL RIGHTS AND FREEDOMS

13.—(1) Whereas—

- (a) the state has an obligation to promote universal respect for, and observance of, human rights and freedoms;
- (b) all persons in Jamaica are entitled to preserve for themselves and future generations the fundamental rights and freedoms to which they are entitled by virtue of their inherent dignity as persons and as citizens of a free and democratic society; and
- (c) all persons are under a responsibility to respect and uphold the rights of others recognized in this Chapter,

Fundamental
rights and
freedoms.
12/2011
S. 2.

the following provisions of this Chapter shall have effect for the purpose of affording protection to the rights and freedoms of persons as set out in those provisions, to the extent that those rights and freedoms do not prejudice the rights and freedoms of others.

(2) Subject to sections 18 and 49, and to subsections (9) and (12) of this section, and save only as may be demonstrably justified in a free and democratic society—

- (a) this Chapter guarantees the rights and freedoms set out in subsections (3) and (6) of this section and in sections 14, 15, 16 and 17; and
- (b) Parliament shall pass no law and no organ of the State shall take any action which abrogates, abridges or infringes those rights.

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(3) The rights and freedoms referred to in subsection (2) are as follows—

- (a) the right to life, liberty and security of the person and the right not to be deprived thereof except in the execution of the sentence of a court in respect of a criminal offence of which the person has been convicted;
- (b) the right to freedom of thought, conscience, belief and observance of political doctrines;
- (c) the right to freedom of expression;
- (d) the right to seek, receive, distribute or disseminate information, opinions and ideas through any media;
- (e) the right to freedom of peaceful assembly and association;
- (f) the right to freedom of movement, that is to say, the right—
 - (i) of every citizen of Jamaica to enter Jamaica; and
 - (ii) of every person lawfully in Jamaica, to move around freely throughout Jamaica, to reside in any part of Jamaica and to leave Jamaica;
- (g) the right to equality before the law;
- (h) the right to equitable and humane treatment by any public authority in the exercise of any function;
- (i) the right to freedom from discrimination on the ground of—

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(i) being male or female;

(ii) race, place of origin, social class, colour, religion or political opinions;

(j) the right of everyone to—

(i) protection from search of the person and property;

(ii) respect for and protection of private and family life, and privacy of the home;

(iii) protection of privacy of other property and of communication;

(k) the right of every child—

(i) to such measures of protection as are required by virtue of the status of being a minor or as part of the family, society and the State;

(ii) who is a citizen of Jamaica, to publicly funded tuition in a public educational institution at the pre-primary and primary levels;

(l) the right to enjoy a healthy and productive environment free from the threat of injury or damage from environmental abuse and degradation of the ecological heritage;

(m) the right of every citizen of Jamaica—

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- (i) who is qualified to be registered as an elector for elections to the House of Representatives, to be so registered; and
 - (ii) who is so registered, to vote in free and fair elections;
 - (n) the right of every citizen of Jamaica to be granted a passport and not to be denied or deprived thereof except by due process of law;
 - (o) the right to protection from torture, or inhuman or degrading punishment or other treatment as provided in subsections (6) and (7);
 - (p) the right to freedom of the person as provided in section 14;
 - (q) the protection of property rights as provided in section 15;
 - (r) the right to due process as provided in section 16; and
 - (s) the right to freedom of religion, as provided in section 17.
- (4) This Chapter applies to all law and binds the legislature, the executive and all public authorities.
- (5) A provision of this Chapter binds natural or juristic persons if, and to the extent that, it is applicable, taking account of the nature of the right and the nature of any duty imposed by the right.

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(6) No person shall be subjected to torture or inhuman or degrading punishment or other treatment.

(7) Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of subsection (6) to the extent that the law in question authorizes the infliction of any description of punishment which was lawful in Jamaica immediately before the commencement of the Charter of Fundamental Rights and Freedoms (Constitutional Amendment) Act, 2011.

(8) The execution of a sentence of death imposed after the commencement of the Charter of Fundamental Rights and Freedoms (Constitutional Amendment) Act, 2011, on any person for an offence against the law of Jamaica, shall not be held to be inconsistent with, or in contravention of, this section by reason of—

(a) the length of time which elapses between the date on which the sentence is imposed and the date on which the sentence is executed; or

(b) the physical conditions or arrangements under which such person is detained pending the execution of the sentence by virtue of any law or practice in force immediately before the commencement of the Charter of Fundamental Rights and Freedoms (Constitutional Amendment) Act, 2011.

(9) Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of subsection (3)(f) of this section and sections 14 and 16(3), to the extent that the law authorizes the taking, in relation to persons detained or whose freedom of movement has been restricted by virtue of that law, of

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measures that are reasonably justifiable for the purpose of dealing with the situation that exists during a period of public emergency or public disaster.

(10) A person, who is detained or whose freedom of movement has been restricted by virtue only of a law referred to in subsection (9), may request a review of his case at any time during the period of detention or restriction, but any request subsequent to the initial request shall not be made earlier than six weeks after he last made such a request, and if he makes such a request, his case shall be reviewed promptly by an independent and impartial tribunal which shall be immediately established pursuant to law and presided over by a person appointed by the Chief Justice of Jamaica from among persons qualified to be appointed as a Judge of the Supreme Court.

(11) On any review by a tribunal in pursuance of subsection (10), of the case of any person who is detained or whose freedom of movement has been restricted, the tribunal may give directions to the authority by whom such detention or restriction was ordered concerning the continued detention or restriction of movement of that person and the authority shall act in accordance with such directions.

(12) Nothing contained in or done under the authority of any law in force immediately before the commencement of the Charter of Fundamental Rights and Freedoms (Constitutional Amendment) Act, 2011, relating to—

(a) sexual offences;

(b) obscene publications; or

(c) offences regarding the life of the unborn,

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shall be held to be inconsistent with or in contravention of the provisions of this Chapter.

(13) In this section “public educational institution” means an all-age school, a pre-primary school or a primary school that is maintained or assisted by the Government.

14.—(1) No person shall be deprived of his liberty except on reasonable grounds and in accordance with fair procedures established by law in the following circumstances—

Protection of
freedom of
the person.

- (a) in consequence of his unfitness to plead to a criminal charge;
- (b) in execution of the sentence or order of a court whether in Jamaica or elsewhere, in respect of a criminal offence of which he has been convicted;
- (c) in execution of an order of the Supreme Court or of the Court of Appeal or such other court as may be prescribed by Parliament on the grounds of his contempt of any such court or of another court or tribunal;
- (d) in execution of the order of a court made in order to secure the fulfilment of any obligation imposed on him by law;
- (e) for the purpose of bringing him before a court in execution of the order of a court;
- (f) the arrest or detention of a person—
 - (i) for the purpose of bringing him before the competent legal authority on reasonable suspicion of his having committed an offence; or

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- (ii) where it is reasonably necessary to prevent his committing an offence;
- (g) in the case of a person who has not attained the age of eighteen years, for the purpose of his care and protection;
- (h) the detention of a person—
 - (i) for the prevention of the spreading of an infectious or contagious disease constituting a serious threat to public health; or
 - (ii) suffering from mental disorder or addicted to drugs or alcohol where necessary for his care or treatment or for the prevention of harm to himself or others; or
- (i) the arrest or detention of a person—
 - (i) who is not a citizen of Jamaica, to prevent his unauthorized entry into Jamaica; or
 - (ii) against whom action is being taken with a view to deportation or extradition or other lawful removal or the taking of proceedings relating thereto.

(2) Any person who is arrested or detained shall have the right—

- (a) to communicate with and be visited by his spouse, partner or family member, religious counsellor and a medical practitioner of his choice;

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(b) at the time of his arrest or detention or as soon as is reasonably practicable, to be informed, in a language which he understands, of the reasons for his arrest or detention;

(c) where he is charged with an offence, to be informed forthwith, in a language which he understands, of the nature of the charge; and

(d) to communicate with and retain an attorney-at-law.

(3) Any person who is arrested or detained shall be entitled to be tried within a reasonable time and—

(a) shall be—

(i) brought forthwith or as soon as is reasonably practicable before an officer authorized by law, or a court; and

(ii) released either unconditionally or upon reasonable conditions to secure his attendance at the trial or at any other stage of the proceedings; or

(b) if he is not released as mentioned in paragraph (a)(ii), shall be promptly brought before a court which may thereupon release him as provided in that paragraph.

(4) Any person awaiting trial and detained in custody shall be entitled to bail on reasonable conditions unless sufficient cause is shown for keeping him in custody.

(5) Any person deprived of his liberty shall be treated humanely and with respect for the inherent dignity of the person.

CONSTITUTION OF JAMAICA

Protection of
property
rights.

15.—(1) No property of any description shall be compulsorily taken possession of and no interest in or right over property of any description shall be compulsorily acquired except by or under the provisions of a law that—

- (a) prescribes the principles on which and the manner in which compensation therefor is to be determined and given; and
- (b) secures to any person claiming an interest in or right over such property a right of access to a court for the purpose of—
 - (i) establishing such interest or right (if any);
 - (ii) determining the compensation (if any) to which he is entitled; and
 - (iii) enforcing his right to any such compensation.

(2) Nothing in this section shall be construed as affecting the making or operation of any law so far as it provides for the taking of possession or acquisition of property—

- (a) in satisfaction of any tax, rate or due;
- (b) by way of penalty for breach of the law, whether under civil process or after conviction of a criminal offence;
- (c) upon the attempted removal of the property in question out of or into Jamaica in contravention of any law;

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- (d) by way of the taking of a sample for the purposes of any law;
 - (e) where the property consists of an animal, upon its being found trespassing or straying;
 - (f) as an incident of a lease, tenancy, licence, mortgage, charge, bill of sale, pledge or contract;
 - (g) by way of the vesting or administration of trust property, enemy property, or the property of persons adjudged or otherwise declared bankrupt or insolvent, persons of unsound mind, deceased persons, or bodies corporate or unincorporate in the course of being wound up;
 - (h) in the execution of judgments or orders of courts;
 - (i) by reason of its being in a dangerous state or injurious to the health of human beings, animals or plants;
 - (j) in consequence of any law with respect to the limitation of actions;
 - (k) for so long as may be necessary for the purposes of any examination, investigation, trial or inquiry or, in the case of land, the carrying out thereon—
 - (i) of work of soil conservation or the conservation of other natural resources; or
 - (ii) of agricultural development or improvement which the owner or occupier of the land has been required and has, without reasonable and lawful excuse, refused or failed to carry out.
- (3) Nothing in this section shall be construed as affecting the making or operation of any law so far as it—

CONSTITUTION OF JAMAICA

(a) makes such provisions as are reasonably required for the protection of the environment; or

(b) provides for the orderly marketing or production or growth or extraction of any agricultural product or mineral or any article or thing prepared for the market or manufactured therefor or for the reasonable restriction of the use of any property in the interests of safeguarding the interest of others or the protection of tenants, licensees or others having rights in or over such property.

(4) Nothing in this section shall be construed as affecting the making or operation of any law for the compulsory taking of possession in the public interest of any property, or the compulsory acquisition in the public interest of any interest in or right over property, where that property, interest or right is held by a body corporate which is established for public purposes by any law and in which no monies have been invested other than monies provided by Parliament.

(5) Where an order is made under any law which provides for the compulsory acquisition of property, the court may have regard to—

(a) any hardship that may reasonably be expected to be caused to any person by the operation of the order; or

(b) the use that is ordinarily made of the property, or the intended use of the property.

CONSTITUTION OF JAMAICA

(6) In this section "compensation" means the consideration to be given to a person for any interest or right which he may have in or over property which has been compulsorily taken possession of or compulsorily acquired as prescribed and determined in accordance with the provisions of the law by or under which the property has been so compulsorily taken possession of or acquired.

16.—(1) Whenever any person is charged with a criminal offence he shall, unless the charge is withdrawn, be afforded a fair hearing within a reasonable time by an independent and impartial court established by law.

Protection of
right to due
process.

(2) In the determination of a person's civil rights and obligations or of any legal proceedings which may result in a decision adverse to his interests, he shall be entitled to a fair hearing within a reasonable time by an independent and impartial court or authority established by law.

(3) All proceedings of every court and proceedings relating to the determination of the existence or the extent of a person's civil rights or obligations before any court or other authority, including the announcement of the decision of the court or authority, shall be held in public.

(4) Nothing in subsection (3) shall prevent any court or any authority such as is mentioned in that subsection from excluding from the proceedings, persons other than the parties thereto and their legal representatives—

(a) in interlocutory proceedings;

(b) in appeal proceedings under any law relating to income tax; or

CONSTITUTION OF JAMAICA

(c) to such extent as—

- (i) the court or other authority may consider necessary or expedient, in circumstances where publicity would prejudice the interests of justice; or
- (ii) the court may decide to do so or, as the case may be, the authority may be empowered or required by law to do so, in the interests of defence, public safety, public order, public morality, the welfare of persons under the age of eighteen years, or the protection of the private lives of persons concerned in the proceedings.

(5) Every person charged with a criminal offence shall be presumed innocent until he is proved guilty or has pleaded guilty.

(6) Every person charged with a criminal offence shall—

- (a) be informed as soon as is reasonably practicable, in a language which he understands, of the nature of the offence charged;
- (b) have adequate time and facilities for the preparation of his defence;
- (c) be entitled to defend himself in person or through legal representation of his own choosing or, if he has not sufficient means to pay for legal representation, to be given such assistance as is required in the interests of justice;

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- (d) be entitled to examine or have examined, at his trial, witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him;
- (e) have the assistance of an interpreter free of cost if he cannot understand or speak the language used in court;
- (f) not to be compelled to testify against himself or to make any statement amounting to a confession or admission of guilt; and
- (g) except with his own consent, not be tried in his absence unless—
 - (i) he so conducts himself in the court as to render the continuance of the proceedings in his presence impracticable and the court has ordered him to be removed and the trial to proceed in his absence; or
 - (ii) he absconds during the trial.

(7) An accused person who is tried for a criminal offence or any person authorized by him in that behalf shall be entitled, if he so requires and subject to payment of such reasonable fee as may be prescribed by law, to be given for his own use, within a reasonable time after judgment, a copy of any record of the proceedings made by or on behalf of the court.

(8) Any person convicted of a criminal offence shall have the right to have his conviction and sentence reviewed by a court the jurisdiction of which is superior to the court in which he was convicted and sentenced.

CONSTITUTION OF JAMAICA

(9) No person who shows that he has been tried by any competent court for a criminal offence and either convicted or acquitted, shall again be tried for that offence or for any other criminal offence of which he could have been convicted at the trial for that offence save upon the order of a superior court made in the course of appeal proceedings relating to the conviction or acquittal; and no person shall be tried for a criminal offence if he shows that he has been pardoned for that offence:

Provided that nothing in any law shall be held to be inconsistent with or in contravention of this subsection by reason only that it authorizes any court to try a member of a defence force for a criminal offence notwithstanding any trial and conviction or acquittal of that member under service law; but any court so trying such a member and convicting him shall in sentencing him to any punishment take into account any punishment awarded him under service law.

(10) No person shall be held guilty of any criminal offence on account of any act or omission which did not, at the time it took place, constitute a criminal offence.

(11) No penalty shall be imposed in relation to any criminal offence or in relation to an infringement of a civil nature which is more severe than the maximum penalty which might have been imposed for the offence or in respect of that infringement, at the time when the offence was committed or the infringement occurred.

(12) If, at the time of sentencing of a person who is convicted of a criminal offence, the penalty prescribed by law for that offence is less severe than the penalty that might have been imposed at the time when the offence was committed, the less severe penalty shall be imposed at the time of sentencing.

CONSTITUTION OF JAMAICA

17.—(1) Every person shall have the right to freedom of religion including the freedom to change his religion and the right, either alone or in community with others and both in public and in private, to manifest and propagate his religion in worship, teaching, practice and observance.

Protection of
freedom of
religion.

(2) The constitution of a religious body or denomination shall not be altered except with the consent of the governing authority of that body or denomination.

(3) Every religious body or denomination shall have the right to provide religious instruction for persons of that body or denomination in the course of any education provided by that body or denomination whether or not that body or denomination is in receipt of any government subsidy, grant or other form of financial assistance designed to meet, in whole or in part, the cost of such course of education.

(4) No person attending any place of education, except with his own consent (or, if he is a minor, the consent of his parent or guardian) shall be required to receive religious instruction, or to take part in or attend any religious ceremony or observance, which relates to a religion or religious body or denomination other than his own.

18.—(1) Nothing contained in or done under any law in so far as it restricts—

Status of
marriage.

(a) marriage; or

(b) any other relationship in respect of which any rights and obligations similar to those pertaining to marriage are conferred upon persons as if they were husband and wife,

to one man and one woman shall be regarded as being inconsistent with or in contravention of the provisions of this Chapter.

CONSTITUTION OF JAMAICA

(2) No form of marriage or other relationship referred to in subsection (1), other than the voluntary union of one man and one woman may be contracted or legally recognized in Jamaica.

Application
for redress.

19.—(1) If any person alleges that any of the provisions of this Chapter has been, is being or is likely to be contravened in relation to him, then, without prejudice to any other action with respect to the same matter which is lawfully available, that person may apply to the Supreme Court for redress.

(2) Any person authorized by law, or, with the leave of the Court, a public or civic organization, may initiate an application to the Supreme Court on behalf of persons who are entitled to apply under subsection (1) for a declaration that any legislative or executive act contravenes the provisions of this Chapter.

(3) The Supreme Court shall have original jurisdiction to hear and determine any application made by any person in pursuance of subsection (1) of this section and may make such orders, issue such writs and give such directions as it may consider appropriate for the purpose of enforcing, or securing the enforcement of, any of the provisions of this Chapter to the protection of which the person concerned is entitled.

(4) Where any application is made for redress under this Chapter, the Supreme Court may decline to exercise its powers and may remit the matter to the appropriate court, tribunal or authority if it is satisfied that adequate means of redress for the contravention alleged are available to the person concerned under any other law.

(5) Any person aggrieved by any determination of the Supreme Court under this section may appeal therefrom to the Court of Appeal.

CONSTITUTION OF JAMAICA

(6) Parliament may make provision or authorize the making of provision with respect to the practice and procedure of any court for the purposes of this section and may confer upon that court such powers, or may authorize the conferment thereon of such powers, in addition to those conferred by this section, as may appear to be necessary or desirable for the purpose of enabling that court more effectively to exercise the jurisdiction conferred upon it by this section.

20.—(1) In this Chapter—

Interpretation.

“contravention”, in relation to any requirement, includes a failure to comply with that requirement, and cognate expressions shall be construed accordingly;

“court” means any court of law in Jamaica other than a court constituted by or under service law and—

(a) in sections 13(3)(a), 14 and 16 (1), (2), (3), (5), (6), (7) and (9) (excluding the proviso thereto) of this Constitution includes, in relation to an offence against service law, a court so constituted; and

(b) in section 14 of this Constitution includes, in relation to an offence against service law, an officer of a defence force, or the Police Service Commission or any person or authority to whom the disciplinary powers of that Commission have been lawfully delegated;

“period of public disaster” means any period during which there is in force a Proclamation by the Governor-General declaring that a period of public disaster exists;

CONSTITUTION OF JAMAICA

“period of public emergency” means any period during which—

- (a) Jamaica is engaged in any war;
- (b) there is in force a Proclamation by the Governor-General declaring that a state of public emergency exists; or
- (c) there is in force a resolution of each House of Parliament supported by the votes of a two-thirds majority of all the members of each House declaring that democratic institutions in Jamaica are threatened by subversion;

“service law” means the law regulating the discipline of a defence force or police officers.

(2) A Proclamation made by the Governor-General shall not be effective for the purposes of subsection (1) unless it is declared that the Governor-General is satisfied—

- (a) that a public emergency has arisen as a result of the imminence of a state of war between Jamaica and a foreign State;
- (b) that action has been taken or is immediately threatened by any person or body of persons of such a nature and on so extensive a scale as to be likely to endanger the public safety or to deprive the community, or any substantial portion of the community, of supplies or services essential to life;
- (c) that a period of public disaster has arisen as a result of the occurrence of any earthquake, hurricane, flood, fire, outbreak of pestilence, outbreak of infectious disease or other calamity, whether similar to the foregoing or not.

(3) A Proclamation made by the Governor-General for the purposes of and in accordance with this section—

- (a) shall, unless previously revoked, remain in force for fourteen days or for such longer period, not exceeding three months, as both Houses of Parliament may determine by a resolution supported by a two-thirds majority of all the members of each House;

CONSTITUTION OF JAMAICA

(b) may be extended from time to time by a resolution passed in like manner as is prescribed in paragraph (a) for further periods, not exceeding in respect of each such extension a period of three months;

(c) may be revoked at any time by a resolution supported by the votes of a two-thirds majority of all the members of each House.

(4) A resolution passed by a House for the purpose of paragraph (c) of the definition of "period of public emergency" in subsection (1) may be revoked at any time by a resolution of that House supported by the votes of a majority of all the members thereof.

(5) The court shall be competent to enquire into and determine whether a proclamation or resolution purporting to have been made or passed under this section was made or passed for any purpose specified in this section or whether any measures taken pursuant thereto are reasonably justified for that purpose.

21. *[Repealed by Act 12 of 2011.]*

22. *[Repealed by Act 12 of 2011.]*

23. *[Repealed by Act 12 of 2011.]*

24. *[Repealed by Act 12 of 2011.]*

25. *[Repealed by Act 12 of 2011.]*

26. *[Repealed by Act 12 of 2011.]*

CHAPTER IV

THE GOVERNOR-GENERAL

27. There shall be a Governor-General of Jamaica who shall be appointed by Her Majesty and shall hold office during Her Majesty's pleasure and who shall be Her Majesty's representative in Jamaica.

Establish-
ment of
office of
Governor-
General.

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GENERAL OVERVIEW OF THE JUDICIAL FUNCTIONS OF THE JUSTICE OF THE PEACE

LAY MAGISTRATES' COURT

1. Purpose of Establishment

The origin is English and was conferred by a statute of 1826 to sessions of Justices of the Peace held to supervise the list of persons qualified to serve on juries. The power of the sessions was later enlarged to deal with crimes of a petty nature. In Jamaica, Lay Magistrates' Courts (formerly Court of Petty Sessions) were established by the British. They are presided over by Justices of the Peace; usually two or more Justices of the Peace sit.

2. Jurisdiction

The jurisdiction of Justices of the Peace in the Lay Magistrates' Court is summary criminal. In other words, the Justice of the Peace is empowered to deal summarily with criminal matters for which the court is seized with jurisdiction. Lay Magistrates' Courts are confined to acts committed within the parish in which the Court sits.

3. Constitution and Quorum

According to Section 2 of the Justices of the Peace Jurisdiction Act, complaints and information shall be heard, tried, determined and adjudged by one or two or more Justices of the Peace as shall be directed by the enactment upon which such complaint or information shall be framed or such enactment as there may be in that behalf.

4. Eligibility

Justices of the Peace who are desirous of serving in the Lay Magistrates' Court should make this known to the Custos of the parish, who will in turn make the relevant arrangements for specialized training.

To be qualified, the Justice of the Peace: (applies to all courts and panels)

- Should not be on the supplemental list
- Should not be older than 74
- Should have been commissioned as a JP for at least 2 years
- Should be a lay person

Note: The "Courts of Petty Sessions" were renamed "Lay Magistrates' Courts" in April 2018.

GENERAL OVERVIEW OF THE JUDICIAL FUNCTIONS OF THE JUSTICE OF THE PEACE (*con't.*)

THE CHILDREN'S COURT

1. Purpose of Establishment

The separate summary jurisdiction of the Children's Court was created largely in the interests of children, to prevent them from appearing in court with adult offenders.

2. Jurisdiction

Child Care and Protection Act (2004) - Third Schedule

In each parish, except in those parishes in which a Family Court has jurisdiction, the Minister shall appoint to a special panel of Justices of the Peace, those Justices of the Peace whom he may consider to be specially qualified to deal with children cases.

No Justice of the Peace shall be qualified to sit as a member of a Children's Court unless he/she is a member of such a panel.

3. Constitution and Quorum

Subject to the provisions of paragraph 4 of the Child Care and Protection Act (2004), a Children's Court shall be constituted of a Parish Court Judge as chairman, and two Justices of the Peace, one of whom shall be a woman, and both of whom shall be members of the panel referred to in paragraph 1 of the Child Care and Protection Act (2004).

GENERAL OVERVIEW OF THE JUDICIAL FUNCTIONS OF THE JUSTICE OF THE PEACE (*con't.*)

SPIRIT LICENCE PANEL

1. Purpose of Establishment

The Spirit Licence Act regulates the sale of alcoholic spirits/beverages by requiring establishments/persons involved in their sale to be licensed for such purpose.

2. Constitution and Quorum

The Spirit Licence Session is conducted by a licensing authority which consists of not more than seven, or less than five, Justices of the Peace, one of whom is the chairman. A panel of three constitutes a quorum and three Justices of the Peace are empowered at any session to hear, determine, grant or refuse applications for any of the several licenses provided for under the Act.

The Licensing Authority is appointed by the Minister who constitutes a Licensing Authority for each parish. The chairman and vice chairman are also appointed by the Minister. The Licensing Authority must hear, consider and deal with all applications and all oppositions made in relation thereto. It may also hear and determine applications for transfers of licence.

Disqualification from appointment on licensing authority

A Justice of the Peace who:

- (a) is licensed to sell spirits within the parish;
- (b) is directly or indirectly pecuniarily interested in any licence or in any application for a licence or for a transfer of licence;
- (c) is in any way directly or indirectly interested in the manufacture or sale of any spirit;

is not qualified to be appointed or to sit as a member of the Licensing Authority.

A Justice of the Peace who sits at a licensing session whilst he is not qualified to do so would have committed an offence and would be liable upon summary conviction to a fine not exceeding \$2,000.00, and in addition, any licence or transfer of licence in which he is interested, granted when he is sitting, would be forfeited on his being fined.

GENERAL OVERVIEW OF THE JUDICIAL FUNCTIONS OF THE JUSTICE OF THE PEACE (*con't.*)

DRUG COURT

1. Purpose of Establishment

The **Drug Court (Treatment and Rehabilitation of Offenders) Act** establishes the Drug Court and emphasizes rehabilitation as an alternative to the penal sanction for persons whose criminal activities bear a co-relation to drug use.

2. Jurisdiction

Under the Schedule to the Act, the Minister (of Justice) is given power to appoint a Special Panel of Justices of the Peace to deal with cases before the Drug Court.

No Justice of the Peace shall be qualified to sit unless he or she is a member of the Panel.

3. Constitution and Quorum

Any sitting of a Parish Court may be declared by the presiding Parish Court Judge to be a Drug Court.

When constituted, the Drug Court shall consist of:

- (a) the Parish Court Judge;
- (b) two Justices of the Peace, one of whom must be a woman and both of whom shall be members of the special panel of Justices of the Peace in the parish appointed by the Minister.

In any sitting of the Drug Court, other than a trial to determine guilt or innocence, two Justices of the Peace are required to sit with a Parish Court Judge.

THE ROLE OF THE JUSTICES OF THE PEACE UNDER THE PROCEEDS OF CRIME ACT

The Justice of the Peace has a role to play in the fight to combat organized crime, particularly in the drive to divest such persons of their ill-gotten gains or to prevent the funding of unlawful activity. Accordingly, the **Proceeds of Crime Act, 2007** prescribes a procedure for the seizure and forfeiture of such funds referred to as civil forfeiture.

Section 56(i)(b) of the **Proceeds of Crime Act** (the Act) establishes that one of the purposes of Part IV of the Act is enabling cash which is, or represents property, obtained through unlawful conduct or, which is intended to be used in unlawful conduct, to be forfeited in civil proceedings before a Parish Court. **Sections 72 to 83** of the Act then go on to establish the procedure for the seizure, detention and subsequent forfeiture of such cash.

There are certain definitions of which a Justice of the Peace must be aware:

Cash means the following items found at any place in Jamaica: **Section 55(1)**

- Notes and coins in any currency
- Postal Orders
- Cheques of any kind, including Traveller's cheques
- Bankers' drafts
- Bearer bonds and bearer shares
- Monetary instruments of any kind, designated by the Ministry by Order.

Authorized Officer

A Constable or a Customs Officer or any other person designated as such by the Minister by order for the purposes of the Act. **Section 55(1)**

Unlawful Conduct means:

- Conduct that occurs in Jamaica and is unlawful under the criminal law of Jamaica; OR
- Conduct that occurs in a country outside of Jamaica and is unlawful under that country's criminal law and unlawful under the criminal law of Jamaica. **Section 55(1)**

Recoverable Property

This is property obtained through unlawful conduct. **Section 84.**

Sections 75 and 76

Of special importance to the Justices of the Peace are **Sections 75 and 76** of the Act.

Section 75 of the Act deals with the seizure of cash.

Section 76 of the Act deals with the detention of seized cash.

An Authorized Officer may seize any cash if the officer has reasonable grounds to suspect that the cash is either recoverable property or intended by any person for use in unlawful conduct. **Section 75(1).**

However, the sum so seized must be at least J\$100,000.00 or its equivalent in any currency **Section 75(3) and 55(1).** The Minister by order may vary this amount.

Any cash so seized may be detained for an initial period of 72 hours. **Section 76(1).** However, after the 72-hour period, the cash can only be further detained by order of a Parish Court or a Justice of the Peace. **Sections 76(2) and 76(3).**

The Authorized Officer may make an application for the cash to be further detained, beyond the 72-hour period, before the Parish Judge or Justice of the Peace and must do so before the initial 72 hours after seizure expires. **Section 76(4).**

When the application is granted, the Parish Court or Justice of the Peace may only make an order further detaining the cash for 3 months from the date of the order. **Section 76(2)(a)**

The Court or Justice of the Peace, when considering an application in the case of seized cash, should only grant an order to further detain that cash if satisfied by the applicant that:

- i. There are reasonable grounds to suspect that the cash was obtained through unlawful conduct and further detention is justified while its origin is investigated or consideration is given to bringing proceedings against any person with which the cash is connected; or
- ii. There are reasonable grounds to suspect that the cash was obtained through unlawful conduct and proceedings have been started but not concluded against a person for an offence with which the cash is connected; or
- iii. There are reasonable grounds to suspect that the cash is intended to be used in unlawful conduct and further detention is necessary while investigations are conducted into its intended use or a determination is made whether to bring proceedings against any person for an offence to which the cash is connected; or
- iv. There are reasonable grounds to suspect that the cash is intended to be used in unlawful conduct and proceedings have been started but not concluded against any person for an offence to which the cash is connected.

The Justice of the Peace has no further power to grant any other order under the Act.

When the application is made to the Justice of the Peace, certain documents will be presented by the applicant:

1. The first application for continued detention of seized cash supported by an affidavit or a statement which will outline the grounds on which the order is sought. The Justice will also see a receipt for the seized cash, which will give a description of the cash seized including the amount and type of currency. The Justice of the Peace should examine this application to ensure that the provisions of **Section 76(5)** are satisfied. In relation to the Receipt, the Justice of the Peace should take note of the date and time of seizure of the cash to ensure that the application is being made within time, that is, within 72 hours from the time of seizure. The Justice of the Peace should also pay attention to the amount of cash, bearing in mind that currently, the minimum amount that can be seized is \$100,000.00 or its equivalent in any currency.
2. If the Justice of the Peace is satisfied that the application should be granted, the applicant will provide a first order for continued detention which the Justice of the Peace will sign and date. Also provided will be a notice to the person affected by the continued detention of the seized cash, which the Justice of the Peace should also sign and date.

The Justice of the Peace must pay close attention at all times to the requirement of the legislation and be mindful that his responsibility is to ensure that he is satisfied at all times that there are reasonable grounds for granting the order. The role of Justice of the Peace is not to assist the Authorized Officer in obtaining an order to further detain cash, which they otherwise have no grounds to detain.

THE ROLE OF THE JUSTICES OF THE PEACE IN RELATION TO THE ZONES OF SPECIAL OPERATIONS

In July 2017, the **Law Reform (Zones of Special Operations) (Special Security and Community Development Measures) Act** was enacted. This is an Act to provide for special measures for upholding and preserving the rule of law, public order, citizen security and public safety within certain geographically defined areas of Jamaica; and for connected matters.

The Justice of the Peace who serves as a Lay Magistrate in a parish has a role to play in a Zone of Special Operation (ZOSO), if declared in that parish, particularly as it relates to the arrest and detaining of persons.

The objects of the Act are to:

- a) Empower the Prime Minister in Council to declare an area as a zone of special operations;
- b) Uphold the rule of law while protecting the fundamental rights and freedoms of persons who reside or conduct lawful business in a Zone;
- c) Conduct law enforcement activities to rid a Zone of all illegal weapons, ammunition and other contraband;
- d) Empower members of the Joint Force to search a person, vehicle or place without a warrant, within a Zone, if they reasonably suspect that an offence has been, is being or is about to be committed;
- e) Provide that the Joint Command may establish a cordon and declare a curfew in a Zone;
- f) Promote social and economic development in a Zone through the efforts of various Government agencies and civil society; and
- g) Provide for the establishment of the Committee to, among other things, develop a sustainable development plan for the Zone.

A Zone of Special Operations may be declared by the Prime Minister in Council, where the Prime Minister in Council has reasonable grounds to believe that certain circumstances are occurring in an area. The Prime Minister in Council is defined as “*the Prime Minister presiding as the chairman of the National Security Council*”.

For an area to be declared a Zone of Special Operations, the following circumstances must exist to necessitate the declaration of a Zone:

- (i) rampant criminality;
- (ii) gang warfare;
- (iii) escalating violence;
- (iv) murder;
- (v) a threat to the rule of law; and
- (vi) a threat to public order.

The order must specify the area of the Zone and the period during which the Zone is to operate. The Zone can, in the first instance, be declared for a period not exceeding sixty days. This period can be extended for a subsequent period not exceeding sixty days.

The Act also provides the following definitions:

- **National Security Council** is defined to mean “*the committee of Cabinet with responsibility for defence and national security.*”
- **Joint Command** are persons from the Jamaica Defence Force (JDF) and the Jamaica Constabulary Force (JCF) who are designated to lead operations in a Zone.
- **Joint Force** means “*the members of the JDF and the members of the JCF who are assigned to operate within a Zone*”.

Accountability

The Act requires that the Prime Minister in Council shall, within fourteen days of the declaration of a Zone and after each extension, make a statement to Parliament.

The Act also requires that the Joint Command be accountable and act in a transparent manner within a Zone of Special Operations. This includes the requirement to adhere to written accountability and reporting systems, failure of which may result in disciplinary action being taken against the member.

Arrest and Detention of Persons

A person may be arrested or detained during operations in a Zone only if the person in charge of the operations is satisfied that there are reasonable grounds to arrest or detain a person. Persons may be held in custody for a period not exceeding twenty-four hours if a Justice of the Peace (more specifically, a Lay Magistrate) is satisfied that the arrest or detention of the person is required in the interest of justice, having regard to such further investigations as may be necessary. At the expiration of the twenty-four-hour period, the arrested or detained person is to be taken before a Judge of a Parish Court. Other provisions are included in the Act addressing the holding of an identification parade and the release of the person.

Search and Seizure

Powers of search of a place, vehicle or person may be exercised by a member of the Joint Force when conducting operations within a Zone, without a warrant, but only in circumstances where there is reasonable suspicion that an offence is in the course of being committed or has been committed or is about to be committed. Safeguards are built into the power of search. One such safeguard is that the owner, occupier or person in possession of the vehicle that is being searched is to be afforded every opportunity to observe everything done in relation to the search.

Social Intervention Committee

The Act also provides for measures to target the deeper societal issues that are a factor in creating the environment that aids the criminal activity. It is in this context that the Act requires the Prime Minister in Council to establish a Social Intervention Committee within five working days of the declaration of a Zone.

The constitution and role of the Social Intervention Committee are stated in the Act and include matters such as access to skills training for young adults within the Zone, regularizing land tenure, housing and settlements, repairing and maintaining pipes and cleaning of drains and gullies. The Social Intervention Committee is also required to pay particular attention to vulnerable persons who live, work and attend school in the Zone.

ALTERNATIVE DISPUTE RESOLUTION

Alternative Dispute Resolution (ADR) is the term used to describe the various methods of resolving disputes, which are usually outside litigation. Most ADR techniques utilize a neutral third party who can help the parties come to an agreement without resorting to litigation. ADR techniques and processes include Mediation, Arbitration, Conciliation, Negotiation and the philosophy of Restorative Practices.

In recent years, ADR practices have become prevalent and especially within the judicial process, the need for ADR is recognized and recommended. The use of ADR has been quite instrumental in resolving many legal disputes such as commercial disagreements, professional liability matters, family disputes, divorce and personal injury. Owing to its success, more and more courts encourage and have asked, parties to consider the use of some form of ADR.

MEDIATION

MEDIATION is a voluntary dispute-resolving process in which a neutral third party - the mediator - facilitates and coordinates the negotiations of disputing parties. Mediation can be conducted in the court system, in community centres, police stations, schools or in any setting where the disputants choose to use a neutral third party to help them settle their differences.

MEDIATION is quicker, less stressful and cheaper than going to court. Once a settlement has been reached a **mediation** agreement can be drawn up. Parties tend to keep to the **mediation** agreement because they have prepared the terms themselves

MEDIATION is directed towards reaching solutions. While past circumstances may be mentioned, Mediation is **not** focused on analysis of the past; it is future-oriented.

MEDIATION produces creative solutions "owned" by the participants. Persons are encouraged through the process of Mediation to propose and agree on solutions they have designed themselves and therefore are more likely to follow through on those agreements.

MEDIATION creates a sense of involvement and satisfaction for the participants. **There are no losers.**

MEDIATION is a time saver. Many problems can be resolved in three hours. Even disputes which take several sessions before resolution are more productive and less exhausting than going to Court.

MEDIATION allows for continued relationships; because participants feel successful and dignity is preserved, people can continue to live and work together after a dispute.

MEDIATION can help parties avoid the extremes of firing, resignation, ongoing quarrels, separation or litigation.

MEDIATION allows participants to practice more effective problem-solving techniques on their own.

In summary, some of the benefits of **MEDIATION** include -

- confidentiality
- speed
- cost savings
- maintaining relationships
- flexibility
- informal
- creative solutions
- party control and choice

This Mediation Training is offered to Justices of the Peace by the Justice Training Institute, Ministry of Justice in keeping with one of the Ministry's continued initiatives to engender a justice system that will support improved access to justice at the community level and empower Justices of the Peace to be able to administer various forms of alternative dispute resolution.

RESTORATIVE JUSTICE & RESTORATIVE PRACTICE

(Adapted in part from the IIRP)

Restorative Justice and Restorative Practice are sometimes used interchangeably.

The International Institute for Restorative Practices (IIRP) however distinguishes between the two terms. According to IIRP, Restorative Practices is a social science that studies how to build social capital and achieve social discipline through participatory learning and decision-making. This also includes the use of informal and formal processes that precede wrongdoing, those that proactively build relationships and a sense of community to prevent conflict and wrongdoing.

Whereas, Restorative Justice is seen as a subset of Restorative Practices. Restorative Justice is reactive, consisting of formal or informal responses to crime and other wrongdoing after it occurs.

Restorative Justice includes a process whereby all parties with a stake in a particular offence come together to collectively resolve how to deal with the aftermath of the offence and its implications for the future.

The use of restorative practices helps to:

- reduce crime, violence and
- bullying
- improve human behaviour
- strengthen civil society
- provide effective leadership
- restore relationships
- repair harm

The Ministry of Justice is on a drive to engender a justice system that will support improved access to justice at the community level and empower Justices of the Peace to be able to

administer various forms of alternative dispute resolution. Training is offered in these areas by the Restorative Justice Unit of the Ministry of Justice.

The training aims to provide Justices of the Peace with an understanding of the principles of restorative justice and to equip them with the requisite skills to allow them to identify and practice appropriate restorative approaches. This will lead to the prevention of conflicts, resolution of disputes and reduction of crime.

In 2016, the **Law Reform (Miscellaneous Amendments) (Restorative Justice) Act** was passed to provide for the use of restorative justice procedures as an option in the criminal justice system.

CHILD DIVERSION IN JAMAICA

Child Diversion is another alternative measure to deal with child offenders who may come in contact with the justice system.

Need for a Child Diversion Policy

The challenges faced by children in conflict with the law have brought into sharp focus the need for deliberate policy approaches that adhere to basic human rights, and the rights of children who face the prospect of being deprived of their liberty. The effectiveness of the treatment of children entering the formal justice system, whether they seek the protection of the law or are in conflict with the law, has called for urgent scrutiny and evaluation and a plan to effect meaningful changes. Jamaica espouses the mantra that the- Children are our future thus, the threat posed by crimes committed by or against children has fueled public outcry in recent years and demands urgent attention.

Diversion is defined as providing opportunities for persons who would otherwise face normal prosecution in the Criminal Justice System so that they can avoid adjudication of delinquency or conviction for a summary offence and instead be directed into an alternative programme, including treatment where appropriate.

National Child Diversion Programme

In 2018, further to the National Child Diversion Policy that was created in 2015, Parliament passed the **Child Diversion Act**, which came into effect in 2019. Since then, the Ministry of Justice has been implementing the National Child Diversion Programme, in furtherance of the Child Diversion Act.

Child Diversion is the exercise of implementing measures for dealing with children who are alleged, accused of, or recognized, to have infringed the penal law, without resorting to formal judicial proceedings. It is considered in the interest of individuals, and to further the public interest, to use some form of alternative measures to deal with these categories of offenders. In most cases, the diversion of children provides greater benefits, to the offender, victim and the society, than would the formal criminal justice process.

Child Diversion creates a circle of care by:

- Rehabilitating child offenders (these are children who commit a diversion offence);
- Reducing the number of children exposed to the criminal justice system;
- Empowering communities to rehabilitate and re-socialize child offenders.

Under the Child Diversion Programme, a **Child Diversion Committee** has been established in all fourteen parishes, with Kingston and St Andrew sharing a committee. These Committees are designed to keep (or “divert”) children who are accused of minor offences away from the criminal justice system.

The composition of a Diversion Committee is as follows:

- Justice of the Peace;
- Probation Officer;
- Children's Officer;
- Minister of Religion;
- School Guidance Counselors;
- Police Officer; and
- An expert as needed.

Child Diversion is intended for children, 12 to 17 years old, who are accused of, or have committed certain offences.

The steps involved in the **child diversion process** are:

- 1) Referral by the Police or a Judge;
- 2) The child accepts responsibility for the offence;
- 3) The victim gives consent for the offender to participate;
- 4) Risk Assessment conducted by a Child Diversion Officer;
- 5) Treatment Plan developed, approved and implemented;
- 6) Reintegration into the community if the programme is successful.
 - If, however, the treatment plan/programme is unsuccessful, the matter is referred (back) to the court.

Justices of the Peace may form part of the Diversion Committee or become involved in the implementation of the approved treatment plan to provide options such as counselling, mentorship, community service and/or training.

BAIL

Justices of the Peace play an important role in the administration of the bail. Authority is vested in Justices of the Peace to grant or refuse bail, in accordance with the provisions of the **Bail Act** and other laws, including the Justices of the Peace Jurisdiction Act and the Constabulary Force Act.

The current **Bail Act, 2023** was enacted in November 2023 and repeals (and replaces) the Bail Act of 2000 and allows for, *inter alia*, bail to be considered at three stages, pre-charge, post-charge and post-conviction.

Bail is the process whereby a defendant is released from custody in accordance with the provisions of the **Bail Act**, until his surrender to custody on such dates and at such place, as may be determined by the court or any other competent authority which granted the bail.

The person applying for bail is described as the **defendant**. The terms ‘*accused person*’, ‘*prisoner*’, *etc.*, should no longer be used. As well, instead of referring to the “*accused turning up for his trial*” when given bail, the defendant is required to ‘*surrender to custody*’; that is, surrendering into custody at the time and place appointed for the defendant to do.

According to the Bail Act, for the purposes of bail, a **defendant** is an individual who:

- a) is charged with an offence;
- b) is convicted of an offence;
- c) is detained for an offence (*but not yet charged*);
- d) is arrested for an offence (*but not yet charged*); or
- e) (for whom) an arrest warrant (endorsed for bail) has been issued.

Subject to the provisions of the **Bail Act**, a defendant is entitled to be granted bail by a deciding official. Note however that, not every defendant receives bail. The circumstances under which bail may be denied are set out in the Bail Act.

BAIL AND THE CONSTITUTION

In addition to the provisions under the **Bail Act**, under the Constitution of Jamaica, individuals have the right to liberty, the right to freedom of movement, and are presumed innocent until they are proven guilty, among other rights. For more information on these, and other rights, you may review **Chapter 3 of the Constitution of Jamaica**, which details the Fundamental Rights and Freedoms afforded to persons.

The rights afforded under the Constitution, coupled with the entitlement to bail, mean that a defendant has the right not to be denied bail unless there is just cause.

THE QUESTION OF BAIL

The question of bail to a defendant shall be decided in accordance with the **Bail Act**, by a deciding official. Once the question of bail has been considered, the deciding official may either grant bail or not grant bail.

A person arrested, detained or charged with an offence should not be held in custody for longer than 48 hours without the question of bail being considered by a deciding official, unless the Bail Act or any other law, provides otherwise.

Deciding official refers to the legal authority that is competent to make the decision regarding the granting of bail, and includes the:

- Court;
- Judge (*Parish Court, Supreme Court, Court of Appeal*);
- Justice of the Peace; or
- Police***

**** Police who served as the arresting officer or who is or was involved in the investigation of the offence to which the bail matter is concerned, should not participate in determining bail for the concerned offence.*

THE QUESTION OF BAIL WHERE THE DEFENDANT HAS BEEN ARRESTED OR DETAINED

The question of bail to a defendant shall be decided by a **Justice of the Peace or a Police** (at or above the rank of Superintendent), within **48 hours** after the defendant has been **arrested or detained** (*but not yet charged*) on reasonable grounds that the defendant has committed an offence listed in **Part I of the First Schedule** of the Bail Act.

Where, however, more time (than the 48 hours) is required so that an **identification parade** can be held in relation to the defendant, the defendant shall instead be brought before a Judge within **120 hours** of the arrest or detention, for the question of bail to be determined. A Judge may also specify further time should the identification parade not be held within the 120 hours.

If the defendant was **arrested or detained** on reasonable grounds that the defendant has committed an offence that is **not** listed in **Part I of the First Schedule** of the Bail Act and the defendant has **not** been charged within 48 hours after being arrested or detained, then the defendant shall be **released from custody**, without condition(s).

Where bail was **not** granted by a Justice of the Peace or a Police to the defendant who was **arrested or detained** (*but not yet charged*), the Police shall bring the defendant before a Judge of a Parish Court within **48 hours** after the initial 48 hours since the defendant was arrested or detained has expired, for the question of bail to be determined.

**FACTORS WHICH MUST BE TAKEN INTO ACCOUNT
WHEN DECIDING BAIL FOR THE DEFENDANT WHO WAS
ARRESTED OR DETAINED**

In deciding the question of bail to a defendant who has been **arrested or detained** (*but not yet charged*), the deciding official, to include **Justices of the Peace**, shall consider the following:

- a) the grounds on which it is alleged there is reason to believe the defendant committed the offence;
- b) the stage of the investigations thus far, and the manner in which they have been conducted (including how expeditiously they have been conducted);
- c) whether further time would enable a charge to be preferred against the defendant;
- d) the conduct of the defendant;
- e) the reasons given as to why the defendant has not yet been charged;
- f) any conditions of bail imposed on the defendant; and
- g) any other factor which the deciding official considers relevant.

THE QUESTION OF BAIL WHERE THE DEFENDANT HAS BEEN CHARGED

The question of bail to a defendant who has been **charged** with an offence listed in **Part I of the First Schedule** of the Bail Act shall be decided by a Judge, Justice of the Peace or police, within **48 hours** after the defendant has been taken into custody, after being charged with said offence.

Where however, the defendant has been **charged** with an offence listed in **Part II of the First Schedule** of the Bail Act, the question of bail to a defendant shall be decided **only** by a Judge, and within **48 hours** after the defendant has been taken into custody after being charged.

CIRCUMSTANCES WHERE THE DEFENDANT HAS BEEN CHARGED WITH AN OFFENCE THAT IS NOT PUNISHABLE WITH IMPRISONMENT

Where the offence with which the defendant has been charged is one which is **not** punishable with imprisonment if the defendant is convicted, the deciding official, to include Justices of the Peace, shall grant bail to the defendant, unless there is just cause to refuse bail.

That is, even if the offence with which the defendant has been charged is **not** punishable with imprisonment, **bail may be denied**, if any of the following circumstances exist:

- 1) it appears to the deciding official that, having been previously granted bail in any proceedings, the defendant failed to surrender to custody and there are reasonable grounds to believe that if released on bail the defendant would fail to surrender to custody;
- 2) the deciding official is satisfied that the defendant should be kept in custody for the defendant's protection or, if the defendant is a child, for the defendant's welfare;
- 3) if the defendant is currently in custody serving a sentence imposed by a court or any authority acting under the **Defence Act**; or
- 4) having been released on bail for the offence, the defendant has since been arrested for having failed to surrender to custody at the time and place that was appointed for the defendant to do so; that is, the defendant absconded while released on bail.

CIRCUMSTANCES WHERE THE DEFENDANT HAS BEEN CHARGED WITH AN OFFENCE THAT IS PUNISHABLE WITH IMPRISONMENT

Where the offence with which the defendant has been charged is one which is **punishable with imprisonment**, the deciding official, to include Justices of the Peace, shall grant bail to the defendant, unless there is just cause to refuse bail.

Bail to the defendant may be denied if the deciding official is satisfied that there is sufficient cause for holding the defendant in custody having considered the following circumstances:

- 1) the deciding official is satisfied that there are grounds for believing that the defendant, if released on bail, would:
 - a) fail to surrender to custody (that is, would abscond);
 - b) commit an offence while on bail; or
 - c) interfere with witnesses or otherwise obstruct the course of justice, whether in relation to defendant or any other person.
- 2) if this is the first time that bail to the defendant is being considered for this particular offence, and the deciding official is satisfied that it has not been practicable to obtain sufficient information in order to make a decision regarding bail because of insufficient time since the institution of proceedings against the defendant;
- 3) if the defendant's case is adjourned for the purpose of inquiries, or for a report to be made, and it appears to the deciding official that it would be impracticable to complete the inquiries or make the report, without keeping the defendant in custody;
- 4) having been released on bail for the offence, the defendant has since been arrested for having failed to surrender to custody at the time and place that was appointed for the defendant to do so; that is, the defendant absconded while released on bail;
- 5) the defendant is charged with an offence which is alleged to have been committed when the defendant was out of custody on bail;
- 6) the defendant is currently in custody serving a sentence imposed by a court or any authority acting under the **Defence Act**;
- 7) the deciding official is satisfied that the defendant should be kept in custody for the defendant's protection or, if the defendant is a child, for the defendant's welfare.

FACTORS WHICH MUST BE TAKEN INTO ACCOUNT WHEN DECIDING BAIL FOR THE DEFENDANT WHO WAS CHARGED

In deciding whether there are grounds for believing that the defendant who was **charged**, if released on bail, would abscond while released on bail, or commit an offence while on bail, or interfere with witnesses or otherwise obstruct the course of justice, the deciding official, to include **Justices of the Peace**, shall consider the following:

- 1) the nature and seriousness of the offence;
- 2) the need for preserving public order and the likelihood of the threat to public order should the defendant be released on bail;
- 3) the need for preventing crime and the likelihood that the defendant will commit an offence when released on bail;
- 4) the prevalence of offences of that type in the community or in Jamaica;
- 5) the defendant's character, antecedents, association and community ties;
- 6) the defendant's record with regard to the fulfilment of the defendant's obligations under previous grants of bail;
- 7) except in the case of the defendant whose case is adjourned for inquiries or a report, the strength of the evidence that the defendant committed the offence or failed to surrender to custody;
- 8) whether the defendant has been convicted on any previous occasion of an offence which is punishable with imprisonment;
- 9) whether the defendant is in the same household or community as any victim of the offence, or any witness to the offence, and the sense of peace and security of the public, or among the members of any household or community will be undermined or jeopardized by the release of the defendant on bail;
- 10) any evidence that a firearm was used in the commission of the offence; and that the defendant came into possession of the firearm unlawfully, or that firearm is a prohibited weapon as defined in **section 2 of the Firearms (Prohibition, Restriction and Regulation) Act**;

- 11) the defendant's mental health profile and whether the defendant's mental state renders it likely that danger is posed to any person; and
- 12) any other factors that appear to be relevant.

WHERE THE DEFENDANT HAS BEEN CHARGED WITH MURDER

Section 6(4) of the Bail Act makes further provisions which allow the deciding official to **deny** bail if the offence that the defendant is charged with is **murder**, and the deciding official is satisfied that the conviction of the defendant is likely based on the strength of the evidence that the defendant committed the offence(s) concerned.

This is applicable where:

- i) self-defense does not arise on the prosecution's case;
- ii) the circumstances relating to the murder fall within a specified section of the Offences Against the Person Act¹;
- iii) the offence was committed within a Zone of Special Operations²;
- iv) the offence was committed within an area where a state of public emergency is in force³; or
- v) the offence was committed within any area which a cordon is established, or a curfew is imposed, under the Constabulary Force Act⁴.

¹under section 2 (1)(a) to (f) of the Offences Against the Person Act

²declared under the Law Reform (Zones of Special Operations) (Special Security and Community Development Measures)

³under the Emergency Powers Act

⁴Section 50B of the Constabulary Force Act

THE QUESTION OF BAIL WHERE THE DEFENDANT HAS BEEN CONVICTED

Bail may also be considered, by a Judge, for a defendant who was **convicted** of an offence, if the defendant:

- i) was convicted of an offence **not** listed in **Part II of the First Schedule** of the Bail Act;
- ii) was out of custody on bail immediately before he was convicted of this offence; and
- iii) has made an appeal against the conviction or against any sentence of imprisonment imposed in relation to this conviction.

The Judge to make this decision shall either be the Judge before whom the defendant was convicted, or a Judge of the Court of Appeal.

On the application for bail by a defendant who was **convicted** of an offence, the Judge may grant bail if satisfied that exceptional circumstances so warrant the grant of bail and may impose conditions on the grant of bail which the Judge considers appropriate.

BAIL AND THE CHILD

Subject to the provisions under any other law, **where the defendant is a child**, the question of bail shall be determined by a Children's Court.

Further, if any order is made for the child to be kept in custody, this shall be in accordance with the Child Care and Protection Act.

CONDITIONS FOR RELEASE ON BAIL

Where the deciding official has granted bail to a defendant who was **arrested or detained** (*but not yet charged*), the deciding official may require the defendant to comply with any one or more **conditions of bail**.

The deciding official may impose these condition(s) if it appears to the deciding official that this is necessary to secure that the defendant:

- i) surrenders to custody, as required;
- ii) does not commit an offence while on bail; and
- iii) does not interfere with witnesses or otherwise obstruct the course of justice.

One or more of the following conditions of bail may be required of the defendant to whom bail is granted:

- a) to report to a police station at specified times and dates;
- b) to provide a surety to secure the defendant's surrender to custody and/or for the payment of a bond in the amount specified;
- c) not to contact witnesses, be it directly or indirectly, nor in any way communicate or associate with witnesses;
- d) that the defendant informs the officer in charge of the nearest police station before the defendant travels overseas or outside of the community where the defendant resides;
- e) where the **deciding official is a court**, such other conditions as the court finds necessary; this may include requiring:
 - i. the surrender of the defendant's travel documents to the court with jurisdiction in respect of the offence;
 - ii. the imposition of a curfew, requiring the defendant to remain within a specified location during specified hours and to give directions appropriate to enable the police to monitor compliance with requirements;
 - iii. the defendant to wear an electronic tracking device to allow for the monitoring of the movements of the defendant.

On application by either the defendant to whom the bail was granted, or the prosecution or the police, a deciding official may also vary any condition of bail that the said deciding official had set.

The deciding official may also deny the application to vary any condition. Where an application was denied, the defendant may later make a new application for bail at any hearing in the proceedings provided certain circumstances exist - see **section 9 of the Bail Act**.

A defendant may also appeal **against any condition of bail** imposed by a Justice of the Peace or the police, by making an application to the Parish Court. In reviewing the application, the Judge will consider the reasonableness of the conditions in the circumstances of the case and may vary or revoke any condition of the bail, if satisfied that this would not impair the investigation of the offence.

RECORDING THE DECISION CONCERNING BAIL

Where the deciding official considers the question of bail, the deciding official shall make a **record of this decision using the prescribed form** set out in the **Third Schedule of the Bail Act**. This includes instances where the deciding official grants or refuses bail, appoints a time or place for the defendant who is granted bail to surrender to custody, imposes or varies any condition in respect of bail, or revokes bail.

The record of this decision, in the prescribed form, should include the reasons for the decision.

If the defendant is not represented by an attorney-at-law, the deciding official shall inform the defendant of the procedure to review the bail decision or the right of appeal to the court.

As soon as practicable after the record of the bail decision has been made, a copy of this record is to be given to the defendant, as well as to every person providing surety (where they exist), and to the prosecution or, where the defendant has not yet been charged, to the police.

Where, however, the bail was granted to the defendant by endorsing a warrant of arrest, the police who released the defendant on bail shall make the record of the bail decision, instead of the Judge or the Justice of the Peace, who issued this warrant.

Where a decision is taken by a Justice of the Peace or the police, to grant or refuse bail to a defendant, this decision shall be reviewed by a Judge of the court which has jurisdiction to try the offence concerned, on the first appearance of the defendant before said court.

FAILURE TO SURRENDER TO CUSTODY

It is a criminal offence where a defendant who is released on bail, fails to surrender to custody, as required, or having reasonable excuse for failing to surrender to custody, fails to surrender to custody as soon as possible - **see section 13 of the Bail Act.**

PERSONS APPREHENDED SHOULD BE TAKEN BEFORE A JUSTICE OF THE PEACE

Where the police apprehend any person, according to the authority provided under the **Constabulary Force Act**, if the police refuse bail, the person apprehended, (now called the defendant) should, be taken forthwith before a Justice of the Peace who may, on the application of the defendant (or the defendant's representative), grant bail in accordance with the Bail Act.

See **section 15** of the **Constabulary Force Act** which states:

“It shall be lawful for any Constable, without warrant, to apprehend any person found committing any offence punishable upon indictment or summary conviction and to take him forthwith before a Justice [of the Peace] who shall enquire into the circumstances of the alleged offence, and either commit the offender to the nearest jail, prison or lockup to be thereafter dealt with according to law, or grant that person bail in accordance with the **Bail Act**.”

And, **section 23** of the **Constabulary Force Act** which states:

“Where any person is apprehended by any member of the Force –

- (a) that person shall be taken to a Police Station or lockup;
- (b) subject to paragraph (c), an Officer or Sub-Officer on charge of the Police Station shall grant bail to that person in accordance with the Bail Act;
- (c) if the person refuses or is unable to give any security required as a condition of such bail, it shall be lawful for the Officer or Sub-officer to detain the person in custody until he can be brought before a Justice and dealt with in a like manner as is directed in the case of a person apprehended under this Act without warrant.”

THE APPLICATION FOR BAIL

Where the Justice of the Peace is called upon to determine the question of bail, the defendant, or the person representing the defendant, should:

- a) tell the Justice of the Peace the defendant’s name, age, address, occupation;
- b) satisfy the Justice of the Peace that the defendant is likely to surrender to custody on any date and at any place determined for the defendant’s surrender to custody;

- c) where required, satisfy the Justice of the Peace that there is a suitable person who is willing to stand surety for the defendant;
- d) satisfy the Justice of the Peace that the defendant is not likely to commit an offence while on bail.

The Justice of the Peace may hear further evidence in support of, or against the application. For example, the Justice of the Peace may hear from a witness as to the character or antecedents of the defendant, or the Justice of the Peace may hear from a person who is prepared to act as surety.

The hearing before the Justice of the Peace is not a trial of the offence and reference to the offence should only be cursory; for example, the seriousness of the offence and the strength of the evidence of the defendant having committed the offence; for example, eyewitness; confession, etc.

DECISION TO REFUSE BAIL

The Justice of the Peace may **refuse** bail:

- a) if satisfied that there is sufficient cause for holding the defendant in custody having regard to any of the related matters provided in the Bail Act; and/or
- b) if the Justice of the Peace is of the view that based on the matter(s) that have been brought to their attention, that the question of bail may be better determined by a court. In any event, the refusal will be reviewed by the court on the defendant's first appearance in court in relation to the offence.

BAIL WITH SURETY

A defendant may be granted bail on condition that surety be provided for the purpose of securing the defendant's surrender to custody.

A surety is a person who has accepted the responsibility of ensuring that the defendant surrenders to custody at a specified date and time. The surety may be required to provide security in the prescribed amount.

A person seeking to act as surety for a defendant must be confirmed by the deciding official as suitable for the purpose.

Where a defendant has been offered bail but has not been able to provide a suitable person to act as surety on the defendant's behalf, the deciding official may permit the **defendant to provide surety for himself**. In considering this, the deciding official should:

- consider whether a reasonable time has passed since the defendant was offered bail and would have sought to provide a suitable surety;
- require the defendant to provide proof of the requisite assets, based on the amount that has been prescribed as security in respect of the bail;
- be satisfied that the defendant, if released on bail, is not likely to abscond, commit an offence while on bail, or breach any condition of the bail.

SUITABILITY OF A SURETY

When considering the suitability of a person who has been proposed as surety, the deciding official should consider all relevant factors, to include:

- a) the person's profession, occupation, trade or business;
- b) the person's good character and previous convictions (if any);
- c) the person's proximity, whether of kinship, place of residence or otherwise, to the defendant;

- d) the person's capacity to supervise the conduct of the defendant, if required, under any directions made to the surety by the deciding official; and
- e) the person's capacity to ensure the defendant's attendance at court, where required.

If the deciding official finds the proposed surety unsuitable for the purpose, or if the proposed surety is exempt from serving as surety according to the Bail Act, the deciding official must refuse the proposed surety.

Where the proposed surety has been confirmed as suitable for the purpose, the surety is required to **make a declaration in the prescribed form**, as set out in **Part II of the Fifth Schedule** of the Bail Act.

The surety will be required to adhere to the directions imposed on the surety as it relates to the conditions of the defendant's bail and ensure that the defendant appears in court when required.

As well, a prescribed official is required to make a **declaration as to their knowledge of the surety's identity and good character**. This declaration is to be made by either a **Justice of the Peace**, a police at the rank of Sergeant or above, a minister of religion or a school principal of an educational institution other than a pre-primary school. The declaration is to be made in the **prescribed form**, as set out in **Part III of the Fifth Schedule** of the Bail Act.

RECOGNIZANCE OF THE SURETY OR THE DEFENDANT

A surety may also be required to enter into recognizance before a prescribed official, before the defendant is released. The deciding official who granted bail would usually fix the amount for which the recognizance should be made.

The recognizance of the surety must be made in the **prescribed form**, as set out in **Part IV of the Fifth Schedule** of the Bail Act and may be entered into before a deciding official, to include a Justice of the Peace, or any person as the rules of court may provide - see **Sections 15(6), 15(7) and 15(8) of the Bail Act**.

FORFEITURE OF SECURITY OR RECOGNIZANCE

According to **section 16 of the Bail Act**, where bail is granted to a defendant and a surety has provided security for the purpose of securing the defendant's surrender to custody, the court may order the forfeiture of this security (the bond sum) so that the bond be escheated; referred to as escheating the bond. Forfeiture of the bond may be ordered if:

- the defendant fails to surrender to custody, or,
- where the defendant is a child and the surety is the parent or guardian of that minor, the defendant breaches any other condition of the defendant's bail.

The amount ordered for forfeiture by the court may be of any amount, up to the full value of the security. This effectively means that the surety must pay the entire sum as ordered by the court, or otherwise face consequences. Hence the importance of confirming, before the defendant is released on bail, that the surety possesses assets – be it, monetary or physical – of the dollar value of the bail amount, and that these assets are levied to cover the sum.

FALSE DECLARATIONS IN RESPECT OF SURETY

In making any of the declarations required in respect of a surety, where the person making the declaration makes a statement which he knows to be false in any material particular, he would have committed a criminal offence. If this person is convicted before a Parish Court for this offence, they shall be liable to a fine not exceeding \$3 million or to imprisonment for a term not exceeding 3 years, or to both such fine and imprisonment.

In the case of a surety making the false declaration, the surety would have committed a criminal offence and if convicted before a Parish Court for this offence, shall be liable to a fine not exceeding \$1 million or to imprisonment for a term not exceeding 2 years, or to both such fine and imprisonment.

RELEASE OF SURETY

A surety shall be released from the obligations under the recognizance entered into by the surety, where:

- the court grants a release further to the application made by the surety for release from the obligations;
- a *nolle prosequi* is entered in relation to the defendant in respect of whom the surety was provided;
- the matter, against the defendant in respect of whom the surety was provided, is dismissed and a certificate of dismissal is issued by the court; or
- the defendant is acquitted or convicted.

For the release to be effective the court is required to issue to the surety, a release in the **prescribed form**, as set out in **Part V of the Fifth Schedule** of the Bail Act.

PERSONS EXEMPT FROM ACTING AS A SURETY

The persons listed in **Part I of the Fifth Schedule** of the Bail Act are exempted from providing surety for the purpose of securing the release on bail of any person charged with an offence; they are:

- 1) The Governor-General
- 2) A member of the Lower House of Parliament or the Upper House of Parliament
- 3) A member of the Judiciary
- 4) The Attorney-General or a person employed in the post of Legal Officer in the Attorney-General's Department
- 5) The Director of Public Prosecutions (DPP), or a person employed to the post of Legal Officer in the Office of the DPP, or a person acting as the prosecution in any criminal matter

- 6) A Permanent Secretary
- 7) The Chief of Defence Staff
- 8) A Justice of the Peace who has considered any issue relating to bail in respect of the defendant concerned
- 9) A constable (that is, all police)
- 10) An Attorney-at-Law on record for the defendant concerned in relation to the offence
- 11) A person charged jointly with the defendant concerned, or charged with aiding or abetting in the commission of the offence
- 12) A person who has a criminal charge pending against him/her before any court
- 13) A person who is not a resident in Jamaica
- 14) A person who is entitled to immunity from legal process in Jamaica

NOTE:

The law relating to bail is likely to develop around the provisions of the Bail Act, as they are interpreted by the courts. Justices of the Peace are advised to take note of any developments and be guided by them.

FURTHER FUNCTIONS OF THE JUSTICE OF THE PEACE

DOCUMENTS

OVERVIEW

Every Justice of the Peace can, with reasonable certainty, expect to administer some document during their tenure in office. The availability of Justices of the Peace to administer documents in their communities is one of the factors taken into consideration when recommendations are made for the appointment of any Justice of the Peace. The policy has always been to ensure an adequate distribution of Justices of the Peace throughout the parish who are available and willing to sign documents for the public, with distribution so arranged, that no member of the public should have to travel a long distance in order to obtain the help of a Justice of the Peace.

Some documents require a declaration to be made or an oath to be taken before a Justice of the Peace in order for them to be legal or valid. Such declaration may relate to the contents of the document, for others, their very nature requires the signature of the Justice of the Peace for their completion. For other documents, the signature of the Justice of the Peace confers the type of validity which makes the documents acceptable in good faith on the basis that a Justice of the Peace having administered them, bona fide is inferred from the nature of the office of Justice of the Peace, rather than the person who holds the office.

A Justice of the Peace must exercise the greatest level of care in relation to any document which may be placed before him/her to be acted upon. The same level of care must be exercised in relation to any document which originates with a Justice of the Peace since that document is a permanent record of some act undertaken by the Justice of the Peace and is likely to be acted upon in good faith by persons who may rely upon the document.

Documents may fall into one or more categories, including:

- (a) Affidavits
- (b) Statutory Declarations
- (c) Documents which are connected with, or incidental to, the judicial process
- (d) Declarations and Recommendations
- (e) Individualized documents to which the Justice of the Peace is a signatory (e.g. a witness).

Each category of document will be discussed hereunder and the guidelines set out are designed to assist the Justice of the Peace in administering documents falling within particular categories.

AFFIDAVIT

This is a written statement in the name of the person who is then called a deponent, by whom it is voluntarily signed and sworn to, or affirmed. It must be confined to such statements as the deponent is able, of his own knowledge, to prove, but in circumstances, it may contain statements of information and belief with the sources of grounds thereof.

When a person presents an Affidavit to a Justice of the Peace, the Justice of the Peace should take the following steps:

- (a) Ensure that the person presenting the affidavit is in fact the person making the declaration contained in the document. If the person is not personally known to the Justice of the Peace, proof of identity should be given to the Justice of the Peace's satisfaction, before any action is taken.
- (b) Warn the deponent that making a false statement in an affidavit is unlawful.
- (c) Administer oath or affirmation to the person prior to the signing of the document.

A Justice of the Peace would not normally prepare a document in affidavit form nor would he concern himself with the contents of an Affidavit. This is normally done by the deponent's Attorney. A Justice of the Peace can identify an Affidavit because of the form in which it is set out. Paragraphs in an Affidavit may be structured as follows (*review for content only*):

Affidavit of John Alexander Brown of 26 Kitchen Mews, Green Island in the parish of Hanover.

- (1) I, John Alexander Brown of 26 Kitchen Mews, Green Island in the parish of Hanover do solemnly make an oath and say as follows:
- (2) In the following paragraphs, the deponent will recite the facts on which he is relying. These must be of his own provable knowledge. Where information and belief are relied upon it may be expressed in the following form, e.g., *"my wife has brought a tractor and other earth moving equipment upon the property and has placed thereon bricks and several truckloads of sand and gravel. She has begun to make excavations of the area adjoining the matrimonial house and I verily believe she is about to erect some structure upon or adjoining the said house."*
- (3) The final paragraph will contain the attestation details, e.g. "sworn to by the said John Alexander Brown at Green Island, in the parish of Hanover before me, Michael James Ross, a Justice of the Peace for the parish of Hanover."

Signed by the Deponent/Declarant

Signed by the Justice of the Peace

Date:



AFFIDAVIT AS TO PLIGHT AND CONDITION

IN THE SUPREME COURT OF JUDICATURE OF JAMAICA

CLAIM NO.

IN THE ESTATE OF _____ late of
Path, Mona Heights, Kingston 6, in the parish of St. Andrew
Deceased, Testate.

I, _____ being duly sworn, make oath and say as follows:-

1. That I reside and have my true place of abode and postal address at _____ in the Parish of Westmoreland and I am a retired _____
2. That I am one of the Attesting Witness as for the Last Will and Testament of _____ late of _____, _____ in the parish of St. Andrew, Deceased Testate. Said Will bearing date the 22nd July 2008.
3. That having viewed and perused the said Last Will and Testament and particularly observed presence of the white-out on the reverse side of the Will at the identification clause which relates to the attesting Witnesses, appearing at the words “ _____”
4. That on the 22nd day of July 2009 when myself and _____, the other subscribing Witness together with _____ and _____, the Executrices, were to sign the said identification clause, it was discovered that both sets of clauses bore the names executrices after the said executrices had signed both sets of identification clauses.
5. That upon discovery of this blunder _____ Legal Secretary in the employ of _____ used the white- out to delete the names of the executrices from the second identification clause which relates to the attesting witnesses.
6. That the said _____ thereafter wrote the names “ _____” and “ _____”
“ _____”. In black ink as the same now appears on the second identification

clause of the will, and thereafter myself and _____ signed our names in blue ink at the respective sections of the said identification clause in the presence of each other and _____, Justice of the Peace for the parish of Westmoreland.

7. That I lastly make oath and say that save and except for the white-out and water mark spots on the said Last Will and Testament, the said Last Will and Testament is in all respects in the same state, plight and condition as when it was executed by the Testator.

Sworn to at: _____)
This day of 20XX)
Before me:-) _____

JUSTICE OF THE PEACE FOR THE
PARISH OF:

***Filed by _____, Attorney-at-Law _____, Kingston
for and on behalf of the Executors herein.***



FURTHER AFFIDAVIT IN SUPPORT
APPLICATION FOR

IN THE SUPREME COURT OF JUDICATURE OF JAMAICA
IN THE CIVIL DIVISION

CLAIM NO.

BETWEEN

APPLICANT

A N D

1ST RESPONDENT

A N D

2ND RESPONDENT

I being duly sworn make oath and say as follows:

1. That my address for the purpose of this Application is _____, Kingston 4 in the parish of Kingston and I am the Applicant herein.
2. That I crave the leave of this Honourable Court to refer to my **FURTHER AFFIDAVIT** dated _____ filed herein and say:
3. In the premises, I pray this Honourable Court grant the Stay pending my appeal.

Sworn to at: _____)
This day of 20XX)
Before me:- _____)

JUSTICE OF THE PEACE FOR THE
PARISH OF:

This page has been intentionally left blank.

STATUTORY DECLARATION

This is a written statement of fact which the person making (the Declarant) signs and solemnly declares it to be true before a magisterial officer e.g. a Justice of the Peace.

A Statutory Declaration will usually be made after the declarant has supplied information which are statements of fact on some form or some other document. In most instances, the question asked or information requested of the declarant are specified, (e.g. for application for a spirit licence).

When a Justice of the Peace is requested to administer a Statutory Declaration, the Justice of the Peace should take the following steps:

- (1) Ensure that the person presenting the Statutory Declaration is the person making the declaration in the document. If the person is not personally known to the Justice of the Peace, proof of identity should be given to the satisfaction of the Justice of the Peace before any action is taken;
- (2) Administer oath or affirmation if the document requires that oath or affirmation be taken. If a solemn declaration is required, the Justice of the Peace should have the declarant say, "I solemnly declare to the truth and correctness of this document";
- (3) Have the declarant affix his name and signature to the document in the presence of Justice of the Peace;
- (4) Write his, (the Justice of the Peace), name clearly and state the parish for which he/she was appointed;
- (5) Date the document;
- (6) NEVER attest a document (e.g. Statutory Declaration) or witness any document which states the attestation or witnessing thereof should be undertaken by a Notary Public but you may do so if the document says Justice of the Peace or Notary Public.

This page has been intentionally left blank.

DECLARATION OF

IN THE MATTER of an Application to bring
sq. meter of the land part of
in the parish of Westmoreland under the
Operation of the Registration of Titles Act.

AND

IN THE MATTER of the Registration of Title
Act.

I, do hereby and sincerely **DECLARE** as follows:

1. That I reside and have my place of abode at _____ in _____ the
parish of Westmoreland and my occupation is a Farmer.
2. That I am now of the age of [_____] years and upward.
3. That I have known and have been well acquainted with the land subject of
this Application to Register, to wit, _____ Sq. Meter of the land part of
_____, in the parish of Westmoreland for Thirty (30) years and
upwards.
4. That when I first knew the said land it was owned by and in possession of
_____ who enjoyed quiet, open, continuous, undisputed and
undisturbed possession of the said land and enjoying all the customary
acts of ownership thereof until the _____ day of April when he
handed over the said land by way of Deed of Gift to the Applicant thereof
placed him in possession thereof.
5. That the Applicant has enjoyed quiet, open, continuous, undisputed and
undisturbed possession of the land the subject of this Application from the
date that the said land was sold to _____ up to the present
time.
6. AND I make this Solemn Declaration conscientiously believing the same to
be true and under and by virtue of the Voluntary Declarations Act.

TAKEN ACKNOWLEDGED AND DECLARED)

By the said _____)
This _____ day of _____ 20__)
Before me:- _____)

JUSTICE OF THE PEACE FOR THE PARISH
OF: WESTMORELAND



DECLARATION OF INCOME

I

declare as follows:

1. That I reside at
..... in the Parish of

1. That I have been self-employed/employed as a/an
since

2. That I currently earn approximately

(Weekly, Fortnightly, Monthly, Yearly)

I make this declaration believing it to be true and by virtue of the Voluntary Declaration Act.)

TAKEN ACKNOWLEDGED and)

DECLARED by the said)

Applicant's Name

Applicant's Signature

in the parish of)

on the of.....)

Day Month Year

in the presence of:.....)

Notary Public/Justice of the Peace (Name)

.....

Notary Public/Justice of the Peace (Signature)

for the parish of:

NB. Any person who obtains a loan under S.20 of the NHT Act by means of false representation shall be guilty of an offence and shall be liable on summary conviction in a Parish Court to a fine under S.37.

Declaration of income form must be updated on an annual basis.



DECLARATION OF INCOME

I John Doe

declare as follows:

1. That I reside at 9 Cat Avenue
..... Kingston 10 In the Parish of Kingston
2. That I have been self-employed/employed as a/an Cosmetologist
since 2003
3. That I currently earn approximately 50,000
(Weekly, Fortnightly, Monthly, Yearly)

I make this declaration believing it to be true and by virtue of the Voluntary Declaration Act.

TAKEN ACKNOWLEDGED and)

DECLARED by the said)

John Doe
Applicant's Name

[Signature]
Applicant's Signature

in the parish of Kingston

on the 24 of 03 2010
Day Month Year

in the presence of:)
Notary Public/ Justice Of The Peace (Name)

K. Thomas

Notary Public/Justice Of The Peace (Signature)

for the parish of: Kingston

NB. Any person who obtains a loan under S.20 of the NHT Act by means of false representation shall be guilty of an offence and shall be liable on summary conviction in a Resident Magistrate's Court to a fine under S.37.

Declaration of income form must be updated on an annual basis.



Statutory Declaration Form for Correction of Error
(Declarant 1)

This Declaration is made to correct an error on a **DEATH Certificate**.

This certificate belongs to: _____
(State full name here)

Date of Death: _____ / _____ / _____
Day Month Year

Registration DEATH Entry Number: _____

Place of REGISTRATION: _____
Parish District

Where is the error located on the certificate (line #)?	What is the error?	What should the correction be?

Correction of Error Application Form (Death) @ February 2018

NOTE:

The above is a sample of a Statutory Declaration Form used by RGD – see pages 2 to 4

State the reasons for the error:

[illegible]

That I wish to amend any other errors cited by the Registrar General's Department(RGD) after discussion with RGD. Yes ☐ No ☐

Full Name of Declarant:.....

Address of Declarant.....

Declarant's Relationship to the individual.....Age.....

			.			.			
--	--	--	---	--	--	---	--	--	--

ID Type attached

[Taxpayer Registration Number (TRN)]

ID No.

Contact# _____ Email Address: _____

AND I make this solemn declaration conscientiously believing the same to be true under

Correction of Error Application Form (Death) @ February 2018

NOTE:

The above is a sample of a Statutory Declaration Form used by RGD – see pages 2 to 4

and by virtue of the Voluntary Declarations Act.

TAKEN AND ACKNOWLEDGED

By the said)
At)
In the parish of)
This day of 20)
In the presence of)
.....)
.....)

JUSTICE OF THE PEACE /NOTARY PUBLIC

MARKSMAN CLAUSE

(This Section to be used only when Declarant is unable to sign due to illness or illiteracy)

AND I/WE make this solemn declaration conscientiously believing the same to be true under and by virtue of the Voluntary Declarations Act.

If the individual is unable to read or write by reason of illiteracy or illness.

Signed by

Name of Declarant

Signature/Mark

After the same was read over and explained to him or her and who expressed themselves as understanding the nature and effects of the contents.

In the presence of:

Name of Justice of Peace/Notary Public

JP/Notary Public Signature & Seal

Parish /State/Province

Date

Correction of Error Application Form (Death) @ February 2018

NOTE:

The above is a sample of a Statutory Declaration Form used by RGD – see pages 2 to 4

INFORMATION

Parish of

The information and complaint of
 of the parish of made and taken upon oath
 before the undersigned, this day of in the year of our Lord
 thousand and who saith that on
 the day of in the year
 aforesaid, one of the said parish
 of with force at
 and within the jurisdiction of this court

against the form of the Statute in such case made and provided and against the Peace of Our Sovereign Lady the Queen
 Her Crown and Dignity, and thereupon the said Complainant prays that the said
 defendant may be summoned to answer unto the said Complaint according to Law.

Taken and sworn to before me at
 In the parish of this day of thousand and

.....
Justice of the Peace or Clerk of the Courts
for the Parish of

In the parish of		In the parish of
REGINA		REGINA
vs		vs
	Information of	Information of
For		
Tried on		
Before		
		Guilty
		Sentence
		*Here fill in place at which Court was held

Sample Number One Information (completed – Page 1)

1

INFORMATION

Parish of Kingston

The Information and complaint of Cons. Thomas Meeker #5236

of the parish of Kingston

made and taken upon oath

before the undersigned, this fourteenth day of March in the year of Our Lord

two thousand and nineteen who saith that on Thursday

the 14th day of March in the year

aforesaid, one Anancy Trouble of the said parish

of Kingston with force committed at

Duke Street, Kingston and within the jurisdiction of this court

Was armed with a ratchet knife, an offensive weapon, without lawful authority or reasonable excuse, on him (in his possession) in a public space. Contrary to section 3(1) of the Offensive Weapon (Prohibition) Act.

against the form of the Statute in such case made and provided and against the Peace of Our Sovereign Lady the Queen Her Crown and Dignity, and thereupon the said Complainant prays that the said Anancy Trouble defendant may be ^{made}~~summoned~~ to answer unto the said Complaint according to Law.

Taken and sworn to before me at Corporate Area Parish Court (Criminal Division)

In the parish of Kingston this fourteenth day of March two thousand and nineteen

Marley Beedle
Justice of the Peace or Clerk of the Courts
for the parish of

Sample Number One Information (completed – Page 2)

#22 / 2019

In the parish of Kingston

REGINA

VS

Anancy Trouble

Information of

In the parish of Kingston

REGINA

VS

Anancy Trouble

Information of

For being armed with an offensive weapon

Tried on April 15, 2019

Before Her Hon Mandy Brown

Plea **Guilty**

Verdict **Guilty**

Sentence **\$-x-,000 or -x- days
imprisonment**

[The Judge signs]

*Here fill in place at which Court was held

DOCUMENTS CONNECTED WITH OR INCIDENTAL TO THE JUDICIAL PROCESS

(A) SUMMONS

Section 2(1) of the Justice of the Peace Jurisdiction Act speaks of:

- (a) the power to issue summonses – Note it is referring to the laying of an Information – the latter is a condition precedent to issuing a summons;
- (b) summonses must be directed to the person named in the information and must:
 - (i) State the nature of the complaint;
 - (ii) Require the person named to appear at a certain time and place before the same Justice of the Peace or other Justices of the Peace to answer the complaint;
- (c) Summons must be served by a Constable or peace officer;
- (d) If the person served with a summons does not appear at the time and place mentioned then a Justice of the Peace shall issue a warrant to apprehend the party. Note that the warrant must only be issued if the non-appearance is proved by substantiating the matter or upon oath or affirmation.

A summons is a document which is issued by a Justice of the Peace calling upon the person to whom it is directed to attend before a Justice of the Peace, or Judge or other officer of the court.

A summons is of particular importance to a Justice of the Peace. It is the first step in the commencement of processing judicial proceedings falling within the jurisdiction of the Justices of the Peace, and Justices of the Peace should familiarize themselves with this form. A copy can be obtained from the court's office.

It is usual for a Constable to request a Justice of the Peace to sign (issue) a summons. Justices of the Peace should be guided by the following guidelines:

- (1) The summons should only be issued on an Information being laid. A Justice should request to see the information before issuing the summons.
- (2) Never sign a blank summons; never backdate a summons but endorse upon the summons the date of issue.
- (3) Each information on which the summons is based must be "sworn to" before the Justice of the Peace and the complainant or informant should affix his signature to the document in the presence of the Justice of the Peace.

- (4) Exercise discretion and decline to issue a summons if the information appears to be frivolous or vexatious or if the information is expressed in terms which are confusing or lacking in sufficient details about the matter being complained of.
- (5) Issue summons only in relation to offences which were committed in the parish for which the Justice exercises Jurisdiction.

LAY MAGISTRATES – FORM Y.

Summons to Person Charged

JAMAICA SS.

Parish of
To
of the said parish



WHEREAS Information hath this day been laid before the undersigned, one of Her Majesty's Justices of the Peace in and for the said parish of

that you

on the day
in the year of Our Lord thousand and
at the said parish of and within my jurisdiction

against the form of the Statute in such case made and provided, and against the Peace of Our Sovereign Lady the Queen Her Crown and Dignity.

These are therefore, to require you, in Her Majesty's name to be and appear
on the day of
thousand and at ten o'clock in the fore-
noon at the Court House, at before such Justice of the Peace
for the said parish of as may then be there to answer
to the said Complaint and to be further dealt with according to Law.

Given under my hand this day of
in the year of Our Lord Two thousand and
at the parish aforesaid

.....

Justice of the Peace or Clerk of the Courts
for the parish of

**AFFIDAVIT OF SERVICE OF SUBPOENA
JAMAICA SS.**

In the
of Lay Magistrates holden the
Court
day of 20
REGINA
against Summons

PARISH of
I,
Constable, do swear that on the day
of Two Thousand and
at o' clock in the noon at
in the parish of I served upon
of the parish of
a copy of the within Summons (now marked) dated the
day of 20 **and issued by**
Esquire, Clerk of the Courts
of the parish of on the information of the
therein named against the said
At the time I served

the said copy Summons on the said
I read over the within Summons to
Before the day of the said
service I the said
personally.
Taken and sworn to before me at
in the parish of
this
day of 20

B) WARRANTS

Section 4 of the Justices of the Peace Jurisdiction Act deals with provisions as to Warrant

Every such warrant to apprehend a defendant that he may answer to any such information or complaint as aforesaid shall be under the hand or hands of the Justice or Justices issuing the same, and may be directed either to any constable or other person by name, or generally to the constable of the parish within which the same is to be executed without naming him, or to such constable and all other constables within the parish within which the Justice or Justices issuing such warrant hath or have jurisdiction, or generally to all the constables within such last-mentioned parish; and it shall state shortly the matter of the information or complaint on which it is founded, and shall name, or otherwise describe, the person against whom it has been issued; and it shall order the constable or other person to whom it is directed to apprehend the said defendant, and to bring him before one or more Justice or Justices (as the case may require) of the same parish, to answer to the said information or complaint, and to be further dealt with according to law; and it shall not be necessary to make such warrant returnable at any particular time, but the same may remain in full force until it shall be executed :

Provided always, that no objection shall be taken or allowed to any such warrant to apprehend a defendant so issued upon any such information or complaint as aforesaid under or by virtue of this Part for any alleged defect therein in substance or in form, or for any variance between it and the evidence adduced on the part of the informant or complainant as hereinafter mentioned; but if any such variance shall appear to the Justice or Justices present and acting at such hearing, to be such that the party so apprehended under such warrant has been thereby deceived or misled, it shall be lawful for such Justice or Justices, upon such terms as he or they shall think fit, to adjourn the hearing of the case to some future day, and, in the meantime, to commit (according to Form (4) in the *First Schedule*) the said defendant to prison or to such other custody as the said Justice or Justices shall think fit, or grant him bail in accordance with the Bail Act.

A **warrant** is an authority under the hand of a Justice of the Peace or some other magisterial officer used in executing processes in criminal and civil cases.

- (i) A warrant of arrest is signed by a Justice of the Peace or a Judge ordering some named person to be arrested and brought before the court.
- (ii) A search warrant is an order under the hand of a Justice of the Peace to enter a specified building or premises to look for and seize certain specified objects. A

search warrant may be issued on the basis of some common law violation or by virtue of a specific statutory violation e.g. in respect of offences under the Larceny Act, or Dangerous Drugs Act.

- (iii) A warrant of distress or levy may be issued by a Justice ordering execution against the goods and the chattels of a judgment debtor.

A Justice of the Peace should apply a judicious approach to the issue of any warrant. In other words, he should do so only on satisfaction that a good cause has been made out and should observe strictly the following guidelines:

- (1) If the issue of the warrant is based upon an Information, that information should be signed and sworn to in the presence of the Justice of the Peace and the information should justify or substantiate the need to issue the warrant. If the Justice of the Peace entertains any doubt or if there appears to be any legal technicality the Justice of the Peace should seek the assistance of the Clerk of the Court for the parish in which he exercises jurisdiction.
- (2) A Justice of the Peace should never sign a warrant form that is blank.
- (3) The date of signing should be endorsed upon the warrant by the Justice of the Peace.
- (4) The person or premises in relation to which the warrant is to be issued should be clearly specified in the warrant and where the warrant is for search, the reason for the search and the items to be identified in the search must be clearly specified.
- (5) **The issue of a warrant must be limited to offences or acts done in the parish for which the Justice of the Peace exercises jurisdiction.**

JAMAICA SS.

Parish of

To the Constables of

Officers of the Parish of

WHEREAS Information hath this day been laid before the undersigned one of Her Majesty's Justices of the Peace in and for the said parish of
for that

of the said parish, to wit, on the day of in the year of Our
Lord

at the said parish and within my jurisdiction

and oath being now made before me, substantiating the matter of such Information.

THESE are therefore to command you in Her Majesty's name, forthwith to apprehend
the said and to bring him/her before some
one or more of Her Majesty's Justices of the Peace in and for the said parish to answer to the
Information, and be further dealt with according to Law.

Given under my hand this day of in the parish
of in the year of Our Lord

aforesaid

.....
Justice of the Peace – [Parish]

This page has been intentionally left blank.

WARRANT WHERE A WITNESS HAS NOT OBEYED A SUMMONS

Parish of

To each and all the Constable of and to all the Peace Officers in the said parish of

WHEREAS information having been laid before

one of her Majesty's in and for the said parish of Saint Elizabeth, that

of

in the parish of and it having been made to appear to me on oath that

of

in the parish of

was likely to give material evidence for prosecution, and summons having been issued to the said

requiring

to be and appear before me on the

day of

20

at

or before such other Justice or Justice of the Peace for the same parish, as might then be there, to testify what he should know respecting the said charge so made against the said

AND WHEREAS proof hath this day been made before me, upon oath of such summons having been duly served upon the said

AND WHEREAS the said hath neglected to appear at the time n place appointed by the said summons, and no just excuse has been offered for such neglect:

THESE ARE THRERFORE to command you to bring and have the said

before me, on the day of 20 at 10'clock in the

forenoon, at or before such Justice or Justices of the Peace for the same parish as may then be there to testify what he shall know concerning the said charge so made against aforesaid.

Given under my hand this day of 20
in the parish aforesaid.

This page has been intentionally left blank.

BENCH WARRANT

Jamaica SS

Parish of

To the Constables of

and to all other Her Majesty's

Peace Officers within the parish of

and to every one of them

whom it may concern. These are to will and require, and in Her Majesty's name to charge and command you upon sight thereof, to bring before me, one of Her Majesty's Parish Court Judge for the parish aforesaid, at the Parish Court now holden at

in the parish of

the body of

who stands indicted before me at this same Court for

if the Court be then and there sitting, of if not, before me or some other of Her Majesty's Justices or Justice of the Peace of the same parish, to find sufficient sureties for personal appearance at this Court to answer the said indictment, and all such other matters as on her Majesty's behalf shall be objected against and if cannot be taken during this present Court, that then as soon after as he shall be taken bring or cause to be brought before me or some other of Her Majesty's Justices of the Peace of the said parish, to find sufficient sureties that is to say surety in

\$, for h personal appearance, at the next sitting of the Parish Court for the said parish, to answer as aforesaid, and further to be dealt with according to Law.

Hereof you are not to fail at your peril.

Dated in open Court at the Court House at

aforesaid, this

day of

in the year 20

This page has been intentionally left blank.

Form of Warrant of Distringas and Capias

ELIZABETH II, By the Grace of God of Jamaica and of Her other Realms and Territories Queen, Head of the Commonwealth.

To the Bailiff of the

Court for the

parish of

You are hereby required and commanded to levy the sum of \$
upon the goods and chattels of

of the parish of

and make payment of the

money so levied to the Clerk of the Courts for the parish of

And if you cannot levy the sum of \$

by reason of there being

no goods and chattels to be found belonging to the said

then that you take the body of the said

and lodge him

in the

Prison to await

the decision of the said

Court at the

next sitting thereof unless the said

shall give sufficient security for his appearance

at such

Court. And have you then and

there this Warrant.

Witness

Esquire

for the parish of

at

the

day of

20

FORM OF WARRANT OF DISTRINGAS AND CAPIAS

**ELIZABETH II BY the Grace of God of
Jamaica and of Her Other Realms and
Territories Queen, head of the Commonwealth.**

To the Bailiff of the

Court for the

parish of

You are hereby required and commanded to levy the sum of \$_____ upon the goods and chattels of

of the parish of
money

and make payment of the

so levied to the Clerk of the Courts for the parish of

And if you cannot levy the sum of

by reason of

there being no goods and chattels to be found belonging to the said

then that you take the body of the said

and lodge him in the

Prison to await the decision of the said

Court at the next sitting thereof unless the said

shall give sufficient security for his appearance at such _____ Court

And have you then and there this Warrant

Witness

Esquire

for the parish of

at

the

day of

20

.....
Clerk of Courts,

SEARCH WARRANT

LAY MAGISTRATES (FORM G)

JAMAICA SS.

Parish of Kingston

To the Constable of Kingston and to all other Peace Officers in the Parish of Kingston:

WHEREAS Information hath this day been laid before the undersigned one of Her Majesty's Justices of the Peace in and for the said Parish of Kingston, that certain firearm, to wit:

Is deposited in a certain premises, to wit:

In the Parish of Kingston in the occupation of one

Contrary to the provisions of the

Gunpowder and Firearms Law (Chapter 285).

THESE ARE THEREFORE to command and authorize you

With proper assistance to enter to go to the said premises of the said

by day or by night and to search the said premises and to

seize the said firearm as aforementioned, if the same be found on the said premises, and for so doing this shall be your authority.

Given under my hand this

the year of

Our Lord two thousand and

in the Parish of Kingston

Justice of the Peace for the Parish of Kingston

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**SEARCH WARRANT UNDER THE UNLAWFUL POSSESSION OF
PROPERTY ACT**

JAMAICA SS.

To each and all Constables of the Parish

Whereas it appears to meEsq., one of Her Majesty's Justices
of the Peace in and for the Parish of by information and complaint on
Oath of of the same place that there is reasonable cause to
Suspect that certain stolen articles and/or articles unlawfully obtain, to wit.....

.....
.....
are lodged in the situated at in
the Parish of

These are therefore, to authorize and command you, in Her Majesty's name, forthwith, with proper
assistance and with such force as may be necessary, to enter the said
.....of the said
at any time of the day or night, and there diligently search for the said goods; and if the same, or
any part thereof, or any other thing which there shall be reasonable cause to suspect to have been
stolen, or unlawfully obtained, shall be found upon such search, that you bring the goods so found
and also the body of the saidbefore the
Parish Court Judge for the said Parish of to be
disposed of and dealt with according to Law.

Given under my hand atin
this..... day of in the year of Our Lord two thousand
and

.....
Justice of the Peace.....

VOLUNTARY DECLARATIONS AND RECOMMENDATIONS

These are documents in which a Justice of the Peace is offering some level of his own knowledge or belief and from that knowledge and belief will verify information requested of the Justice of the Peace. For example, in a passport application form, a Justice of the Peace relies on his own knowledge of the applicant when he executes the declaration on the passport application form.

In these documents, a Justice of the Peace should ensure that any information given by him reflects accurately his own personal knowledge or honest belief and a Justice of the Peace should never transfer, to another person, his knowledge or honest belief held in relation to one person on the basis that that other person is well known or related to the person, known to the Justice of the Peace or in relation to whom he entertains the honest belief.

Serious consequences are likely to develop if a Justice of the Peace knowingly gives false and inaccurate information in any declaration or recommendation given by the Justice of the Peace.

A Justice of the Peace may be asked to give a recommendation that a person is able to stand surety for bail “for an accused person”. A Justice of the Peace should seek to ensure that any person recommended in this regard is one whom the Justice of the Peace is satisfied is a person of sufficient means to satisfy the sum of money in which bail is set.

F EMERGENCY CONTACT PERSONS			
FIRST CONTACT PERSON			
Surname 	First Name 	Middle Names 	
Street Number and Street name 		Telephone Number Area Code Seven Digit Number 	
Town, City and Parish/State 		Relationship 	
Country 		Postal or Zip Code 	
State 			
SECOND CONTACT PERSON			
Surname 	First Name 	Middle Names 	
Street Number and Street name 		Telephone Number Area Code Seven Digit Number 	
Town, City and Parish/ State 		Relationship 	
Country 		Postal or Zip Code 	
State 			
G OFFICIAL CERTIFICATION (Please ensure that Sections A-F are completed before certifying this document)			
WARNING: IT IS AN OFFENCE TO MAKE A FALSE AND MISLEADING STATEMENT IN SUPPORT OF A PASSPORT APPLICATION			
I First Name Middle Name(s) Surname Designation/Occupation hereby certify that I have known Full Name of Applicant (in the case of a minor, the person giving consent) as stated on application. For(years) and that the information given is correct to the best of my knowledge and belief.			
Address of Certifying Official Building/Apartment Number and Name (if applicable) 		Country 	
Street Number and Street name 		Postal Code or Zip Code 	
Town, City and Parish/ State 		Telephone Number Area Code Seven Digit Number 	
		Official Stamp or Seal (If any)	
Signature of Certifying Official 		Date of Certification (DD/MM/YYYY) 	

NOTE:

The above is a sample of Page 3 of the Jamaican Passport Application form – see Section G and the corresponding notes on next page

3.0 CERTIFICATION OF APPLICATION (See section G)

3.1 Each applicant is required to present an application form and Photograph that are certified. This can be done by one of the following officials who is a citizen of Jamaica, who is not a member of the family of the applicant AND, has been personally acquainted with the applicant for a period of not less than 12 months:

- | | | |
|------------------------|--|-----------------------|
| * Member of Parliament | * High Court Judge | * Resident Magistrate |
| * Justice of the Peace | * Public Officer (SEG 1 and above) | * Consular Officer |
| * Attorney-at-law | * Commissioner of Oaths Notary Public | * Parish Councillor |
| * Bank Manager | * Credit Union Manager | * Clerk of Courts |
| * Marriage Officers | * Army Officer (Major & above) | * Dental Surgeon |
| * Medical Practitioner | * Police Officer (Gazetted Ranks) | * Passport Officer |
| * Veterinarian | * Principal (Primary, Secondary & Tertiary Educational Institutions) | |

3.2 The official who certifies the application is also required to certify the reverse side of one photograph of the applicant, with the following inscription above his/her signature:

"I certify that this is a true photograph of (Insert applicant's name and note date of certification),

3.3 For overseas applicants the following persons, who need not be citizens of Jamaica, may certify the application:

- | | |
|--|------------------|
| * Justice of the Peace | * Notary Public |
| * Attorney-at-law | * Medical Doctor |
| * Minister of Religion authorized to perform marriages | |

3.4 Overseas applicants may contact the nearest Jamaican Embassy, High Commission or Consulate for other categories of persons who may certify applications and photographs.

3.5 NO FEE SHOULD BE PAID FOR CERTIFYING AN APPLICATION. (Applicable in Jamaica ONLY)

NOTE:

The above was taken from the Jamaican Passport Application form.
These are the guidelines for completing Section G of the form

SPECIMEN RECOMMENDATIONS FOR CRITIQUING AND EDITING

From the desk of....



Jasmine Brown J.P.
44 Barrack Road,
St. Elizabeth
Tel: 970-2199 /834-6910

SPECIMEN 1

March 19, 2013

The Manager
Jamaica National Building Society
Constant Spring Road
Kingston 10

Dear Sirs:

This is to introduce Ms. Jane Doe of St. Elizabeth. She has been known to me for over thirty (30) years now.

Ms. Doe is legitimately gainfully employed and has been conducting her personal and business affairs in a dignified and honest manner.

It is my understanding that she wishes to establish an account with your firm in order to facilitate financial transactions.

I believe Ms. Henry is responsible, and capable of honouring all terms and conditions stipulated. I therefore recommend her for favourable consideration.

Kind regards,

.....
Jasmine Brown (Mrs)
Justice of the Peace – St. Elizabeth

SPECIMEN 2

March 10, 2013

Canadian Work and Travel Programme
Ministry of Labour and Social Security
1F North Street
Kingston

To Whom It May Concern

This is to introduce Mr. Danny Smith of Lot 23 Mayfair Gardens, Phase 3 Mandeville, Manchester.

I have found him to be a genuine and honest person. He is intelligent and hardworking; always proactive and ensuring that he keeps current in his chosen vocation.

He has a warm and affable personality, yet commands the respect of both young and old in the community.

Mr. Smith is desirous of gaining a place in the Canadian Work and Travel Programme. I believe he is very responsible and has the characteristics of someone who will make our country proud.

I therefore without hesitation, recommend him for your kind and favourable consideration.

Kind regards,

.....
Frank King
Justice of the Peace - Manchester

SPECIMEN 3

September 14, 2013

The Officer in Charge:
Dallas Police Station
St. Andrew

Dear Sir:

This is to introduce **Mr. Basil Largie** of Lot 163 Bayview Gardens, St. Thomas. He has been known to me for over twenty (20) years.

Mr. Largie is a jovial and likable person. He is self-employed and to the best of my knowledge conducts his personal and business affairs in a decent and honest manner.

Mr. Largie is desirous of offering himself as surety on behalf of Mr. Ricky Small and Mr. Riley Small. They were both charged and were offered bail in the amount of Five Thousand Dollars (\$5,000.00) each.

He is responsible and will ensure that the defendants honour the terms of bail. I therefore recommend him.

Kind regards,

.....
Sandra Bright (Ms)
Justice of the Peace – St. Thomas

SPECIMEN 4

February 26, 2013

The Dean
Faculty of Humanities and Education
University of the West Indies
Mona Campus
Kingston 7

Dear Sir/Madam:

This is to introduce Ms. Crystal Turner of 14 Troy Crescent, Patrick City, Kingston 20. I met her acquaintance about five weeks ago.

I was told that she served as an Executive member of the youth Council in the area. Background checks revealed that she took pride in the completion of given assignments and used her initiative to enhance the efforts of the group. The President said that he found her to be a very courteous and trustworthy individual; one who works tremendously well with all age groups.

Presently she is desirous of pursuing a Masters of Arts in Teaching at the faculty. Given her resilience, determination, disposition and level of intelligence, I wholeheartedly recommend her for favourable consideration.

Kind regards,

.....
Roy Weeks
Justice of the Peace – Portland

SPECIMEN 5

June 8, 2016

Executive Director
Caribbean Maritime Institute
Norman Manley Highway
Palisadoes Park
Kingston

Dear Sir:

This serves to introduce Mr. Roger Wright of Betterment Village, Phase 2, Kingston 2. He has been known to me for the past five (5) years.

He is a well-mannered, quiet yet jovial young man, who interacts well with all age groups. He has a teachable spirit and responds positively to the encouragement and guidance given by family and members of the community.

Mr. Wright has expressed a desire to access a programme offered by the Institute. He may not be your usual accomplished applicant however, he works hard and continues to make steady progress amidst very trying circumstances.

I am confident that he will maintain the standards and adhere to the rules and regulations set by the institution. I am also confident that the experiential environment that prevails at the Institute will enable him to do well academically.

Any courtesies and assistance offered will be greatly appreciated.

Kind regards,

.....
Karl Brooks
Justice of the Peace – St. Andrew

SPECIMEN 6

June 4, 2015

TO WHOM IT MAY CONCERN

This is to introduce **Ms. Hortense Brown** of Annotto Bay, St. Mary. She is my daughter so I have known her since birth.

My daughter is a member of Jericho Zion Church. I am the Pastor of the church. She is very active and participates in the planned events and also attends the yearly Residential Camp. She is a very courteous and reliable individual.

She has been promoted to Grade 11 however we are experiencing financial difficulties and would be very grateful for your assistance. She is a good student and all the teachers love her.

Kind regards,

.....
Joy Black (Mrs)
Justice of the Peace – St. Mary

Design your own letterhead. Prepare a sample recommendation. Share and allow others to critique.

**INDIVIDUALIZED DOCUMENTS
TO WHICH THE
JUSTICE OF THE PEACE SIGNS AS A WITNESS**

In these documents, the Justice of the Peace is asked to sign as a witness to a transaction expressed in the document or the document, and may be one where the signing in the presence of the Justice of the Peace enhances its validity.

In these documents, the Justice of the Peace must ensure:

- (a) that he is not a party to an illegal transaction;
- (b) that the parties required to sign the document, do so in the presence of the Justice of the Peace;
- (c) that the parties required to sign the document understand the function of the Justice of the Peace in this matter (i.e., that he or she (the JP) signs as a witness and not as a party conferring or helping to create any rights or obligations);
- (d) that the document shows evidence of the date, time and place of the signature of the Justice of the Peace.

Specimen 1

PROMISSORY NOTE (SPECIMEN)

July 21, 2023

I, Davis Jones, of Apt 9 Fern Court, Kingston 6 hereby agree to pay on August 27, 2023, the sum of Forty-Three Thousand Dollars (\$43,000.00) being outstanding rent for the months of March 2023 and April 2023.

It is also my intention to vacate the premises in September 2012, and I hereby promise to pay that month's rent due the 1st of the month on or before September 27, 2012.

Signed

Davis Jones

Witnessed by:.....

Justice of the Peace - Kingston

Date

Date.....

Specimen 2

PERMISSION LETTER (SPECIMEN)

September 4, 2016

To the Jamaica/US Immigration Consulate

I, Janice Grant, mother of Wayne Grant, hereby give George Headley Primary School permission to take him on the educational and recreational trip to Disney Land, Fort Lauderdale from April 1 – 5, 2017.

Signed

Janice Grant

Witnessed by:

Justice of the Peace – St. Ann

Date.....

Date.....

THIS IS THE LAST WILL AND TESTAMENT

of me

of

in the parish of

I hereby revoke all wills and testamentary dispositions previously made by me and declare this to be my last Will and Testament.

I appoint of

.....

and

.....

to be the Executor and Trustees of this my Will, and Trustees for all the purposes of the Settled Land and Conveyance Laws. I direct my Executors and Trustees to pay my debts and funeral and Testamentary Expenses.

I give, bequeath and devise

All the rest and residue of my estate I give to

IN WITNESS whereof I have set my hand to this my Last Will and Testament

This day of

(Testator to sign here)_____

If necessary
to use next
page, strike
this out.

Signed by the above-named Testator as h.... last Will and Testament in the presence of us both, being present at the same time, who at h.... request and in h.... presence and in the presence of

Witnesses
to sign
here.

Name:

Address:.....

Occupation:.....

Name:.....

Address:.....

Occupation.....

CAUTION STATEMENT

THE JUSTICE OF THE PEACE AS A PARTY TO THE TAKING OF A STATEMENT UNDER CAUTION

The general rule is that any admission or confession voluntarily made by an accused person is admissible in evidence at trial against the accused as truth of its contents.

An admission is a self-incriminatory statement and is an acknowledgement of some fact or some circumstance from which guilt may be inferred. It is a statement by word or conduct which implicates the accused person.

A confession is a direct acknowledgement of the truth of the guilty fact as charged or of some essential part of the crime.

A suspect may, whilst in police custody or under police interrogation, declare his intention to make a statement to the police. Such a statement is likely to be self-incriminatory and the police should ensure, if this statement is to be admitted in evidence, that the giving of the statement satisfies the legal requirements of voluntariness, i.e. being free from coercion, duress, threat, promise of favour.

A Justice of the Peace is normally required to be present during the making of the statement by the suspect. The function of the Justice will be to:

- (a) observe the suspect for any physical signs which could be the result of efforts to induce him to make a statement and if such signs are observed, the Justice must make enquiries of them;
- (b) be assured by the suspect that the statement is being given voluntarily;
- (c) ensure that the suspect is afforded humane treatment during the making of the statement – in other words to ensure that the environment in which the statement is made is consistent with voluntary conduct by the suspect;
- (d) ensure that the statement made by the suspect is recorded in the actual words of the suspect and is not a reproduction or paraphrase;
- (e) ensure that the suspect is told his rights in relation to his decision to make a statement and of his right to amend any statement made, and he must also be made aware of the consequences which may flow from his making of any statement.

The Justice of the Peace who attends a police station for this purpose should clearly understand his function that he attends as a Minister of Justice and not as an interrogating officer. His assistance to the police is fully given when he ensures that any statement made by the suspect is made in proper form and in acceptable circumstances which makes the statement admissible in evidence.

The Justice should be guided by the following:

1. Ensure that the physical environment in which the statement is to be given is reasonably comfortable with proper lighting and ventilation and there should not be present any form of physical or psychological coercion. In other words, a seat should be available for the suspect to sit, he should not be handcuffed or placed under any form of physical submission.
2. When the suspect is brought into the room, the Justice should observe the suspect for any sign of coercion. If the suspect appears disoriented and confused the Justice should point this out to the police. He may speak with the suspect to establish whether or not he is lucid.
3. The Justice should advise the suspect that he is a Justice of the Peace and his presence is to see that any statement given by him is in accordance with his voluntary conduct and according to law.

The procedure during the making of the statement should be as follows:

1. The suspect should be cautioned in the usual manner.
2. The wish of the suspect to make a statement should be recorded and signed by the suspect. The Justice and the Officer in attendance should add their signatures thereto.
3. If the suspect asks anyone present in the room to write the statement, that request should also be recorded and signed with the Justice and the officer in attendance adding their signatures thereto and the suspect will then dictate his statement and it should be recorded in the narrative form, that is to say, the statement should be in the actual words of the suspect. He should not be interrogated for answers.

4. When the suspect has completed making the statement it should be read over to him and he should be told he can amend the statement as he sees fit.
5. The fact that it was read over to him should be recorded and signed.
6. If the suspect amends the statement any amendment should be signed by the suspect, the Justice and the recorder.
7. If the amendment is substantive it is better to add a further paragraph beginning – “I now further say – “
8. When the statement is completed the recorder should add a certificate as to when the statement began and ended, and that it was given freely and that no threat, promise of favour was held out.
9. It should be signed by the recorder and by the Justice and the suspect. The suspect must sign every page.
10. The Justice should have taken his notebook with him and should immediately record therein the fact that he attended the police station and witnessed the making of the statement. He may record his observations, if any, and any other detail which may have taken place in the room. The notebook should be kept by the Justice for the purpose of refreshing memory in court in the event of his being required to give evidence.
11. The record in the notebook should not be made any length of time after the making of the statement since its effectiveness as a source of refreshing memory could be challenged in court.
12. The Justice should then leave the police station. It is not advisable that he should discuss the case with any officer involved in the matter and he should avoid making any comments to anyone which are likely to be misconstrued.
13. Where the suspect writes the statement himself, he should sign his name at the end, as should the Justice. A certificate should be given at the end of the statement to the effect that during the recording of it, he was not induced in any way to write anything therein. The Justice should add his signature to it, as should the suspect.



NAME: DOB.....AGE..... DIVISION.....

DATE..... TIME COMMENCED..... TIME COMPLETED.....

"I..... wish to make a statement. I want someone to write down what I say. I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence."

"I make this statement of my own free will. I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence."

States.....

Signature of Interviewee: Signed in the presence of

The above has been provided to show the **FORMAT** used to capture information given during the taking of a Caution Statement



NAME OF INTERVIEWEE DOB.....AGE.....

PLACE OF INTERVIEW

DATE..... TIME COMMENCED..... TIME COMPLETED.....

PERSONS PRESENT.....

*"I wish to put some questions to you about the offence of.....
with which you have been charged (OR about the offence for which you may be prosecuted). You are not obliged to answer any of
these questions, but if you do the questions and answer will be taken down in writing and may be given in evidence".*

Signature or mark: Date:.....

Q.

Signature of interviewee: Signed in the presence of:

The above has been provided to show the format used to capture information given during a Question & Answer session

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IDENTIFICATION PARADE

THE JUSTICE OF THE PEACE AS A PARTY TO AN IDENTIFICATION PARADE

Overview of Identification Parade

An identification parade is a system used by the police to facilitate positive identification of an apprehended suspect by an eyewitness to a crime. The suspect would have been apprehended by the police on the basis of the description given by the eyewitness or on the basis of information obtained otherwise. The witness would have given assurance at the time of the interview of being able to identify the perpetrator.

The procedure at the Identification Parade

- 1) In practice, a number of persons including the suspect are placed in a lineup of nine persons and the eyewitness is invited to view the lineup with a view to identifying the perpetrator.
- 2) A Justice of the Peace may be asked to witness the conduct of an identification parade. When he does so, he attends as minister of Justice and his function is to ensure that the parade is conducted fairly and that nothing takes place at the lineup which lends itself to any form of suggestibility; that both the eyewitness and the police comply with rules established for the holding of an identification parade.
- 3) The procedures set out below, incorporates the rules which are designed to ensure a fair lineup:
 - a) Nine persons are placed in a lineup. All nine persons could be suspects in unrelated matters but some could be mere volunteers who are not suspects in any matter. The suspect in the case under investigation is included in the lineup.
 - b) All nine persons must be of similar height, (or as close as possible) colour, appearance and similar station in life.
 - c) The suspect in the crime being investigated should be allowed to take any place in the lineup and he may be allowed to dress in such manner as would make him comfortably similar to the other volunteers on the parade.
 - d) The eyewitness should be kept away from the "suspect" whilst he/she is being prepared for the parade and the police should say nothing to the witness which could aid in the identification of any person.
 - e) When the "suspect" is placed on the parade, the witness is then invited to view the lineup with a view to possible identification of the perpetrator. If the witness identifies the perpetrator, the witness may either point to

him/her or indicate to the officer conducting the parade the person identified. Having done so, the witness leaves the parade. If the witness says anything, this must be recorded by the policeman in charge of the parade.

- f) If more than one witness is invited to the parade, those witnesses should be kept apart and no witness should be allowed during the session of the parade, to communicate to another witness any information about his/her experience on the parade.
- g) At the conclusion of the parade, the suspect identified should be invited to sign the Identification Parade Form. The suspect may decline to do so in which event no efforts should be made to induce him. The Justice of the Peace will sign the Form as a witness.

The function of the Justice of the Peace at the Identification Parade

- 1) The presence of the Justice of the Peace is designed to ensure that the procedures set out above are complied with and any failure on the part of the person conducting the parade should be challenged, noted by the Justice and if necessary reported to a senior officer.
- 2) The Justice of the Peace will be invited to sign the Parade Form and he should do so only if he is satisfied that the procedure mentioned above has been complied with.
- 3) An entry should immediately be made by the Justice in his notebook. This entry should record the date, time and place of the parade, the name of the officer conducting same and whether or not a positive identification was made. This is for the purpose of refreshing his memory in court should the need arise.
- 4) The Justice of the Peace should leave the compound immediately thereafter and should avoid making any comments on the matter which are likely to be misconstrued.

RESTRICTED

FORM ID1 (A)

Jamaica Constabulary Force

IDENTIFICATION PROCEDURES – NOTICE TO SUSPECT

(Part 1 of 2)

You will be given reasonable opportunity to read this form and asked to sign to indicate whether or not you are willing to take part in an identification procedure.

You are entitled to free legal advice before making any decisions regarding the identification procedures proposed. This includes the right to speak to an Attorney on the telephone.

The procedures outlined in this Notice are detailed in the Identification Regulations 'Code D' for the Identification of Persons by Police Officers which you may consult.

You will be given a copy of both parts of this Notice.

1. The purpose of an identification procedure is to test the ability of a witness to pick out from a set of images or group similar looking people, the person they say they saw on a specified occasion, if that person is present.
2. A police of the rank of sergeant or above who is not involved in the investigation is responsible for the arrangements and conduct of identification procedures. This officer is called the "identification officer". The officer may allow another officer or a civilian support staff, who is not involved in the investigation to make arrangements for any of these identification procedures. In delegating these procedures, the identification officer must be able to supervise effectively and either intervene or be contacted for advice.
3. If it is proposed to hold an identification procedure, you will initially be offered a video identification unless: (a) a video identification is not practicable; or (b) an identification parade is both practicable and more suitable than a video identification or (c) a group identification is initially offered because police consider it is more suitable than a video identification or an identification parade and the identification officer considers it is practicable to arrange. The identification officer and the officer in charge of the investigation shall consult each other to determine which option is to be offered. An identification parade may not be practicable because of factors relating to the

witnesses, such as their number, state of health, availability and travelling requirements. A video identification would normally be more suitable if it could be arranged and completed sooner than an identification parade. If you refuse the procedure you are first offered, you will be asked to state why and you may obtain advice from your Attorney and/or if present, the appropriate adult. You and your Attorney and appropriate adult will be allowed to make representations about why another procedure should be used. Your reasons for refusing and any representations made will be recorded. After considering any reasons given, and representations made, the identification officer will if appropriate, arrange for you to be offered an alternative which the officer considers suitable and practicable in your case. If the officer decides it is not suitable and practicable to offer an alternative, the reasons for that decision will be recorded.

4. If you significantly alter your appearance between being offered an identification procedure and any attempt to hold an identification procedure, this may be given in evidence if the case comes to trial and the identification officer may then consider other forms of identification.
5. A video (moving image) or photograph may be taken of you when you attend for any identification procedure.
6. You or your Attorney will be given details of the description of the suspect as first given by any witnesses who are to attend the video identification, identification parade, group identification, or confrontation. You or your Attorney will also be allowed, provided it is practicable to do so and would not unreasonably delay the investigation, to view any material which police have released to the media for the purpose of recognizing or tracing suspects in connection with your case. You will also be informed. Whether a witness has been shown any photograph, photo fit, identikit or similar photographs by the police.
7. If you change your appearance before an identification parade, it may not be practicable to arrange one, on the day in question or subsequently and because of your change of appearance, the identification officer may then consider alternative methods of identification.
8. If you or your attorney have a reasonable objection to any other participants in an identification procedure or to any of the arrangements, you or your Attorney will be asked to state the reasons for the objection. Steps shall, if practicable, be taken to

remove the grounds for objection. If this is not practicable you or your Attorney will be told why and the objection, the reasons for it and why it cannot be met will be recorded. Such objections should be directed to the identification officer or person conducting the procedure.

9. At the conclusion of a procedure, you can make any comments you wish and these will be recorded.
10. If you have not been detained, photographs of you (and the negatives and all copies thereof) taken for the purpose of, or in connection with, identification procedures will normally be destroyed if you are, (a) acquitted of the charge the photograph shall be destroyed within three months from the date of the acquittal, or (b) give your informed written consent for them to be retained and used for purposes related to the prevention or detection of crime, the investigation of offences or the conduct of the prosecutions by or on behalf of the police or other law enforcement and prosecuting authorities inside and outside Jamaica. The above also applies to moving images of you (and copies) whether or not you have been detained.

IDENTIFICATION PROCEDURES – form ID1A continue

Video identification

11. The witness is shown a video or set of images which must include you and at least eight other people who as far as practicable resemble you in age, height, general appearance and position in life. These persons will be pre-selected and identified by a number.
12. Both you and the others shall as far as possible be shown in the same positions or carrying out the same activities and under identical conditions. The conditions need not be identical however if this is not practicable provided that any differences in the conditions do not direct a witness's attention to you or any other person.
13. You or your Attorney will be given a reasonable opportunity to view the images before they are shown to any other witness.
14. You or your attorney will, if practicable, be given a reasonable notification of the time and place that the images will be shown to witnesses. You will not be present but your Attorney or appropriate adult may. If your Attorney or appropriate adult is not present, the showing of the images to the witnesses will be recorded on video in the presence of a Justice of the Peace.

15. Only one witness will see the set of images at a time and the witness will not be told who the suspect is.
16. If the identification officer has images of you, taken or obtained before you were given this notice you will be told and asked if you wish to co-operate in providing further suitable images which will be used in place of those previously taken or obtained.

Identification Parade

17. You will be asked to stand in line with at least eight pre-selected people who, so far as practicable, are of similar age, height and general appearance to you. Each person's position will be clearly numbered. You may stand in any position in the line you wish but may not otherwise interfere with the order of others forming the line.
18. An identification parade may take place either in a normal room or in one equipped with a screen permitting witnesses to see its members without being seen. The procedures for the composition and conduct of an identification parade are the same whether or not a screen is used but a parade that uses screen may take place only if your Attorney, appropriate adult or a justice of the peace is present
19. The parade will be inspected by the witness. If there is more than one witness, each will be brought in separately.
20. If you have an unusual physical feature, for example, a facial scar or tattoo or distinctive hairstyle or hair colour which cannot be replicated on other members of the identification parade steps may be taken to conceal the location of that feature on you and the other members of the identification parade, if you agree. An example would be the use of a plaster or a hat, so that all members of the identification parade resemble each other in general appearance. Should a witness request the removal of this article in order to confirm an identification then that witness should be asked whether they can positively identify any person on the basis of what they can see and their reply should be noted. A request for the removal may then be made.
21. You will be allowed to change your position in the line after each witness has left. The witness will not be told who the suspect is.

Group identification

22. A group identification should be held in a place other than a police station, but may be held in a police station when the identification officer considers it not practicable to hold it elsewhere.
23. The identification officer will determine the location of a group identification and the method by which it will be carried out. You will be invited to join a group of people who may be stationary or moving. The officer will consider the general appearance and number of people likely to be present at the location and select one where it is reasonably expected that the witness will see who are broadly similar in appearance to you.

ATTORNEYS, APPROPRIATE ADULTS AND OTHER REPRESENTATIVES

24. You will be given a reasonable opportunity to have an Attorney and an appropriate adult present and you will be asked to indicate on part 2 of the Notice whether or not you so wish.
25. If you are under 18 or are mentally disordered, your participation in an identification procedure must be in the presence of an appropriate adult.

CONSENT

26. You do not have to consent to co-operate in a video identification, identification parade or a group identification.
27. If you do not consent to or co-operate in a video identification, identification parade or a group identification, your refusal may be given in evidence in any subsequent trial and police may proceed covertly without your consent or make other arrangements to test whether a witness can identify you.
28. You are asked to sign this form to indicate whether you are willing to take part in a video identification, identification parade or group identification. If you refuse to consent, you are not obliged to give your reasons.

APPENDIX 'A' TO FORCE ORDERS 3237 DATED 2009-06-18

GUIDELINES FOR VISITING COMMITTEES
POLICE LOCKUPS

The purpose of the Visiting Committee Scheme is to ensure that arrangements for the detention and custody of prisoners are satisfactory and accord with Force Policy.

Visiting Justices of the Peace are authorized to enter any police station in the parish in which they are appointed for the purpose of carrying out their objectives.

Visiting Justices of the Peace must:

- (a) Interview any prisoner alone or in the presence, but not necessarily in the hearing of a member of the Force:
 - i. ascertain whether or not the prisoner has any complaints;
 - ii. record any such complaints, which record must be certified by the senior police persons present at the station;
 - iii. remit such complaints with any comments, or recommendations they may wish to make to the police officer in charge of the parish, the Custos, the Commissioner of Police and the Minister, as they deem appropriate.
- (b) Enquire into the question of bail having regard to the provisions of any law in force.
- (c) Inspect the records relating to the arrest, detention and court appearance of each prisoner to ensure that:
 - i. the prisoner is legally in custody;
 - ii. court appearance dates are met;
 - iii. persons are not kept in custody for unduly long periods.
- (d) Inspect the medical journal/medical directives/advisories relating to each prisoner.
- (e) Inspect lockups/holding facilities for prisoners and report on their suitability in respect of:
 - i. comfort
 - ii. hygiene
 - iii. general conditions

- (f) Observe and assess the state of the building housing the lockups and bring to the notice of the Divisional Officer, the Custos, the Commissioner of Police and the Minister of National Security any repairs, alterations, additions, etc., which may appear necessary.
- (g) Make enquiries concerning the diet served to prisoners and make comments/reports thereon to the Divisional Officer, the Custos, the Commissioner of Police and the Minister.

Visiting Committees may not embark on inspection of police facilities unconnected with the arrest, custody and care of prisoners and are prohibited from raising issues concerned with the guilt or innocence of any person in police custody as these are the prerogative of the criminal justice system.

All information obtained in the course of visiting police lockups should remain confidential and should not be released to the public under any condition.

VISITING TEAM

No less than two (2) Justices of the Peace should comprise a team visiting a lockup. The senior Justice will be responsible for recording the visit.

FREQUENCY OF VISITS

Lockups should be visited at least once each week between the hours of 8:00 am and 6:00 pm though if the circumstances require, visits may be made at any time during a twenty-four (24) hour period. Visits may be pre-arranged with the police or if considered necessary without notice.

Ministry of National Security
24th September, 1993

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PRISON CELL VISITING REPORT

Name of Police Station Visited: _____ Date: _____

Officer in charge: _____ Officer on Duty: _____ Time: _____

Number of Persons in Cell/Lock-Up	
Number of Persons convicted	
Number of Persons not convicted	
Number of Persons detained	
Number of Persons remanded	
Number of Persons for Circuit Court	
Number of Persons detained over 72 hours not charged	
Number of Foreigners	
Number of Persons charged	
Number of Persons for Identification Parade	
Number of Persons not before the Courts	
Remarks	

Name of Justice of the Peace: _____ Signature: _____

Name of Justice of the Peace: _____ Signature: _____

Name of Justice of the Peace: _____ Signature: _____

VISITING COMMITTEE
REPORT ON LOCK-UPS

PARISH: _____ LOCATION OF STATION: _____

INSPECTION DATE: _____ TIME: _____ BY APPOINTMENT: YES OR NO

VISITING JUSTICES OF THE PEACE: (List names- please print)

GAZETTED OR SUB-OFFICER IN CHARGE OF STATION (name) _____

WERE THEY PRESENT AT TIME OF INSPECTION: ☐ YES ☐ NO

DUTY OFFICER AT TIME OF VISIT: (name) _____

SENIOR PERSON ACTUALLY PRESENT AT TIME OF INSPECTION (if different from above): (name) _____

CONDITION OF CELLS & DETAINEES

NUMBER OF CELLS ____ CONDITION OF CELLS: ☐ CLEAN ☐ UNCLEAN

- | | | |
|--------------------------------------|-------------------------------------|--------------------------------------|
| 1. AVERAGE LENGTH OF STAY: | ☐ 1-6 MONTHS | ☐ 6-12 MONTHS |
| 2. PROVISION FOR FEMALE DETAINEES: | ☐ YES | ☐ NO |
| 3. PROVISION FOR JUVENILE DETAINEES: | ☐ YES | ☐ NO |
| 4. PROVISION FOR THE MENTALLY ILL: | ☐ YES | ☐ NO |
| 5. SLEEPING ARRANGEMENT PROVIDED: | ☐ YES | ☐ NO |
| 6. RATION ARRANGEMENT PROVIDED: | ☐ YES | ☐ NO |
| 7. EXERCISE FACILITIES PROVIDED: | ☐ YES | ☐ NO |
| 8. MEDICAL TREATMENT CENTRE: | ☐ YES | ☐ NO |

9. CELL OCCUPANCY

Cell/Area	Intended	Actually Seen
Holding Area		
Hallway		
Cell No. 0		
Cell No. 1		
Cell No. 2		
Cell No. 4		
Cell No. 5		

10. TOILET/ BATHING FACILITIES

		Working	Not Working	Clean	Unclean
Shower	#1				
Shower	#2				
Toilet	#1				
Toilet	#2				

PERSONS SEEN/ INTERVIEWED UNDER DETENTION: (comment)

ANY OTHER COMMENTS:

SIGNATURES OF INSPECTING JUSTICES OF THE PEACE

DATE: _____

SIGNATURE OF SUB-OFFICER i/c STATION

DATE: _____

REMANDING DETAINEES IN LOCKUPS

From time to time, the Police will detain persons for various reasons during the course of an investigation. At times, there are aspects of the case pending such as Identification Parade or a Question and Answer session. Justices of the Peace may assist by making enquiries to ensure that the constitutional and other legal rights of these persons are maintained in these circumstances.

Therefore, when a Justice of the Peace visits the lock-ups enquiries will have to be made as to the reasons why persons are detained. Justices of the Peace are obligated to ask why persons are held over 48 hours or for an extended period without being charged. Reasons offered may vary from (1) difficulty in arranging the ID parade, (2) difficulty in contacting witnesses or complainant or (3) awaiting a Question and Answer session. The Bail Act now makes it possible for the question of bail to be determined where an individual has been detained but not yet charged.

In instances where a person has been charged for minor offences and the court date is far off then the Justice of the Peace may consider offering bail to the individual, in accordance with the Bail Act. In other instances, where persons are properly remanded but are experiencing discomfort, e.g. ailing from heart conditions, respiratory-related illnesses or diabetes, the Justice of the Peace should take steps to ensure that these persons receive medical attention or make arrangements for other interventions.

Where a Justice of the Peace cannot demand the release of a detainee, their concern should be conveyed to the Senior Officer in charge of the lockup, note it in their diary or notebook and then express it in writing to the Custos.

Always ensure that there is accountability for every detainee and there is a clear understanding as to the reason why persons are being detained. Finally, never put yourselves in a situation where there is a conflict of interest or where justice may be perceived to have not been served.

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Step 3

If you qualify for legal aid, an attorney assigned to the case will come to court with you.

Please note:

- ☛ You may be asked to pay a part of your legal fees.
- ☛ If you cannot afford it you will not be asked to pay.
- ☛ The Legal Aid Council will pay the fee to your attorney and will give you a voucher and direct you to any Scotia bank to make your contribution towards that fee.
- ☛ You can pay in installments.

If you have difficulty paying you must tell this to the person who interviewed you. If you do not do so, you may not be able to get any legal assistance.

REMEMBER...

You must pay your portion at the time and place which you are told.

If your financial situation gets better or worse, you must tell the court and your contribution will be worked out again.

All criminal offences qualify for legal aid in court except Money Laundering, some Drug Offences and Petty Session matters for adults.

What is Legal Aid?

Legal aid is the provision of assistance to people otherwise unable to afford legal representation and access to the court system.

Legal aid is regarded as central in providing access to justice by ensuring equality before the law, the right to counsel and the right to a fair trial.

Legal aid is also granted for appeal matters. Any complaint against an Attorney may be made to the General Legal Council at 78 Harbour Street, Kingston.

For more information, contact:

The Legal Aid Council
3rd Floor Oxford Place
6 Oxford Road
Kingston 5
Telephone: 948-6999

The Kingston Legal Aid Clinic
131 Tower Street
922-3761

The Montego Bay Legal Aid Clinic
42B Union Street
Montego Bay

Ministry of Justice
61 Constant Spring Road
Kingston 10
Telephone: 906-4923-31
1-888-4-**JUSTICE** (5878423) Email:
customerservice@moj.gov.jm



The Ministry of Justice

“Balancing Rights and Responsibilities”

Legal Aid
In
Criminal Matters

At the Police
Station



Legal Aid at the Police Station

Can I get legal aid at a police station?

Every person who is detained or remanded at a police station lockup whether charged or not, may be granted legal aid if he/she has not been put before the court.

A person charged with an offence, except under the Money Laundering Act or sections of the Dangerous Drugs Act is also entitled to legal aid by the Duty Counsel.

Will help at the police station be free?

Yes, persons who are represented by the Duty Counsel should not pay for this assistance.

Who is a Duty Counsel?

A Duty Counsel is an Attorney-at-Law who is available to attend a police station when called to do so.

What must I do to get legal assistance at a police station?

- ☛ You can ask the police to contact your own attorney or;
- ☛ You can ask the police to contact a Duty Counsel.

What will the police do?

The police will:

- ☛ inform you of your right to legal aid and to representation by a Duty Counsel
- ☛ contact a Duty Counsel on your request.

What will the Duty Counsel do?

The Duty Counsel will:

- ☛ attend at the place where you are being detained or remanded and give you legal advice;
- ☛ attend an identification parade where required;
- ☛ make bail application on your behalf to the police or to the courts;
- ☛ appear for you on your first appearance in court.
- ☛ represent you during your Question and Answer session by the police.

Can the police question me before the Duty Counsel arrives?

Once you have asked the police to contact a duty counsel on your behalf, they should wait until the counsel arrives before questioning you. You do not have to answer any questions until you have spoken with the Duty Counsel if you do not wish to do so.

What happens after my first appearance in court?

The duties of the Duty Counsel end after your first appearance at court if the matter reaches that far.

After that, you must apply for legal aid if you believe that you need further assistance.

How to get Legal Aid Three Easy Steps

Step 1

Complete an application form at any Legal Aid Clinic or Court's Office. If you are in court, indicate to the judge or magistrate that you are unable to afford an attorney and request an assignment of a lawyer.

The application form requires you to give detail of your earnings, expenses and savings (Means Test).

If you are under 18 years your parent or guardian or any other adult can apply on your behalf.

Step 2

On completion of the form:

- ☛ The Court's Office which is dealing with your case
- ☛ The Legal Aid Clinic
- ☛ The Registrar of the Gun Court
- ☛ The Registrar of the Supreme Court
- ☛ The Registrar of the Court may inform you of the things you will need:
- ☛ Any proof of your income or savings, earnings and expenses

SOCIAL GRACES AND GOOD ETIQUETTE

As a Justice of the Peace, one should always remember to act at all times, in accordance with the Code of Conduct for Justices of the Peace.

Social graces are those skills that we use to interact with one another. These include manners, etiquette, dress and refinement.

Additionally, Justices of the Peace are expected to observe social graces and demonstrate their social responsibilities. JPs are to display good manners and social graces – not just at special events – but at all times, as part of their daily lives.

Here are a few tips on how you may refine your social graces:

- 1) Build an authentic and honest brand
- 2) Be open and confident
- 3) Dress appropriately, at all times and for the occasion
- 4) Be well-groomed, at all times
- 5) Be courteous
- 6) Be polite
- 7) Build rapport for better relationships
- 8) Convey warmth and enthusiasm, especially in public settings
- 9) Convey competence
- 10) Sharpen your dining etiquette and table manners
- 11) Be on time
- 12) Know when to put the cell phone away
- 13) Answer the telephone politely, each time
- 14) Remember the words - “Please”, Excuse me”, and “Thank you”
- 15) Try not to interrupt others when they are speaking
- 16) Knock on closed doors before entering
- 17) Cover your mouth/nose when coughing or sneezing
- 18) Do not raise your voice indoors

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DINING ETIQUETTE

DINING WITH CONFIDENCE

Did you know that the point of etiquette rules is to make you feel comfortable, not uncomfortable? The idea is that if there are standards that people abide by, then you can have confidence that you are behaving "appropriately." It takes the guesswork out of public behaviour.

BREAD ON THE LEFT, DRINK ON THE RIGHT

Which drink is yours? This is one of the first decisions at the dinner table because oftentimes, napkins are in the glass when you arrive at the table.

b d

Here is an easy tip to help you remember. Hold both hands in front of you, palms facing each other. Using the tips of your thumb and forefinger, make circles on each hand. The remaining three fingers in each hand point upwards. Your left hand will form a "b" and your right hand will form a "d". Bread (b) is on the left, and drink (d) is on the right.

If your neighbour has already taken your bread plate or drink, quietly ask the waiter for another.

NAPKINS

Napkins belong in your lap. Large napkins can be folded in half or with a quarter folded over the top. They should never be tucked into your shirt like a bib.

Wait for the host to unfold his napkin before unfolding yours. In a banquet setting or at a restaurant, simply place your napkin in your lap as soon as you are seated.

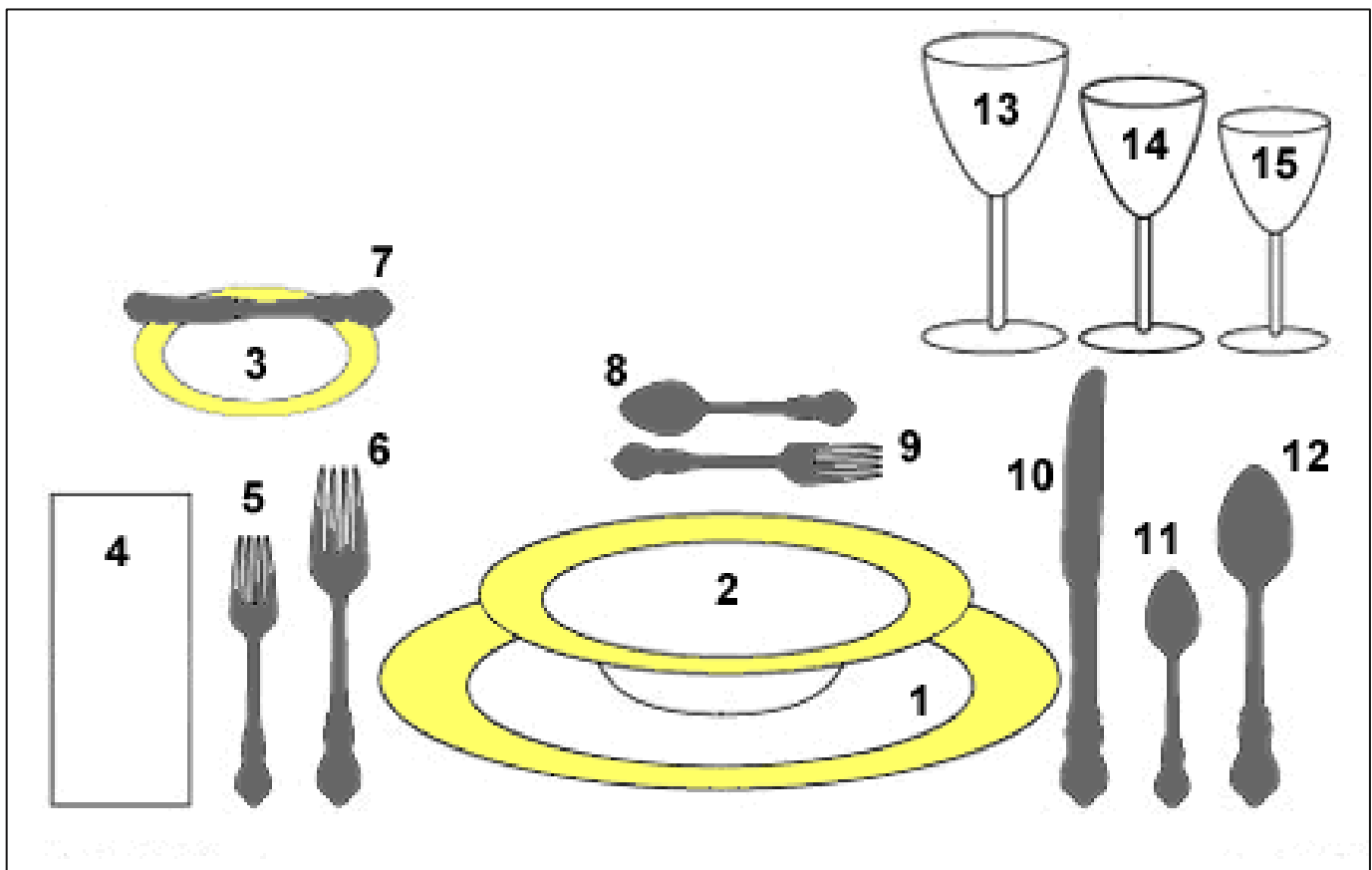
If you excuse yourself from the table, loosely fold the napkin and place it to the left or right of your plate. Do not refold your napkin or wad it up on the table either.

Note: Some respected etiquette experts will disagree and flatly state that when leaving the table, you should hang the napkin over the back of your chair. Whatever you do, do not place the napkin on the seat of your chair. You don't want to wipe your mouth with a napkin that has been left on the seat.

PLACE SETTINGS ETIQUETTE

Place settings can be confusing. The general rule for silverware is to work from outside in, as the meal progresses.

***** NOTE:** *Table setting may according to several variables*



PLACE SETTINGS ETIQUETTE (con't)

1. Dinner plate - The centre of the place setting. When finished eating, do not push the plate away from you. Instead, place both your fork and knife across the centre of the plate, handles to the right. Between bites, your fork and knife are placed on the plate, handles to the right, not touching the table.
2. Soup bowl - May be placed on the dinner plate. If you need to set your soup spoon down, place it in the bowl. Do not put it on the dish under the bowl until finished.
3. Bread plate - Belongs just above the tip of the fork. Bread should be broken into bite-sized pieces, not cut. Butter only the piece you are preparing to eat. When butter is served, put some on your bread plate and use as needed.
4. Napkin - Placed to the left of the fork with the fold on the left. Sometimes placed under the forks or on the plate.
5. Salad fork - If a salad fork is used, it belongs to the left of the dinner fork.
6. Dinner fork - Placed to the left of the plate. No more than three forks to the left of the plate. If there are three forks, they are usually salad, fish, and meat, in order of use, from outside in. An oyster fork always goes to the right of the soup spoon.
7. Butter knife - Place horizontally on the bread plate.
8. Dessert spoon - Above the plate.
9. Cake fork - Above the plate.
10. Dinner knife - To the right of the plate. Sometimes there are multiple knives, perhaps for meat, fish, and salad, in order of use from outside in.
11. Tea spoon - To the right of the dinner knife.
12. Soup spoon - If needed, to the right of the tea spoon.
13. Water glass - Just above the tip of the knife.
14. Red wine glass - To the right of the water glass.
15. White wine glass - To the right of the red wine glass. A glass of white wine is held on its stem to preserve the chill. It should be served at 45 to 55 degrees Fahrenheit.
16. Coffee cup and saucer not pictured - If needed, bring at the time of coffee service.

GENERAL DINING ETIQUETTE

The correct procedure for eating and drinking in company worries many people quite unnecessarily.

Here are some procedures to remember:

- ✓ Food is served from the left. Plates are cleared from the right.
- ✓ For soup, dip into the soup from the edge of the bowl to the middle moving away from you. Only fill the spoon $\frac{3}{4}$ full to avoid spilling. Sip not slurp from the edge of the spoon. Do not insert the whole bowl of the spoon into your mouth.
- ✓ It is proper to tip the bowl slightly away from you to get all the soup. If the soup is too hot let it cool. Do not blow on it.
- ✓ Taste your food before adding seasonings.
- ✓ Do not ask to taste someone else's food. Similarly, do not offer a taste of your food to someone else.
- ✓ Do not talk with your mouth full.
- ✓ Cut only enough food for the next mouthful.
- ✓ Never turn your glass upside down to decline wine. It might be interpreted as a sign of protest. It is more polite to let the wine be poured than to draw attention to yourself. When you are asked about wine and you will not be drinking, quietly decline. A well-trained waiter will remove the glass or turn the glass upside down.
- ✓ Do not smoke at the table. Nowadays smoking is almost not allowed in dining rooms.
- ✓ Do not ask for a "doggy bag" or a take away bag unless it is an informal dining situation.
- ✓ Chew with your mouth closed.
- ✓ Practice good posture. If not eating, place your hands in your lap or rest your wrists on the edge of the table. Do not put your elbows on the table.
- ✓ If hot food is burning your mouth discreetly drink something cool to counteract the hot food.
- ✓ When dining out order food that can be eaten with utensils.
- ✓ Do not wave your utensils during conversation; these should be in your hand only when you are about to take the next bite; otherwise, they remain on your plate.

OATH OF ALLEGIANCE

I, **DO SWEAR THAT** I will be faithful and bear true allegiance to Jamaica, that I will uphold and defend the Constitution and the laws of Jamaica and that I will conscientiously and impartially discharge my responsibilities to the people of Jamaica.

So help me God.

OATH OF OFFICE

I, **DO SWEAR THAT** I will well and truly serve the people of Jamaica in the Office of the Justice of the Peace for the Parish of St. Andrew, and I will do right to all manner of people after the laws and usages of Jamaica without fear or favour, affection or ill will.

So help me God.

AFFIRMATION

I, DO SOLEMNLY AND TRULY DECLARE AND AFFIRM that I will be faithful and bear true allegiance to Jamaica, that I will uphold and defend the Constitution and the Laws of Jamaica and that I will conscientiously and impartially discharge my responsibilities to the people of Jamaica.

AFFIRMATION

I, DO SOLEMNLY AND TRULY DECLARE AND AFFIRM THAT I will well and truly serve the people of Jamaica in the Office of Justice of the Peace for the Parish of _____, and I will do right to all manner of people after the laws and usages of Jamaica without fear or favour affection or ill will.

APPENDIX

(within the Manual)

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**JAMAICAN
ORDER OF PRECEDENCE**

&

**MODES OF ADDRESS
IN THE
JAMAICAN ORDER OF PRECEDENCE**

(As published by the Chancery and Protocol Division, The Office of the Prime Minister)

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ORDER OF PRECEDENCE

(as prescribed by the Proposed Table of Precedence of 2007)

1. **The Governor-General** – His Excellency The Most Honourable Sir Patrick Allen, ON, GCMG, CD, KSt.J

2. **Prime Minister**
The Most Honourable Andrew Holness, ON, PC, MP

3. **Deputy Prime Minister**
Honourable Dr Horace Chang, CD, MP

Leader of the Opposition – Mr Mark Golding, MP

4. **Members of the Cabinet** ⁽¹⁾
President of the Senate
Senator the Honourable Thomas Tavares-Finson, OJ, CD, KC, JP

Speaker of the House of Representatives
The Most Honourable Juliet Holness, MP

5. **Former Governors-General**
The Most Honourable Professor Sir Kenneth Hall, ON, GCMG, OJ

Former Prime Ministers
The Most Honourable Portia Simpson Miller, ON
Mr Bruce Golding
The Most Honourable Percival James Patterson, ON, OCC, KC

6. **Chief Justice**
The Honourable Mr Justice Bryan Sykes, OJ, CD
President of the Court of Appeal
The Honourable Mr Justice Patrick Brooks, OJ, CD

7. **Ministers of State** ⁽²⁾

8. **President of Jamaica Council of Churches**
The Most Rev’d Kenneth Richards, DD, CD

9. **Widows/Widowers of National Heroes**
Widows/Widowers of Former Governors-General
Widows /Widowers of Former Heads of Government
The Most Honourable Mrs Hugh Shearer
The Most Honourable Mrs Michael Manley
The Most Honourable Mrs Edward Seaga

10. **Attorney-General**
Dr. Derrick McKoy, CD, KC

11. **Cabinet Secretary (Head of the Civil Service)**
Honourable Audrey V. Sewell, OJ, CD, JP

12. **Head of the Foreign Service**
Ambassador Sheila Sealy-Monteith, CD, JP
Dean of the Diplomatic Corps
His Excellency Lasford Douglas [Republic of Panama]
High Commissioners & Ambassadors ⁽³⁾
Head of Delegation of the European Union
Her Excellency Ms Marianne Van Steen
Secretary-General of the International Seabed Authority
His Excellency Michael Lodge

13. **Members of the Privy Council** ⁽⁴⁾

14. **Deputy Speaker of the House of Representatives**
Mr Heroy Anthony Clarke, MP

Parliamentary Secretaries ⁽⁵⁾

15. **Members of the Senate** ⁽⁶⁾
Members of the House of Parliament ⁽⁷⁾

16. **Judges of the Court of Appeal** ⁽⁸⁾
Judges of the Supreme Court ⁽⁹⁾

17. **Chairman of the Public Service Commission**
Mrs Patricia Sinclair McCalla, CD

Financial Secretary
Miss Darlene Morrison, CD
Permanent Secretaries ⁽¹⁰⁾
Solicitor General
Mrs Marlene Aldred, KC
Governor of the Bank of Jamaica
Mr Richard Byles
Auditor General
Mrs Pamela Monroe Ellis
Director of Public Prosecutions
Miss Paula Llewelyn, CD, KC

18. **Chief of Defence Staff, Jamaica Defence Force**
Rear Admiral Antonette Wemyss-Gorman, CD, JP, psc

Commissioner of Police
Major General Antony Anderson, CD, JP

19. **Mayors and Chairmen of Parish Councils** ⁽¹¹⁾
Except on municipal occasions when they take precedence immediately after the Prime Minister

20. **Custodes of Parishes** ⁽¹²⁾
except on formal Occasions (other than municipal occasions) in their own parishes when they take precedence as representatives of The Governor-General

21. **Chief of State Protocol**
Ambassador Sandra Grant Griffiths, CD, JP
Resident Representative/Resident Coordinator of the United Nations Development Programme
Mr Bruno Pouezat
Heads of Offices of International Organisations ⁽¹³⁾
Consuls-General ⁽¹⁴⁾
Members of the Consular Corps ⁽¹⁵⁾

22. **Vice-Chancellor of the University of the West Indies**
Professor Sir Hilary Beckles
President of the University of Technology
Dr. Kevin Brown

23. **Chairmen of political parties having representation in Parliament**

General Secretaries of political parties having representation in Parliament

24. **Holders of Jamaican National Honours**
Order of Merit and Order of Jamaica

Members of the Cabinet (1)

The Most Honourable Andrew Holness, ON, PC, MP
Honourable Dr Horace Chang, CD, MP
Dr the Honourable Nigel Clarke, MP
Senator the Honourable Kamina Johnson Smith
The Honourable Olivia Grange, OJ, CD, MP
Honourable Edmund Bartlett, CD, MP
Dr the Honourable Christopher Tufton, MP
Honourable Desmond McKenzie, CD, MP
Honourable Delroy Chuck, KC, MP
Honourable Fayval Williams, MP
Honourable Pearnel Charles Jr, MP
Honourable Daryl Vaz, MP
Senator the Honourable Aubyn Hill
Honourable Marlene Malahoo-Forte, KC, MP
Honourable Floyd Green, MP
Honourable Everald Warmington, CD, MP
Senator the Honourable Matthew Samuda
Honourable Robert Morgan, MP
Senator Dr. the Honourable Dana Morris Dixon

Ministers of State (2)

Honourable Homer Davis, CD, MP
Honourable Juliet Cuthbert Flynn, OD, MP
Honourable Zavia Mayne, MP
Honourable Alando Terrelonge, MP
Honourable Marsha Smith, MP
Honourable Dr Norman Dunn, BH{M}, MP
Honourable J C Hutchinson, CD, MP
Honourable Franklin Witter, MP

High Commissioners/Ambassadors/Charge D’Affaires (3)

His Excellency Lasford Douglas [Republic of Panama]
His Excellency Juan Gonzalez Mijares [United Mexican States]
Her Excellency Lumka E. Yengeni [Republic of South Africa]
His Excellency Deryck Lance Murray [Rep of Trinidad and Tobago]
His Excellency Masakui Rungsung [Republic of India]
His Excellency Diego Bermejo Romero De Terreros [Kingdom of Spain]
Her Excellency Emina Tudakovic [Canada]
Her Excellency Angie Shakira Martinez [Dominican Republic]
Her Excellency Dr Maureen Piribonemi Tamuna [Federal Republic of Nigeria]
His Excellency Sergey Petrovich [Russian Federation]
Her Excellency Ms Judith Slater [United Kingdom]
Her Excellency Elza Moreira Marcelino Castro [Federative Republic of Brazil]
His Excellency Olivier Guyonvarch [The French Republic]
His Excellency Fermin Gabriel Quinones Sanchez [Republic of Cuba]
His Excellency Noah Nickolas Perry [United States of America]
His Excellency Daojiang Chen [People’s Republic of China]
Mr Jan Hendrik Van Thiel [Federal Republic of Germany]
His Excellency Yasuhiro Atsumi [Japan]
His Excellency Jose Antonio Cabedo Espinosa [Republic of Chile]
His Excellency Emiliana Bernard Stephenson [Republic of Colombia]
His Excellency Ellen De Geest [Kingdom of Belgium]

Charges d’Affaires

Mr Jose Antonio Sánchez-Vegas Tortoza [Bolivarian Republic of Venezuela]
Mr Facundo Santiago [The Argentine Republic]
Mr Jose David Sanchez [Republic of Costa Rica]
Mr Jin-Wook Kim [Republic of Korea]

Members of the Privy Council (4)

The Honourable Mrs Justice (Ret’d) Zaila McCalla, OJ
The Honourable Dennis Lalor, OJ
The Honourable Douglas Orane, CD
The Honourable Mr Justice Ferdinand Smith, CD
The Honourable Geoffrey Madden, CD, LVO
The Honourable Dr Eileen Boxhill, CD, KC

Parliamentary Secretary (5)

Members of the Senate (6)

Government

Senator the Hon Thomas Tavares-Finson, OJ, CD, KC, JP - President
Senator Charles Sinclair- Deputy President
Senator the Honourable Aubyn Hill
Senator the Honourable Kamina Johnson Smith
Senator Dr. the Honourable Dana Morris Dixon

Senator the Honourable Matthew Samuda
His Worship the Mayor Senator Councillor Delroy Williams, CD
Senator Ransford Braham, CD, KC
Senator Kavan Gayle, CD
Senator Don Wehby, CD
Senator Dr Sapphire Longmore-Dropinski
Senator Abka Fitz-Henley
Senator Sherene Golding Campbell

Opposition

Senator Dr Floyd Morris
Senator Lambert Brown, CD
Senator Damion Crawford
Senator Sophia Fraser-Binns
Senator Donna Scott-Mottley
Senator Janice Allen
Senator Gabriella Morris
Senator Peter Bunting

Members of the Houses of Parliament (7)

Government

The Most Honourable Andrew Holness, ON, PC, MP
Honourable Edmund Bartlett, CD, MP
Mr Dave Hume Brown, MP
Honourable Dr Horace Chang, CD, MP
Honourable Pearnel Charles, Jr, MP
Honourable Delroy Chuck, KC, MP
Mr Heroy Anthony Clarke, MP
Dr the Honourable Nigel Clarke, MP
Honourable Juliet Cuthbert Flynn, OD, MP
Honourable Marissa Dalrymple-Philibert, CD, MP
Honourable Dr Norman Dunn, BH{M}, MP
Honourable Olivia ‘Babsy’ Grange, OJ, CD, MP
Honourable Floyd Green, MP
Honourable Lester ‘Mike’ Henry, OJ, CD, MP
The Most Hon Mrs Juliet Holness, MP
Honourable J C Hutchinson, CD, MP
Honourable Marlene Malahoo Forte, KC, MP
Honourable Zavia Mayne, MP
Honourable Desmond McKenzie, CD, MP
Mr Robert Montague, CD, MP
Honourable Robert Morgan, MP
Miss Kerensia Morrison, MP
Mr James Robertson, MP
Honourable Karl Samuda, OJ, CD, MP
Honourable Audley Shaw, OJ, CD, MP
Honourable Alando Terrelonge, MP
Dr the Honourable Christopher Tufton, MP
Mrs Annmarie Vaz, MP
Honourable Daryl Vaz, MP
Honourable Everald Warmington, CD, MP
Dr Andrew Wheatley, MP
Honourable Fayval Williams, MP
Honourable Franklin Witter, MP
Dr Michelle Charles, MP
Miss Rhoda Crawford, MP
Miss Tamika Davis, MP
Honourable Marsha Smith, MP
Miss Krystal Lee, MP
Miss Tova Hamilton, MP
Mr Robert Miller, MP
Mr Delroy Slowley, MP
Honourable Homer Davis, CD, MP
Mr Morland Wilson, MP
Mr Donovan Williams, MP
Mr Robert Chin, MP
Mr Dwight Sibblies, MP
Mr Phillip Henriques, MP
Mr Donald Lawrence, MP

Mr George Wright, MP

Members of the Houses of Parliament (7) (cont’d)

Opposition

Mr Mark Golding, MP – Leader of the Opposition

Dr the Honourable Peter Phillips, OJ, MP
Dr Angela Brown-Burke, MP
Miss Denise Daley, MP
Dr Morais Guy, CD, MP
Ms Lisa Hanna, MP

Mr G. Anthony Hylton, CD, MP
Mr Fitz Jackson, CD, MP
Mrs Natalie Neita Garvey, MP
Mr Phillip Paulwell, CD, MP
Mr Mikael Phillips, MP
Mr Julian Robinson, MP
Mr Hugh Graham, MP
Mr Lothan Cousins, MP

Judges of the Court of Appeal (8)
The Honourable Mr Justice Patrick Brooks, OJ, CD
President

The Honourable Mrs Justice Marva McDonald-Bishop, CD (Actg)
The Honourable Mrs Justice Almarie Sinclair-Haynes, CD
The Honourable Mr Justice Frank Williams, CD
The Honourable Miss Justice Paulette Williams, CD
The Honourable Miss Justice Jennifer Straw, CD
The Honourable Miss Justice Carol Edwards, CD
The Honourable Mrs Justice Nicole Foster-Pusey, CD, KC
The Honourable Mr Justice David Fraser
The Honourable Miss Justice Nicole Simmons, CD
The Honourable Mrs Justice Vivene Harris, CD
The Honourable Mrs Justice Marcia Dunbar-Green, CD
The Honourable Mr Justice Evan Brown
The Honourable Mrs Justice Georgiana Fraser (actg)
The Honourable Mr Justice Kissock Laing (actg)

Judges of the Supreme Court (9)
The Honourable Mr Justice Bryan Sykes, OJ, CD - ***Chief Justice***

Senior Puisne Judge
The Honourable Mrs Justice Carol Lawrence-Beswick, CD

Puisne Judges
The Honourable Mr Justice Andrew Rattray, CD
The Honourable Mr Justice Courtney Daye, CD
The Honourable Mr Justice Leighton Pusey, CD
The Honourable Miss Justice Christine McDonald, CD
The Honourable Mr Justice Martin Gayle, CD
The Honourable Mr Justice Bertram Morrison
The Honourable Mrs Justice Sarah Thompson-James, CD
The Honourable Mr Justice Kirk Anderson
The Honourable Mr Justice David Batts
The Honourable Mrs Justice Sharon George-Smith
The Honourable Mrs Justice Audre Lindo
The Honourable Miss Justice Cresencia Brown Beckford
The Honourable Mrs Justice Lorna Shelly-Williams
The Honourable Mr Justice Chester Stamp
The Honourable Mrs Justice Vinette Graham-Allen
The Honourable Mrs Justice Sonia Bertram-Linton
The Honourable Mr Justice Dale Palmer
The Honourable Miss Justice Carolyn Tie
The Honourable Mrs Justice Stephane Jackson-Haisley
The Honourable Mrs Justice Sonya Wint-Blair
The Honourable Mrs Justice Lisa Palmer-Hamilton
The Honourable Miss Justice Andrea Thomas
The Honourable Miss Justice Judith Pusey
The Honourable Miss Justice Yvonne Brown
The Honourable Mrs Justice Pettigrew-Collins
The Honourable Miss Justice Calys Wiltshire
The Honourable Mrs Justice Simone Wolfe-Reece
The Honourable Miss Justice Annmarie Nembhard
The Honourable Mrs Justice Grace Henry-McKenzie
The Honourable Miss Justice Tricia Hutchinson
The Honourable Miss Justice Carole Barnaby
The Honourable Mr Justice Vaughn Smith
The Honourable Ms Justice Tara Carr
The Honourable Mrs Justice Icolin Reid
The Honourable Mrs Natalie Hart-Hines
The Honourable Mrs Tania Mott Tulloch-Reid
The Honourable Mrs Justice Annmarie Lawrence-Grainger (Ag)
The Honourable Mrs Justice Sandria Wong-Small (Ag)
The Honourable Miss Justice Pamela Mason (Ag)
The Honourable Miss Justice Stephany Orr (Ag)
The Honourable Miss Justice Althea Jarrett (Ag.)
The Honourable Miss Justice Maxine Jackson (Ag)
The Honourable Miss Justice Sheron Barnes (Ag)
The Honourable Miss Justice Opal Smith (Ag)
The Honourable Mr. Justice Dale Staple (Ag)

Masters-in-Chambers
Miss Rosemarie Harris

Miss Pamela Mason/Acting PJ
Her Honourable Miss Stephany Orr/Acting PJ
Mrs Kamar Anderson
Miss Sherna Reid (Ag.)
Miss Heather Carnegie (Ag.)
Miss Carla Thomas (Ag)
Miss Tamara Dickens (Ag.)

Registrars
Mrs. Nicole Walters-Wellington
Miss Kayann Anguin
Miss Comnore Bennett - Commercial
Miss Tamsyn Bailey (Ag.) – Criminal
Miss Lorna Green (Ag.) - Revenue

Permanent Secretaries (10)
The Honourable Audrey V. Sewell, OJ, CD, JP – **Cabinet Secretary [OC]**
Ambassador Rocky Meade, CD, JP, PhD
Ambassador Sheila Sealy Monteith, CD, JP **[MFAFT]**
Miss Darlene Morrison, CD - Financial Secretary **[MFPS]**
Mrs Sancia Bennett Templer **[MIIC]**
Mrs Jennifer Griffith, CD, JP **[MOT]**
Mrs Marsha Henry-Martin **[MLGCD]**
Mrs Colette Roberts Risdén, CD **[MLSS]**
Mrs Carol Palmer, CD, JP **[MSETT]**
Mr Denzil Thorpe **[MCGES]**
Mr Dermon Spence **[MAFM]**
Mr Dunstan Bryan **[MOHW]**
Ambassador Alison Stone Roofe **[MNS]**
Dr. Kasan Troupe, **[MOEY]**
Mrs Grace Ann Stewart McFarlane **[MOJ]**
Mr Wayne Robertson **[MLCA]**
Mrs Arlene Williams **[MEGCC]**

Supernumerary Permanent Secretaries
Mr Dean-Roy Bernard **[MCGES]**
Dr Alwin Hales **[MSETT]**

Mayors (11)
His Worship the Mayor Councillor Winston Maragh, OD **(Clarendon)**
His Worship the Mayor Senator Councillor Delroy Williams, CD **(Kingston & St Andrew)**
His Worship the Mayor Councillor Sydney Stewart **(St Ann)**
His Worship the Mayor Councillor Derrick Sangster, OD **(St Elizabeth)**
His Worship the Mayor Councillor Richard Creary **(St Mary)**
His Worship the Mayor Councillor Leeroy Williams **(St James)**
His Worship the Mayor Councillor Michael Hue **(St Thomas)**
His Worship the Mayor Councillor Sheridan Samuels **(Hanover)**
His Worship the Mayor Councilor Bertel Moore, OD **(Westmoreland)**
His Worship the Mayor Councillor Donovan Anthony Mitchell **(Manchester)**
His Worship the Mayor Councillor Norman Scott **(St Catherine)**
His Worship the Mayor Councillor Leon Thomas **(Portmore Municipality)**
His Worship the Mayor Councillor Collen Gager **(Trelawny)**
His Worship the Mayor Councillor Paul Thompson **(Portland)**

Custodes (12)
Honourable Icylin Golding, CD, JP **[St Catherine]**
The Honourable Marcia Bennett, CD, JP **[St Thomas]**
Bishop The Honourable Conrad Pitkin, CD, JP **[St James]**
The Honourable Steadman Fuller, CD, JP **[Kingston]**
The Honourable Ian Forbes, CD, JP **[St Andrew]**
Lt Col the Honourable Errol Johnson, CD, JP **[St Mary]**
The Honourable Hugh Gentles, CD, JP **[Trelawny]**
The Very Reverend Canon the Honourable Hartley Perrin, CD, JP **[Westmoreland]**
The Honourable Garfield Green, CD, JP **[Manchester]**
The Honourable Beryl Rochester, CD, JP **[St Elizabeth]**
The Honourable William Shagoury, CD, JP **[Clarendon]**
The Honourable Dr David Stair, CD, JP **[Hanover]**
The Honourable Lincoln Anthony Thaxter, CD, JP **[Portland]**
The Honourable Norma Walters, CD, JP **[St Ann]**

Heads of International Organizations (13)
Dr Garry Conille **[UN]**
Mrs Denise Antonio **[UNDP]**
Dr Anna Paolini **[UNESCO]**
Mr Vincent Sweeney **[UNEP]**
Mrs Elizabeth Talbert **[UNFPA]**

Ms Olga Isaza [UNICEF]
Dr Richard Amenyah [UNAIDS]
Ms Lilia Burunciuc [WORLD BANK]
Ms Judith Green [IFC]
Mr Karim Youssef [IMF]
Miss Keisha Livermore [IOM]
Mr Crispim Moreira [FAO]

Mr Tariq Alli [IDB]
Dr Elizabeth Johnson [IICA]
Mrs Jeannelle van Glaanen Weygel [OAS]
Mrs Dionne Clarke-Harris [CARDI]
Mr Alex Gainer [USAID]
Dr Eduardo Ali [CXC]
Ambassador Wayne McCook [OTN]
Mr Ian Stein [PAHO/WHO]
Mr Courtenay Sumathi [UNOPS]
Mr Michael Lodge [ISA]
Mr. Vincent Sweeney [UNRCO]

Members – Consuls-General and Consular Corps (14)

Mr Robert Christopher Scott [Latvia] (Dean)
Ms Majory Lesa Kennedy [Australia]
Mr Josef Forstmayr, OD [Austria]
Mrs Alveta Knight [Bahamas]
Mr Michael Subratie [Bangladesh]
Mr Winston Bayley [Barbados]
Mrs Elecif Arthurs [Belize]
Mr James Goren [Brazil]
Mr James Joseph [Czech Republic]
Mrs Lisa McGreggor Johnston [Costa Rica]
Mr John C Ramson [Denmark]
Mrs Clelia Barreto De Hunter [Ecuador]
Mrs Yodit Hylton [Ethiopia]
Mr Andrew Issa [Finland]
Mr George Kontogeorgis [Greece]
Mr Kenneth Sylvester [Grenada]
Mrs Indera Persaud [Guyana]
Mr Laszlo Bakon [Hungary]
[Iceland]
Dr Michael Banbury [Indonesia]
Mr Brian Denning [Ireland]
Mr Kenneth C. Henriques [Israel]
Mrs Maria Carla Gullotta [Italy]
Mr Joseph George Handal [Jordon]
Mr Kishin Samtani [South Korea]
Mr Joseph Issa, OD [Malta]
Rear Admiral Peter Brady, CD, [Monaco]
Prof the Hon Dr Errol Morrison, OJ, [Namibia]
Mr Christian Tavares-Finson [Netherlands]
Senator Don Wehby, CD [New Zealand]
Mr Grantley Stephenson, CD [Norway]
Ms Peta-Kay Evania Chin [Philippines]
Mrs Irena Cousins [Poland]
Mr Paul Anthony Issa [Portugal]
[Russia]
Mr Vitus Evans [St Lucia]
Ms June P Barbour [St Vincent and the Grenadines]
Honourable John Issa, OJ, CD [Serbia]
Mr Christopher Issa [Slovakia]
Mrs Marjorie Lamont Henriques [Sri Lanka]
Honourable Sameer Younis, OJ [Suriname]
Mr Peter Goldson [Sweden]
Mr Ueli Bangerter [Switzerland]
Mrs Thalia Lyn, OD [Thailand]
Vacant [Turkey]
Honourable Jasmine Sappleton [Uruguay]

Consular Agents (15)

Mrs Lillian Crichton [Canada]
Mrs Yolanda Ensignia Saez [Chile]
Mrs Paola Pereyra Byles [Peru]
Mr Kishin Samtani [South Korea]
Miss Myrtle Dwyer [Spain]
Mrs Lisa Gallimore Hyde [USA]

[Updated – 2023/10/20 jc]

**MODES OF ADDRESS
IN THE
JAMAICAN ORDER OF PRECEDENCE**

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Head of State of Jamaica

The Queen

The full Royal Style and Title of the Queen is: ‘Elizabeth the Second, by the Grace of God of Jamaica and of Her other Realms and Territories Queen, Head of the Commonwealth’.

In formal announcements, The Queen should not be referred to as ‘she’ or ‘her’. After the initial mention the Queen should be addressed as: ‘Her Majesty The Queen’ or ‘The Queen’ or ‘Her Majesty’.

The Governor- General

The Governor-General is The Queen’s representative and performs most of the functions of Head of State.

The Mode of Address in

Writing/Formal Settings:

His Excellency The Most Honourable
Sir Patrick Allen, ON, GCMG, CD, KSt.J*
Governor-General
King’s House
Kingston 6

*ON	Order of the Nation
GCMG	Grand Cross of the Order of St. Michael and St. George
CD	Commander of the Order of Distinction
KSt.J	Knight of Grace of the Most Venerable Order of the Hospital of Saint John of Jerusalem

Opening Salutation:

(For the Foreign Service)

‘Your Excellency,
I have the honour to inform/invite/etc.....’

Closing:

I avail myself of the opportunity to assure Your Excellency of my highest consideration.’

Name

Title

or

Accept, Excellency, the renewed assurances of my highest consideration.'

Name

Title

(For Others) Opening

Salutation:

'Your Excellency'

Closing:

Yours faithfully,'

Name

Title

Verbal Address/Subsequent Referrals

'Your Excellency'

Semi-formal Address:

'Governor-General'

'Sir Patrick' (senior colleagues and personal friends)

Introduction:

Your Excellency, may I present

The initials H.E. (The abbreviation for His Excellency), are not for formal usage, but may be used in informal and third person usage.

The wife of the Governor-General is formally styled: 'Her Excellency the Most Honourable Lady Allen'

She may be addressed formally as 'Your Excellency' and informally as 'Lady Allen'.

The first name should never be used.

The Head of Government

The Prime Minister

In many Commonwealth countries, the Prime Minister is formally styled 'The Honourable'. If he/she becomes a member of the Privy Council of the United Kingdom (an office held for life), then he/she is styled 'The Right Honourable'.

If the Prime Minister of Jamaica is a member of the Privy Council he/she is formally styled: 'the Right Honourable', PC, MP'. Although it has become a tradition in Jamaica to use the postnominal letters 'PC', the British and other Commonwealth Countries generally do not use these letters, as it is considered implicit in the title 'Right Honourable'. It is therefore optional. However, if a Prime Minister becomes a member of the Order of the Nation, he/she is styled the Most Honourable and if he/she becomes a member of the British Privy Council, the letters PC must be placed after the name as the prefix 'Most Honourable' subsumes the prefix 'Right Honourable' eg. The Most Honourable P.J. Patterson, ON, OCC*, PC, QC.

* Mr Patterson was also awarded the Order of Caribbean Community, CARICOM's highest honour

At formal official functions if the Governor-General is not present and where the Prime Minister is present, the National Anthem should be played to announce the arrival of the Prime Minister. All persons present should stand silently with heels together and preferably with hands at sides

The Mode of Address in:

Writing:

The Most Honourable Andrew Holness, ON, PC, MP
Prime Minister
Office of the Prime Minister
1 Devon Road
Kingston 10

Opening Salutation:

'Sir/Dear Sir/Dear Mr Prime Minister/Dear Prime Minister

I

Closing:

.....
Yours faithfully (formal usage)

Yours sincerely (semi-formal usage)

Signature'

Verbal Address/Subsequent Referrals:

‘Mr Prime Minister’ (formal) / ‘Prime Minister’ (semi-formal)

Introduction:

Prime Minister, may I introduce

Informally:

Only if you are a personal friend, the first name may be used in a private setting

Place Card:

The Prime Minister

Note

Normally place cards are not used for the Governor-General nor the Prime Minister as, at this level, their seats would have been designated and carefully noted by those doing the seating.

Invitation Card:

Placing the title before the name of the host is correct when addressing an invitation card, eg.

The Prime Minister
The Most Honourable Andrew Holness, ON, PC, MP and
The Most Honourable Mrs Holness, MP
request the pleasure of the company of
.....

MINISTERS OF GOVERNMENT

The Deputy Prime Minister, Other Cabinet Ministers and Ministers of State

The Deputy Prime Minister and all other Ministers of the Cabinet are styled: ‘Honourable’

The Mode of Address in:

Writing:

Deputy Prime Minister & Minister of _____
Ministry of _____

Opening Salutation:

‘Dear Deputy Prime Minister/Mr Minister/Sir
.....

Yours faithfully (formal usage)

Yours sincerely (semi-formal usage)

Signature’

OR

Honourable Audley Shaw, CD, MP
Minister of Industry , Commerce and Agriculture
Ministry of Industry and Commerce

‘Dear Minister/ Dear Minister/Dear Minister Shaw

OR

Honourable William JC Hutchinson, CD, MP
Minister of State
Ministry of Transport and Mining

‘Dear Minister /Dear Minister Hutchinson

If the Minister is also a Member of the Senate, he/she should be formally styled as 'Senator the Honourable':

Senator the Honourable Kamina Johnson-Smith
Minister of Foreign Affairs and Foreign Trade
Ministry of Foreign Affairs and Foreign Trade

Opening Salutation:

'Dear Senator Johnson-Smith/Hon. Minister/Madam Minister

.....

Yours faithfully,
Signature'

The Leader of the Opposition

The Leader of the Opposition, is therefore styled: ‘Mr Mark Golding, MP’.

in: Writing:

Mr Mark Golding, MP
Leader of the Opposition
1 West King’s House Close
Kingston 6

Opening Salutation:

‘Dear Sir,

.....
Yours faithfully
Signature’

‘Dear Mr Golding/Leader of the Opposition

.....
Yours sincerely
Signature’

Formal speech/subsequent to the initial mention:

‘The Leader of the Opposition Mr Mark Golding

Informally:

‘Mr Mark Golding’

THE SENATE

The President of the Senate

The President of the Senate is formally addressed ‘Senator the Honourable’.

The mode of address in:

Writing:

Senator the Honourable Thomas Tavares-Finson, OJ, CD, QC
President of the Senate
Address

‘Dear President Tavares-Finson/Dear Mr President/Dear President
.....

Yours sincerely
Signature’

Formal speech/Subsequent referrals

‘(Mister) President’

‘(Madam) President’

If the holder of this office is a Minister of Religion, the preferred form of address is ‘The Reverend Senator.....’.

The Deputy President of the Senate & All Other Members of the Senate

The Deputy President of the Senate and all other Senators are referred to as ‘Senator’, without the use of ‘Mr/Mrs/Miss’ both formally and informally.

The mode of address in:

Writing:

Senator Charles Sinclair
Deputy President of the Senate
c/o The Houses of Parliament

Senators who are members of the Order of Jamaica or are Ministers of Government are addressed ‘Senator the Honourable.....’

Address

Opening Salutation:

‘Dear Sir/Madam (formal)

‘Dear Senator (Surname-optional) (semi-formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature’

OR

Senator Don Wehby, CD

Houses of Parliament

Address

Opening Salutations:

‘Dear Senator (Surname-Optional)

.....

Yours sincerely

Signature’

Formal Speech:

‘Senator (Surname)’ or ‘Senator’

Informally:

‘Senator’

MEMBERS OF THE HOUSE OF REPRESENTATIVES

The Speaker of the House of Representatives

The Speaker of the House is formally referred to as: ‘Mr/Madam Speaker’, within the precincts of the House.

The formal Mode of Address in:

Writing:

Honourable Marissa Dalrymple Philibert, CD, MP
Speaker of the House of Representatives
Houses of Parliament
Address

Opening Salutation:

‘Dear Madam (formal)

‘Dear Madam Speaker (semi-formal)

.....

Yours faithfully (formal)
Yours sincerely (semi-formal)
Signature’

Formal Speech

‘Honourable / ‘Madam Speaker’

Deputy Speaker of the House of Representatives

The Deputy Speaker of the House of Representatives is formally addressed in:

Writing:

The Most Honourable Mrs Holness, MP
Deputy Speaker of the House
c/o Houses of Parliament

Opening Salutation:

‘Dear Madam (formal)

‘Dear Deputy Speaker (semi-formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature’

Members of the House of Representatives

Members of Parliament are usually referred to as ‘Mr/Ms/Mrs....., MP’ during their period in Office. If they are recipients of any state honours, the relevant post-nominal letters should be included before MP, for example, if a Member of Parliament is a member of the Order of Distinction in the rank of Commander he/she would be styled: Mr Fitz Jackson, CD, MP. If a Member of Parliament is the recipient of more than one state Order, the highest Order is placed first behind the surname, junior orders follow in succession.

Also, if a Member of Parliament is a Cabinet Minister, he is styled the Honourable. Eg. Honourable Audley Shaw, CD, MP

The formal manner of address in:

Writing:

Hon/Mr/Mrs/Miss First Name, Last Name, MP
Member of Parliament for

Opening Salutation:

‘Dear Sir (formal)

‘Dear Member of Parliament/Dear Mr/Mrs/Miss Last Name (semi-formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature’

The Attorney General

The Attorney General is referred to as 'The Attorney General' or Mr/Mrs/Miss.....' on subsequent referrals.

This title is not hyphenated (neither is that of Solicitor General)

The formal mode of address in:

Writing:

Mrs Marlene Malahoo Forte, QC, MP
Attorney General
Attorney General's Department
Address

Opening Salutation:

'Dear Sir/Madam (formal)

'Dear Attorney General (semi-formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature'

Former Governors-General

Former Governors-General are usually styled ‘The Most Honourable Sir’. They would not however, be styled as ‘His/Her/Your Excellency’. The formal Mode of Address is in:

Writing:

The Most Honourable Professor Sir Kenneth Hall, ON, GCMG, OJ
Address

Opening Salutation:

‘Dear Sir/Madam (formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature’

His wife is referred to as ‘The Most Honourable Lady Hall’.

Widows of former Governors-General would be referred to in the same manner.

Former Prime Ministers

The former Prime Minister is formally styled ‘The Most Honourable’ when he/she is a member of the Order of the Nation and ‘Mr’ when he/she is not.

(when he/she is a member of the Order of the Nation)

The Mode of Address in:

Writing:

The Most Honourable Portia Simpson Miller, ON
Address

Opening Salutation:

‘Dear Mrs. Simpson Miller

Closing:

.....
Yours faithfully (formal usage)

Yours sincerely (semi-formal usage)

Signature’

When referring to her and her spouse jointly, they are formally styled, ‘**The Most Honourable Portia Simpson Miller and The Most Honourable Mr. Miller**’.

The widows/widowers of former Prime Ministers are referred as per example below:

‘**The Most Honourable Mrs. Edward Seaga**’ and **not** ‘**The Most Honourable Mrs. Carla Seaga**’

Other examples

- 1) The late Right Honourable Hugh Lawson Shearer is now formally styled, ‘**The late Most Honourable Hugh Lawson Shearer, ON, OJ**’ or when appropriate, ‘**The late Most Honourable Hugh Shearer**’

The style of address for his spouse is, ‘**The Most Honourable Mrs. Hugh Shearer, OJ,**

CD'. In her professional capacity, she is styled '**The Honourable Professor Denise Eldemire Shearer, OJ, CD**'

- 2) The late Honourable Michael Manley is now formally referred to as '**The late Most Honourable Michael Norman Manley, ON, OM, OCC**'; or when appropriate '**The late Most Honourable Michael Manley**'

His widow is now formally styled, '**The Most Honourable Mrs. Michael Manley**' and not '**The Most Honourable Mrs. Glynn Manley**'

- 3) The late Sir Donald Sangster is now formally referred to as '**The late Most Honourable Sir Donald Sangster, ON, KCVO**'.

THE JUDICIARY

The Chief Justice & The President of the Court of Appeal

The Chief Justice and the President of the Court of Appeal are formally referred to as: ‘The Honourable Mr/Mrs/Miss Justice (surname only), Chief Justice’ or ‘The Honourable Mr/Mrs/Miss Justice (surname only), President of the Court of Appeal’. Subsequently the Chief Justice may be referred to as, ‘The Chief Justice’, and the President of the Court of Appeal as ‘The President’.

In court, The Chief Justice and the President of the Court of Appeal are referred to as ‘My Lordship/Ladyship’ or ‘My Lord/Lady’. It is customary to appoint the Chief Justice and the President of the Court of Appeal to membership in the Order of Jamaica; once appointed, the formal mode of address is ‘The Honourable....., OJ’.

The formal mode of address in:

Writing:

The Honourable Mr. Justice Bryan Sykes, OJ, CD
Chief Justice
Supreme Court

Opening Salutation:

‘Dear Chief Justice/Sir

.....

Yours faithfully
Signature’

Verbal Address:

‘Chief Justice’, ‘Mr Justice Sykes’

Semi-formal:

‘Justice Sykes’

- (i) The Honourable Mr Justice Patrick Brooks, OJ, CD
President of the Court of Appeal
The Court of Appeal

Opening Salutation:

'Dear Mr Justice Brooks

 Yours faithfully
 Signature'

Verbal Address:

'President', 'Mr Justice Brooks',

Semi-formal

'Justice Brooks'

A Judge of the Court of Appeal/High Court

A Judge of the Court of Appeal/High Court is formally styled, 'The Honourable Mr/Mrs/Miss Justice' on first reference, and 'Mr/Mrs/Miss Justice' subsequently. In court he/she may be referred to as 'My Lord/My Lady' or 'Your Lordship/Ladyship'.

Note that the first name of a judge should be used only where there are two or more judges with the same surname, in which case the first name of the junior one(s) is used as well as the surname at all times.

A Puisne (pronounced pu'ni-with a long 'u') Judge is merely a term used to describe a member of the High Court other than the Chief Justice.

The Master rules on civil cases in Chambers, and is styled 'The Master' (whether male/female).

A Judge of the Parish Court is styled 'His/Her Honour Mr/Mrs/Miss, Parish Judge. In court he/she is referred to as 'Your Honour'. Outside court circles the latter referral would only be used in the salutation of a formal letter or in formal introduction as a speaker.

A Justice of the Peace (JP) is styled 'Your Worship' on the bench, otherwise he/she is addressed by name in the usual manner.

When a judge of the Court of Appeal/High Court retires from service, he/she retains his/her judicial style, and this is written, 'the Honourable Mr/Mrs/Miss Justice Black (ret'd)'.

If an Attorney-at-Law, who is a Member of the Queen's Counsel (QC), becomes a judge of the High Court or the Court of Appeal, he/she drops the 'QC' after their name. Use of these post-nominals may be resumed upon retirement.

Members of the Privy Council of Jamaica

The Members are styled 'Honourable'. The post nominal letters 'PC' are not used as this is reserved for members of the UK Privy Council for example, 'The Honourable David Muirhead, OJ, CD, and QC

The Honourable Dennis Lalor, OJ
Member of the Privy Council of Jamaica
Address

Opening Salutation:

'Dear Privy Councillor,

.....

Yours sincerely
Signature'

President of the Jamaica Council of Churches

The President of the Jamaica Council of Churches is formally addressed in:

Writing:

Reverend Newton Dixon
President of the Jamaica Council of Churches
Address

Opening Salutation:

‘Dear Sir (formal)

‘Dear President (In his capacity) (semi-formal)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature’

Verbal Address:

Reverend Dixon

Semi-formal:

Reverend Dixon or Reverend

*If the President is a Roman Catholic Archbishop as in the case of former President, The Most Reverend and Hon. Donald J. Reece, OJ, DD, **the verbal address would be:***

‘Your Grace/Archbishop’ (according to his preference)

The semi-formal address would be:

‘Reverend Reece/Archbishop’

Head of the Civil Service and Cabinet Secretary

The current Head of the Civil Service and Cabinet Secretary is formally addressed in:

Writing:

Ambassador the Honourable Douglas Saunders, OJ, CD, JP
Head of the Civil Service and Cabinet Secretary
Cabinet Office

Opening Salutation:

‘Dear Cabinet Secretary/Ambassador Saunders

.....

Signature’

Verbal Address:

‘The Cabinet Secretary’, ‘Ambassador the Honourable Douglas Saunders, OJ, CD, JP’,
‘Ambassador Saunders’

Head of the Foreign Service

The current Head of the Foreign Service is formally addressed:

Writing:

Ambassador Sheila Sealy Monteith
Permanent Secretary and Head of the Foreign Service
Ministry of Foreign Affairs & Foreign Trade

Opening Salutation:

‘Dear Ambassador Monteith,

.....

Yours sincerely
Signature’

Verbal Address:

‘Ambassador Monteith’/ ‘Permanent Secretary’

Semi-formal:

‘Ambassador’

Heads of Missions in Jamaica

Ambassadors are formally addressed as: 'His/Her Excellency'

The formal mode of address in:

Writing:

His/her Excellency (first name, Surname)
 Ambassador of
 Embassy of
 Address

Opening Salutation:

'Your Excellency,

Closing Remarks:

I avail myself of the opportunity to assure Your Excellency of my highest consideration.'

or

Accept, Excellency, the renewed assurances of my highest consideration.'

or

Please accept, Excellency, the assurances of my highest consideration.'

Name
 Title

Verbal Address:

'Your Excellency' or 'Ambassador (Surname)'

The informal manner in:

Writing:

Opening Salutation:

‘Your Excellency/Ambassador (Surname)

.....

I have the.....’

Verbal Address:

‘Your Excellency’ or ‘Ambassador (Surname)’

High Commissioners

High Commissioners are Heads of Diplomatic Missions of Commonwealth Countries.

The formal manner of address in;

Writing:

His/ Her Excellency (first name, Surname)

High Commissioner

High Commission for

Address

Opening Salutation:

‘Your Excellency,

.....

Closing Remarks:

I avail myself of the opportunity to assure Your Excellency of my highest consideration.’

Name

Title or

Accept, Excellency, the renewed assurances of my highest consideration.’

or

Please accept, Excellency, the assurances of my highest consideration.’

Name

Title

The informal manner in:

Opening Salutation:

‘Dear High Commissioner’

.....

Yours sincerely
Signature’

Speech:

‘Ambassador (Surname)’/ ‘Your Excellency’

Head of the Delegation of the European Union

The Head of the Delegation of the European Union is ranked at an Ambassadorial level and is referred to as ‘His/Her Excellency’.

The formal mode of address for the current Head of the Delegation in:

Writing:

His/Her Excellency (first name, Surname)
Ambassador/Head of Delegation
Delegation of the European Union
Address

Opening Salutation:

‘Dear Ambassador (Surname)’

.....

Yours sincerely
Signature’

Charge d’Affaires, Acting High Commissioners, Consuls-Generals

The above-mentioned individuals are usually referred to as ‘Mr/Mrs/Ms (Surname), Title’

Closing Remarks in writing from the Foreign Ministry to a Consul General:

‘I avail myself of the opportunity to renew the assurances of my high consideration.’

Name

Title

Chairman of the Public Services Commission

The Chairman is referred to as 'Mr/Mrs/Ms (Surname), Title'

Financial Secretary/Permanent Secretary

The Financial Secretary and the Permanent Secretaries are referred to as 'Mr/Ms/Mrs....., Permanent Secretary in the Ministry of'. If the holder of this office has been awarded the Order of Jamaica, the person is referred to as the Honourable....., OJ. If awarded any other distinction, the post-nominals identifying the distinction/award are placed after the person's name, for example if conferred with the Order of Distinction in the rank of Commander he/she should be referred to as 'Mr/Mrs/Ms (name), CD'.

The formal mode of address in:

Writing:

Dr/Mr/Mrs/Miss
Financial / Permanent Secretary
Ministry of

Opening Salutation:

'Dear Financial Secretary/ Permanent Secretary'

Verbal Address:

'Dr/Mr/Mrs/Miss _____',

Solicitor General

The current Solicitor General is formally referred to in:

Writing:

Dr/Mr/Mrs/Miss
Solicitor General c/o The Attorney
General's Office
address

Governor of the Bank of Jamaica

The formal mode of address for the current Governor:

Writing:

Mr Richard Byles
Governor of the Bank of Jamaica
Bank of Jamaica
address

Opening Salutation:

'Dear Governor/ Dear Mr Byles
.....
Yours sincerely
Signature'

Verbal Address:

'Governor'/ 'Mr Byles'

Auditor General

The current Auditor General is formally referred to in:

Writing:

Mrs Pamela Monroe Ellis
Auditor General
The Auditor General's Department
Address

Director of Public Prosecutions

The Director of Public Prosecutions is usually referred to as 'Mr/Mrs/Ms'. The current DPP is formally addressed in:

Writing:

Ms Paula Llewellyn, CD, QC
Director of Public Prosecutions
Office of the Director of Public Prosecutions

Opening Salutation:

'Dear Madam/Sir (formal)
Dear Mr/Mrs/Ms _____ (semi-formal)
.....
Yours faithfully (formal)
Yours sincerely (semi-formal)
Signature'

Chief of Defence Staff

The title accorded to the Chief of Defence Staff is dependent on whether the Officer served previously in the Army/Air Wing element of the JDF or the Jamaica Defence Force Coast Guard

The current Chief of Defence Staff is formally styled in:

Writing:

Lieutenant General Rocky Meade, CD, ADC, JP, PhD, psc
Chief of Defence Staff

Opening Salutation:

‘Dear Sir (formal)
Dear Chief of Defence Staff/ Dear Lieutenant General (semi-formal)

.....

Yours faithfully (formal)
Yours sincerely (semi-formal)
Signature’

Informal /Subsequent Referrals:

‘Lieutenant General Meade’ or ‘Chief of Defence Staff’

Commissioner of Police

The Commissioner of Police is referred to as: Dr/Mr/Ms/Mrs unless he or she has a prefix deriving from previous military service (Major General, Rear Admiral, Colonel)

The current Commissioner of Police is formally styled in:

Writing:

Major General Antony Anderson, CD, JP
Commissioner of Police
Office of the Commissioner of Police

Opening Salutation:

‘Dear Sir (formal)
Dear Commissioner (last name)/Dear Commissioner (semi-formal)
.....
Yours faithfully (formal)
Yours sincerely (semi-formal)
Signature’

Verbal Address/Subsequent Referrals:

‘Commissioner (last name)’ or ‘The Commissioner’

Mayors

The formal mode of address in:

Writing:

His Worship the Mayor Councillor Winston Maragh, OD
Mayor of May Pen
Address

or

His Worship the Mayor Senator Councillor Delroy Williams
Mayor of Kingston and St. Andrew
Address

Opening Salutation:

‘Your Worship (formal)
Dear Mayor (last name) (semi-formal)

.....

Yours faithfully (formal)
Yours sincerely (semi-formal)
Signature’

Verbal Address:

‘His/Her/Your Worship’; ‘Mayor last name, ‘Councillor first name last name’

Semi-formal:

‘Mayor/Councillor (Surname)’

Custodes of Parishes

All custodes are referred to as ‘The Honourable’. A Custos on first mention is the Honourable John (Jane) Brown. Subsequently, he/she is referred to and addresses as ‘Custos’ and/or by name.

Writing:

The Hon. Steadman Fuller, CD, JP
Custos of Kingston
Address

If the holder of this office is a Minister of Religion or has been accorded a doctorate of philosophy, the title in referral to this position would precede ‘The Honourable’ for example,

‘The Very Reverend Canon the Honourable Dalton Perrin, CD, JP’

If the person is a medical doctor, ‘the Honourable’ would precede the professional title, eg. ‘The Honourable Dr David Stair.

Verbal Address:

‘The Honourable Custos (Surname)’ or ‘Custos (Surname)’

Vice Chancellor of the University of the West Indies

The Vice Chancellor is formally referred to in:

Writing:

Professor /Ambassador/Dr/Mr/Mrs/Miss (first name) (last name)
 Vice Chancellor
 University of the West Indies
 Mona Campus
 Kingston 7

Opening Salutation:

Dear Professor /Ambassador/Dr/Mr/Mrs/ (last name)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature'

President of the University of Technology

The President of the University of Technology is formally referred to:

Writing:

Professor /Ambassador/Dr/Mr/Mrs/Miss (first name) (last name)
 President
 University of Technology
 237 Old Hope Road
 Kingston 7

Opening Salutation:

Dear Professor /Ambassador/Dr/Mr/Mrs/ (last name)

.....

Yours faithfully (formal)

Yours sincerely (semi-formal)

Signature'

**Chairman of Secretaries of the Political Parties having Representation
in Parliament**

The above-mentioned individuals are usually referred to as ‘Mr/Mrs/Ms (Surname), Title’

HOLDERS OF JAMAICAN NATIONAL HONOURS

The Order of Merit

The honour of the Order of Merit (OM), ranked fourth in order of precedence, may be conferred upon any citizen of Jamaica or distinguished citizen of a country other than Jamaica (an honorary member) who has achieved eminent international distinction in the field of science, the arts, literature or any other endeavour. Members of the Order are styled ‘Honourable’ and entitled to place the letters ‘OM’ after their name. For example ‘Professor the Honourable Abraham Chen, OM’

The Order of Jamaica

The honour of the Order of Jamaica (OJ), ranked fifth in the order of precedence, may be conferred upon any Jamaican citizen of outstanding distinction or upon any distinguished citizen of a country other than Jamaica (honorary member). Members of the Order are styled ‘Honourable’ and entitle to place the letters ‘OJ’ after their name. For example ‘The Honourable Christopher Blackwell, OJ’